



Official Report (Hansard)

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Assembly Members

Aiken, Steve (South Antrim)	Hargey, Miss Deirdre (South Belfast)
Allen, Andy (East Belfast)	Harvey, Harry (Strangford)
Archibald, Dr Caoimhe (East Londonderry)	Honeyford, David (Lagan Valley)
Armstrong, Ms Diana (Fermanagh and South Tyrone)	Hunter, Ms Cara (East Londonderry)
Armstrong, Ms Kellie (Strangford)	Kearney, Declan (South Antrim)
Baker, Danny (West Belfast)	Kelly, Gerry (North Belfast)
Beattie, Doug (Upper Bann)	Kimmins, Ms Liz (Newry and Armagh)
Blair, John (South Antrim)	Kingston, Brian (North Belfast)
Boylan, Cathal (Newry and Armagh)	Little-Pengelly, Mrs Emma (Lagan Valley)
Bradley, Maurice (East Londonderry)	Long, Mrs Naomi (East Belfast)
Bradshaw, Ms Paula (South Belfast)	Lyons, Gordon (East Antrim)
Brett, Phillip (North Belfast)	McAleer, Declan (West Tyrone)
Brogan, Miss Nicola (West Tyrone)	McAllister, Miss Nuala (North Belfast)
Brooks, David (East Belfast)	McCrossan, Daniel (West Tyrone)
Brownlee, Ms Cheryl (East Antrim)	McGlone, Patsy (Mid Ulster)
Buchanan, Keith (Mid Ulster)	McGrath, Colin (South Down)
Buchanan, Tom (West Tyrone)	McGuigan, Philip (North Antrim)
Buckley, Jonathan (Upper Bann)	McHugh, Maolíosa (West Tyrone)
Bunting, Ms Joanne (East Belfast)	McIlveen, Miss Michelle (Strangford)
Burrows, Jon (North Antrim)	McLaughlin, Ms Sinéad (Foyle)
Butler, Robbie (Lagan Valley)	McMurray, Andrew (South Down)
Cameron, Mrs Pam (South Antrim)	McNulty, Justin (Newry and Armagh)
Carroll, Gerry (West Belfast)	McReynolds, Peter (East Belfast)
Chambers, Alan (North Down)	Martin, Peter (North Down)
Clarke, Trevor (South Antrim)	Mason, Mrs Cathy (South Down)
Delargy, Pádraig (Foyle)	Mathison, Nick (Strangford)
Dickson, Stewart (East Antrim)	Middleton, Mrs Julie (Foyle)
Dillon, Mrs Linda (Mid Ulster)	Muir, Andrew (North Down)
Dodds, Mrs Diane (Upper Bann)	Mulholland, Ms Sian (North Antrim)
Dolan, Miss Jemma (Fermanagh and South Tyrone)	Murphy, Miss Áine (Fermanagh and South Tyrone)
Donnelly, Danny (East Antrim)	Nesbitt, Mike (Strangford)
Dunne, Stephen (North Down)	Ní Chuilín, Ms Carál (North Belfast)
Durkan, Mark (Foyle)	Nicholl, Ms Kate (South Belfast)
Egan, Ms Connie (North Down)	O'Dowd, John (Upper Bann)
Ennis, Mrs Sinéad (South Down)	O'Neill, Ms Michelle (Mid Ulster)
Erskine, Mrs Deborah (Fermanagh and South Tyrone)	O'Toole, Matthew (South Belfast)
Ferguson, Mrs Ciara (Foyle)	Poots, Edwin (Speaker)
Finnegan, Ms Aoife (Newry and Armagh)	Reilly, Ms Aisling (West Belfast)
Flynn, Miss Órlaithí (West Belfast)	Robinson, Alan (East Londonderry)
Forsythe, Ms Diane (South Down)	Sheehan, Pat (West Belfast)
Frew, Paul (North Antrim)	Sheerin, Ms Emma (Mid Ulster)
Gaston, Timothy (North Antrim)	Stewart, John (East Antrim)
Gildernew, Colm (Fermanagh and South Tyrone)	Sugden, Ms Claire (East Londonderry)
Givan, Paul (Lagan Valley)	Tennyson, Eóin (Upper Bann)
Guy, Mrs Michelle (Lagan Valley)	Wilson, Gareth (Newry and Armagh)

Northern Ireland Assembly

Tuesday 5 May 2026

The Assembly met at 10.30 am (Mr Speaker in the Chair).

Members observed two minutes' silence.

Matter of the Day

Springhill Inquest Findings

Mr Speaker: Gerry Carroll has been given leave to make a statement on the Springhill inquest findings that fulfils the criteria set out in Standing Order 24. Mr Carroll has three minutes, as will all other Members who are called to speak.

Mr Carroll: Thank you, Mr Speaker. The families of the Springhill massacre have waited 54 years for some recognition of the deep hurt, pain, trauma and anguish that was caused to them and the wider community. On 9 July 1972, five people, including three young people, were shot dead by the British Army: a priest, Noel Fitzpatrick; Patrick Butler, a worker at Belfast City Council and a father; Margaret Gargan, who was 13 years old; David McCafferty, who was 15 years old; and John Dougal, who was just 16 years old.

For many decades, the families had to bat away false allegations about their loved ones: about who they were and about what they did on that tragic, painful day. It was those family members who led the fight to clear their relatives' names, supported by the wider community. While the verdict from last week's inquest was welcome, it would be remiss of me not to mention the family members who did not live to see it. I pay tribute to all family members of the Springhill massacre, who have stood up for truth and justice for so many years.

It would also be remiss of me not to mention the lives hurt and the damage caused by so much killing, misery and destruction inflicted by the state 54 years ago.

The court found that the British Army soldiers were in the wrong and that they lost control: how many times has that happened in west Belfast and other communities? The inquest declared that the force used was "not reasonable". The people who were shot and killed were unarmed. People were shot as they

fled for safety and tried to help their neighbours and friends. That is what the inquest found. Of course, people in Springhill, west Belfast and, indeed, across the North have known that for decades.

The verdict is primarily for the family members who lost loved ones in July 1972. I pay tribute to them for their courageous and sterling work. The verdict also shines a light on how the past is viewed in the present. We still have claims that British Army veterans are being chased into court and dragged here, there and everywhere, but there has been a dearth of prosecutions. Communities in west Belfast, north Belfast and Derry — we think of Bloody Sunday — and other working-class communities have experienced the most injustice, pain and misery. They have led the fight for —.

Mr Speaker: The Member's time is up.

Ms Reilly: On Thursday, we heard the findings of the inquest on the Springhill massacre. After 54 years, families heard an acknowledgement of the truth, which was that Margaret Gargan, aged 13; David McCafferty, aged 15; John Dougal, aged 16; Paddy Butler, aged 38; and Father Noel Fitzpatrick posed no threat; in fact, they were trying to go to the aid of their community and help. The families heard that the actions of the British Army were unjustified; that control was lost; and that unreasonable and excessive force was used.

The inquest confirmed what the community and the people in Springhill and Westrock have always known: citizens were deliberately targeted and killed, and that was followed by a concerted effort from the very top to conceal the truth. I have sat in rooms with the Springhill families on many occasions, and I was honoured to sit with them in the courtroom last week. For 50 years, they have shown dignity, resilience and determination. They never gave up. They fought to have their loved ones' names vindicated, and they have done that. The verdict will not bring Margaret, David, John, Paddy or Father Noel back. It will not undo the

years of loss and hurt, but it matters that the truth is heard and that those families refused to be silenced. It matters that their perseverance has brought us to this point.

The Springhill/Westrock killings stand as a stark example of the harm and brutality inflicted during the Troubles by British state forces and of the long struggle that is needed to secure accountability. The British Government's approach to legacy is disgraceful. It is an attempt to pull the shutter down on other families, close off pathways to truth and justice and shield their forces from accountability. That is not acceptable. Any legacy process or legislation has to command the full confidence of families and be article 2-compliant. Sinn Féin will oppose any shambolic legislation that gives cover and protection to state forces that have committed human rights abuses, including the murder of Irish citizens.

Families deserve better. They deserve truth; they deserve justice; and they deserve to be heard. I commend the Springhill families, who, for 54 years, stood firm, fought tooth and nail and refused to give up. Their courageous fight for truth has been inspirational for many families who have suffered at the hands of the British Army and other state actors. They kept going and cleared Margaret, David, John, Paddy and Father Noel's names.

Mr Frew: I acknowledge the findings of the inquest last week and pay tribute to the families who persevered and fought for the truth. Every person in the country who suffered during the Troubles deserves the truth at the very least. The families have made a statement. They said:

"Each of those who died was an individual - deeply loved and still deeply missed. For us, this is not history; it is something we have lived with every day."

I recognise that, and I believe that everyone who suffered during the Troubles recognises that.

That year, 472 people lost their lives due to the violence. Whilst that was before I was born, I have served this country and put on the uniform. During the time that I served this country, I saw nothing but professionalism from our armed forces. Back in 1972, there was absolute chaos on the streets. Homes were being burned, streets were being blockaded and the army was put in an impossible situation, with armed terrorists taking potshots at them from every direction. Should we have

been surprised, then, when things like this happened?

While those young people lost their lives on that day, we should also be mindful of the coercion used by the terrorists who put those young people on to the streets and into harm's way and into their terrorist organisations to raise money, to shoplift and rob and everything else that went with that, only for them to mature into gunmen. That is what we should centre on and seek justice on. It is rich of Sinn Féin and others to talk about the British Establishment, when the inquest was heard in a court of law. That is what truth looks like, while Sinn Féin and the IRA, due to a code, will not give evidence on any of the atrocities that they were part of. That speaks of hypocrisy.

Everyone who lost loved ones or said goodbye to loved ones who never returned deserves the truth. They all deserve the truth; they all deserve to hear what happened and how and why it happened. It is about time that the republican movement came out and told that truth so that all of the families affected by the Troubles can rest easy, in the assurance of knowing exactly what happened to their loved ones.

Mr Beattie: Sometimes, the least said the better, in many ways. We had a tragedy in Northern Ireland, and we still feel that tragedy today. Therefore, my heart goes out to the families of Margaret Gargan, David McCafferty, John Dougal, Patrick Butler and Father Noel Fitzpatrick. They were five innocent victims of our Troubles, and they join a long queue of innocent victims of our Troubles, none better than the one before, and all should be remembered.

We know that, in July 1972, over 100 people were killed, my uncle being one of them. There has been no inquest for him, and no statements have been made about him in the House, yet he is equal to everybody else. We all need to remember that July 1972 culminated in the Claudy bombing, where eight people were murdered, and Bloody Friday, when nine were murdered. Again, we have to remember what was going on at the time. It was an absolute tragedy, but that does not take away from the families, who deserve truth, justice and accountability. They should get that from all corners of the Chamber. Some people decide to use a murder when it happens to apply to those whom they supported during the Troubles. Until they stand up and tell what they know, we will never get to the truth.

Was the killing of those five young people wrong? Yes, of course it was, and I acknowledge what the coroner said. There is always a wider context, however, and it is a simple one: hundreds if not thousands of people were killed and injured, and there are people who know who did it and say absolutely nothing. I reiterate what I have said many times: whether you are a soldier, a policeman, a member of the public or a politician, if you break the law, you need to face the law.

Mr O'Toole: For more than half a century, the Springhill and Westrock families have, with dignity, courage and extraordinary resilience, maintained the innocence of their loved ones and the need to clear their names and to hold the British state to account for their murders on 9 July 1972. As the previous contributor said, that month was one of the most brutal in the history of our conflict. That is why it is even more important that the forces that are given a legal monopoly on the use of force, i.e., the security forces, are held to the highest possible legal standard. Sometimes, there are those in the Chamber who want to vacillate or, at times, talk out of both sides of their mouth in relation to holding the state to account. We do not and never have, because those who have a legal monopoly on the use of force need to be held to the highest legal standards.

For more than half a century, the killings — the murders — at Springhill/Westrock have been held to a different standard, and people have been denied justice. Margaret Gargan, Patrick Butler, John Dougal, David McCafferty and Father Noel Fitzpatrick were killed that day in a way that Mr Justice Scofield said was "not reasonable". As he also said, the army "lost control" of the situation.

10.45 am

Let us be clear. Not only did the Springhill/Westrock families behave with extraordinary courage and resilience, but, if the legacy plans enacted by the previous Tory Government had been brought through, this kind of inquest would have been denied not just to those families but to any family who had lost their loved ones in our conflict and wanted some measure of truth, justice and accountability via the inquest process. That is number one. The next point is that a new or replacement legacy process for people in this society who are victims and survivors of the Troubles must be human rights-compliant. It cannot pander to the worst instincts of those on the English right who simply seek to shield state forces from any kind of accountability. The

Springhill/Westrock families are a credit to the community in west Belfast and to our entire society. Against the most remarkable and overwhelming odds, they have stood up for their loved ones. I stand in solidarity with them today. I and my party have nothing but respect and admiration for their courage and for the courage of all families who lost their loved ones to republican and loyalist paramilitaries and to state forces. You deserve so much better than you have received over the past half century and more.

Ms Nicholl: One of the amazing privileges of not having grown up here is that I have been shielded from so much hurt that so many people in the Chamber have experienced. I think about that quite often. When the news coverage of the inquest was going on, I kept thinking about the three teenagers. Five people were killed, but three of them were teenagers. As a mother, the idea of anything happening to my child is incomprehensible, but for your child to have been murdered and for you to then have to spend 54 years trying to find truth, answers and justice is really extraordinary.

The Springhill/Westrock families are extraordinary. On behalf of the Alliance Party, I commend the families of Margaret Gargan, John Dougal, David McCafferty, Patrick Butler and Father Noel Fitzpatrick for their bravery and dignity and make the point that all victims have the right to pursue justice and truth. When we discuss the awful atrocities and things that happened, it is in our human nature to reflect on other examples and other hurts that we may hold. I am lucky that I do not hold those, but I am so conscious that there is so much of that in our society. If we are truly going to create a shared society, the way that we approach legacy will have a real impact on our ability to do so on the basis of truth, justice and reconciliation. This morning, my party's thoughts are very much with the families who have fought for so long, as well as with the families who are still waiting for their answers.

Mr Gaston: Many people will look at the findings of the Springhill inquest and ask, "When is my day in court?" Today, I think of the many innocent victims of republican violence who will look at some of those who sit on the Sinn Féin Benches and rightly shake their heads. Why? It is because they know — we all know — that there are individuals in Sinn Féin who could, if they chose to, bring justice for thousands of people across our Province. Their knowledge of murders, injuries and destruction would, in any society in which the rule of law is respected, put people away and ensure that they never saw the outside of a prison cell

again. Sinn Féin pontificates about justice, lectures us about truth and feigns sympathy for those who have lost loved ones, but that sympathy is very selective.

Today, I hear another voice; that which is spoken of in Genesis 4, where God says:

"The voice of thy brother's blood crieth unto me from the ground."

I say this to republicans: you may be interested in the findings of the court last week, but there is a higher court, before which you and all those who take innocent life will stand one day. The loss of any innocent life was wrong and is wrong. Sadly, there are those sitting in the Chamber who cannot say the same.

Mr Buckley: The Springhill inquest findings are clear: five innocent civilians lost their lives. Everyone in the House should note that. The tragedy facing many families across Northern Ireland is not dissimilar from that faced by the families of Springhill: they lost their loved ones in some of the darkest days of Northern Ireland's Troubles. I can say that without equivocation. I know many families, including some of my wider family members, who feel that loss today.

There is an attempt by many to characterise every member of the armed forces who served in Northern Ireland in difficult times as evil, corrupt and barbaric. That could not be further from the truth. So many of them served with distinction and put their life on the line to protect civilians, regardless of their political opinion. That does not excuse the actions of some, and, where there are appropriate means, they should be held accountable, but let us be real: there are huge double standards, and there is huge hypocrisy, when debating the issue in the Chamber. In Northern Ireland, 1972 was a barbaric year: over 400 people lost their lives in the Troubles, including many security service personnel. The double standards from Sinn Féin about that period are clear. We are told by the party opposite that there should be accountability, truth and transparency. When I attended the inquest into the killing of 10 innocent Protestant workmen at Kingsmills, I heard the coroner state that Sinn Féin refused to take part in that inquest, but yet it has the brass neck to try to say in the Chamber today that everybody else was wrong and it was right.

A gun that was used in the attack at Kingsmills was also used by Raymond McCreesh later in the 1970s. How has republicanism presented Raymond McCreesh? It named a play park after him. That proposal was supported by the

SDLP. If we are going to debate and reflect on the legacy of the past, let us be truthful, let us not spin things, and let us remember that many people who served in this country did so to protect innocent life —

Mr Speaker: Time is up.

Mr Buckley: — from terrorism.

Members' Statements

International Day of the Midwife 2026

Mr McGuigan: Today, on the International Day of the Midwife, I recognise the extraordinary contribution that midwives here in the North make for women, babies and families. Our midwives are there at some of the most significant and vulnerable moments in people's lives. Their compassion, expertise and calm presence provide reassurance and care to expectant mothers when it matters most.

This year's global theme, "One million more midwives", is both a celebration and a call to action. It reflects a clear and urgent reality. Across the world, there are not enough midwives to meet the needs of women and babies, and that global message resonates strongly here in the North. While we are fortunate to have highly skilled and dedicated midwives, they are working in a system that is under significant pressure.

The North remains the only part of these islands without a maternity strategy. The Renfrew report, commissioned by the Department of Health and published in 2024, sets out clear evidence that maternity and midwifery services require a regional, coordinated five-year plan. It highlights the difficult experiences faced by many women throughout pregnancy, labour, birth and the postnatal period; experiences that have affected their physical and mental health, their well-being and their early relationship with their baby. Despite the strength of those findings, progress on implementing the report's core recommendations has not yet begun. Yet, in the face of those challenges, our midwives continue to deliver safe, compassionate care every day. They do so while managing increasing pressures, staffing shortages and rising complexity in the needs of women and babies. Their commitment ensures that families receive the support that they need, even when the system around them is under strain. Recognising the work of midwives today is also a reminder of the need to strengthen the

services that they rely on by improving working conditions, investing in safe staffing and ensuring that every woman and baby receives the standard of care that they deserve.

As part of recognising midwives, I want to highlight an event that is taking place this weekend. On Saturday 9 May, there will be a special Stormont parkrun, here on the grounds. It is a wonderful opportunity for midwives, their families, colleagues and supporters to come together to get active and show appreciation for the profession. I hope to be kitted out and show my support to our midwives and the incredible work that they do. On International Day of the Midwife, let us celebrate their dedication, acknowledge the challenges that they face and commit to delivering the change that women, babies, families and midwives themselves deserve.

Omagh Bomb Inquiry

Mr Clarke: Reference has been made today to one inquiry, and I want to talk about a different inquiry: the inquiry into the Omagh bomb, which detonated in August 1998. Of course, we heard over the weekend about some of the officers who were affected by that and about how they are going to withdraw from the inquiry. I fully agree with them, and I support them wholeheartedly. Over the years, the PSNI has had difficulty in supporting its officers whilst in service, but now we have heard of the recent suicide of a man, a former police officer, who had been called to give evidence to the inquiry.

A number of weeks ago, I travelled to Omagh to meet representatives of Military and Police Support of West Tyrone (MAPS). I saw the work that that organisation does on a voluntary basis for the community of Omagh and beyond. I believe that it covers all of Northern Ireland because its services are so important and so vital to so many. During my time there, I walked around Omagh, and I have to admit that I had not been there since the atrocity. The gentleman who took me on that walk was one of the police officers who was there to serve and protect our community. He walked me through the street that day, and I felt as if it was 1998. You could see the horror on his face. He could show me where the dead bodies lay and where people were placed — every aspect of that bomb. Twenty-eight years later, that man is living it as if it was today.

Of course, I think of the barbarity of the actions of those who were responsible for that bomb. We heard in another debate today that some blame state forces, and I think that there is a

fear in the police and among others that there will be finger-pointing in relation to the inquiry. Of course, I do not want to stray into that. However, let us be very clear. Those who are responsible are those who planted the bomb and detonated that bomb on that day. One thing is sure: I stand and my party colleagues stand with the retired officers until — not before — adequate trauma support is given to the officers who are being asked to give evidence at the inquiry.

It is important that we do not continue to re-traumatise those men and women, who were out to protect us. It is important that they give evidence but only when they are given adequate trauma support and the necessary counselling for what they witnessed, which they are having to revisit.

11.00 am

Wildfires: Mourne Mountains

Mr McMurray: Last week, I attended an event titled 'The Mournes: Building a Sustainable Future' that looked at how uplands and the regional asset that is the Mournes can be looked after and at the agencies that do so. It was impossible for me not to reflect on the recent wildfires — the landscape arson — that continued up until the end of last week. We were thankful for the rains that came.

It is hard to convey the amount of damage that is being done to our upland areas. In a fire in 2021, over 90% of the invertebrates on Slieve Donard were lost. Five years later, 90% of the invertebrates on that hillside are still lost. The effect that that has had on the wildlife and ecosystems in our upland areas is hard to quantify. There may be a small positive. I was sent a video of the rare common lizard, but how will that little lizard — such a rare example of wildlife — survive in our upland areas following the removal of so many invertebrates? When the fires have burnt out, the land may flash up green after a few weeks and people will say, "It's not so bad looking any more. It's all nice and green", but it is just more flammable and combustible material, which makes it even more likely that, when they happen again, the wildfires will race through the land.

The fires are deliberate actions. Whether it is somebody deliberately setting a fire or somebody lighting a barbecue or a cigarette, after which negligence takes over, such fires all start with a deliberate action. If we want to see change and prevent such incidents, we must do all that we can to report anything suspicious.

Only then will we be able to build a picture of what is happening.

The objectives of the wildfires action plan from the Department of Agriculture, Environment and Rural Affairs and Minister Muir are prevention, preparedness, response, recovery and enforcement. Only when those objectives are enacted and given time will we really see a difference in our upland landscape.

Enniskillen Royal Grammar School

Ms D Armstrong: Last Wednesday was a special day for Enniskillen. On 29 April, the Minister of Education announced funding for a new build for Enniskillen Royal Grammar School. On the same day, a blue plaque was unveiled in honour of James Gamble, the man from Enniskillen who went on to co-found Procter and Gamble, one of the biggest companies in the world. That is no small thing.

That is Enniskillen's story in one day, and it got me thinking about what Portora Royal School and Enniskillen Collegiate Grammar School — Enniskillen Royal Grammar School as they are today — have given to the world. Between them, they have produced truly remarkable people. Oscar Wilde walked the halls of Portora, as did Samuel Beckett, and they are two of the greatest writers that the English language has ever known. Neil Hannon, the singer and founder of the Divine Comedy, is another Portora man. Dr Denis Burkitt, who identified Burkitt's lymphoma and changed the lives of countless children across the world, was educated there too. In sport, Jimmy McCoy wore the green jersey of Ireland in rugby from 1984 to 1989, winning 16 caps and playing in the Rugby World Cup. The sporting tradition runs deep. Today, the school's rowing club is one of the best in the UK and Ireland, with two Olympic coaches leading the next generation on the waters of Lough Erne.

Enniskillen Collegiate Grammar, as the first girls' grammar school to be built by a public body anywhere in Northern Ireland, has its own special place in history. That alone tells us something about the ambition for and belief in young women that the town has always had. In 2016, Portora Royal School and Enniskillen Collegiate Grammar School came together to form Enniskillen Royal Grammar School. The students who walk through its doors today are the heirs to all that history.

Those are not lucky accidents: those young people were given a chance, teachers who believed in them and schools that opened doors

for them. That is the point that I want to make. The funding announced last week matters not just as bricks and mortar but as a promise to the next generation. Somewhere in Enniskillen right now there is a child who could be the next great writer, the next rugby international or the next James Gamble. What we owe that child is simple: we owe them a great school, teachers and staff who are supported and a building fit for learning.

Last week showed us that Enniskillen remembers where it came from. The blue plaque for James Gamble is a mark of pride in our past, and the new school funding is a mark of belief in our future. I welcome both and ask the Assembly to keep believing in what such schools can do, because history tells us that their results can be truly remarkable.

Jordan and Cian Adams: Frontotemporal Dementia Awareness

Ms Hunter: I wish to say a few words about two young men who make us stop, think and put everything into perspective. Jordan and Cian Adams, two young brothers, also known as the "FTD brothers", are running 32 marathons in 32 days across Ireland — last week, they ran through my constituency — to raise money for frontotemporal dementia, the illness that took their mother, Geraldine, at the age of 52. Jordan Adams also recently finished the London marathon with a fridge weighing 25 kg on his back, which is just remarkable.

Despite being young men in their late 20s and early 30s, sadly, they found out the devastating news that they also carry the gene that means that, having lost 12 relatives, they, too, are almost certain to develop this form of dementia. That is hard to comprehend, which brings me to the point that I am raising in the Assembly. Right now, there are almost 1 million people across these islands who live with dementia, and that number is only going one way — sadly, upwards — which is why those young men have taken it on themselves to raise awareness and funds for research to end this horrific condition. They have raised almost £150,000, which is just incredible.

This form of dementia is rare, under-researched and often misunderstood. The brothers said, on finding out their diagnosis, that they have 10 to 15 years, and then they will be stripped of everything. That is absolutely devastating, given that they are so young; they know what the future looks like and what lies ahead.

I feel strongly that this has to change. I put on record a "Well done" to Cian and Jordan, who have turned something that is deeply personal into something very powerful. Conditions like frontotemporal dementia affect the whole family. It is life-altering and life-ruining. Thanks to Cian and Jordan, citizens and politicians like us across these islands have learnt about frontotemporal dementia: the signs, the symptoms, the importance of fundraising and, of course, the urgent need to find a cure. Today, the Assembly says, "Well done and thank you so much for teaching us more about the diagnosis".

Tuairisc Ollscoil na Ríona: 'Éire aontaithe: Deis chlaochlaitheach don Ghaeilge agus don Ghaeltacht'

Ms Reilly: Seolfar tionscadal taighde in Ollscoil na Banríona inniu, dar teideal Éire aontaithe: Deis chlaochlaitheach don Ghaeilge agus don Ghaeltacht. Tharla go bhfuil práinn agus fuinneamh leis an díospóireacht ar athaontú na hÉireann, tá tábhacht ar leith le tionscadail taighde den chineál sin, nó is ar a leithéid de thaighde a thógtar an Éire nua.

Tá an tionscadal taighde seo thar a bheith ábhartha, nó chíonn muid an bealach a bhfuil an Ghaeilge ag dul agus go bhfuil an Ghaelscolaíocht ag fás léi. Lena chois sin, is léir ó fhigiúirí an daonáirimh an méadú atá ag teacht ar líon na nGaelgeoirí ar fud an oileáin. Tá ár dteanga ag dul chun cinn in ainneoin na n-ionsaithe atá á ndéanamh uirthi sna Sé Chontae agus sa tSeomra seo, in ainneoin an bhéalghrá a thugtar di sna Sé Chontae is Fiche agus in ainneoin ghéarchéim na nGaeltachtaí. Tá pobal na Gaeilge ag fás leis, agus tá fuinneamh agus dóchas ann. Ina theannta sin, tá sé réidh le páirt a ghlacadh sa díospóireacht ar an athrú bhunreachtúil ar an oileán seo. Molaim Róisín as dul i gceann an taighde seo agus as a chur i gcrích. Tá mé ag dúil go mór leis an tuairisc a léamh agus leis na torthaí a phlé.

Is linn uilig an teanga. Ceanglaíonn sí den tír muid, ó thaobh staire agus cultúir de, inár logainmneacha agus inár sloinnte. Cruthaíonn sí an domhan mórthimpeall orainn. Mhúnláigh an Ghaeilge an stair againn; tá an saol san am i láthair á mhúnlú aici, agus déanfaidh sí amhlaidh san am atá romhainn. Is linne uilig an Ghaeilge. Is linne uilig Éire nua athaontaithe.

QUB Report: 'A United Ireland: A Transformative Opportunity for the Irish Language and Gaeltacht'

[Translation: Today, in Queen's University, a research report called 'A United Ireland: A Transformative Opportunity for the Irish Language and Gaeltacht' is being launched. Given the momentum and the head of steam building around the discourse on a united Ireland, research projects such as this are extremely important; they are the building blocks for our new Ireland.]

This particular research project is particularly relevant, given the direction of travel for Irish and the booming Irish-medium education sector. Moreover, census figures indicate an increase in the number of Irish speakers across the island. All this in spite of attacks on our language in the Six Counties and in this Chamber, in spite of lip-service being paid to it in the Twenty-six Counties and in spite of the crisis in the Gaeltacht. The ever-growing Irish language community is energetic, hopeful and ready to be a part of the discourse on constitutional change on this island. I commend Róisín for undertaking and completing this research project. I am thoroughly looking forward to reading the report and to engaging with its findings.

The language belongs to us all. It binds us to the land, historically and culturally, in our placenames and in our surnames. It forms the world around us. It is about not only our past but our present and our future. The Irish language is for us all. A new, reunified Ireland is for us all.]

Department of Education Capital Works Programme: Dunclug College

Mr Frew: Last week, the Education Minister, Paul Givan, announced that four new-build major works projects and nine school enhancement projects would progress to construction stage. The four major works projects are Enniskillen Royal Grammar School; Priory Integrated College, Holywood; St Malachy's Primary School, Armagh; and Dunclug College, Ballymena. Those projects have been in planning for a significant number of years, and I am so glad that the Education Minister, Paul Givan — a Minister who continually delivers — was able to advance them.

Knowing where we sat with regard to Dunclug College, I knew that it was vital to get the Education Minister to Dunclug to see for himself the excellent facility that is Dunclug and the talented pupils who are educated at that school in Ballymena. Irrespective of my really good lobbying skills, the school sold itself. The pupils

put on a display for the Education Minister that was second to none. I know that the Minister went away knowing that he made the right decision in progressing Dunclug College in Ballymena through the major works programme.

It is vital for Dunclug — for that area, Ballymena — and for pupils, families, parents and everyone connected with education that the school builds progress. However, we should not stop there. I am glad to say that the Education Minister is not content to stop there: he wants to push on. He wants more capital in order to bring forward more school-build projects across the Province. The Finance Minister, the Executive and the Assembly should support the Education Minister, who is delivering for education, for our children and for Dunclug.

I have a list of schools that the Education Minister should go to throughout North Antrim that need new builds and better facilities, but we have made a start. I am glad that the Education Minister is from my party and that we are able to progress those projects. I wish that the Executive and the Assembly would support him more, because we have in him a Minister who is delivering, who set down a marker by saying that he would progress education in this country and who has done so.

I thank Paul Givan, the Education Minister, for his work on Dunclug, for coming to see the talent on display in that school and for the new build that Dunclug will surely get now.

Tax-free Childcare

Mrs Guy: I will highlight an issue that impacts unfairly on families across Northern Ireland who are denied access to vital childcare support. Tax-free childcare is aligned to the English school year, which means that, in Northern Ireland, children born in July and August can miss out on up to a full year of support during their final year of primary school.

That is not the only impact. To access the Northern Ireland childcare subsidy scheme, parents must be in receipt of tax-free childcare, so the parents who are impacted on are hit twice. That is an untenable position at a time when childcare costs remain high and families are in the middle of a cost-of-living crisis.

I raised the matter at the Education Committee and directly with the Finance Minister. I will continue to press the UK Government to address that clear inequality. I call on the Education Minister to look at how families who

are excluded from tax-free childcare by that administrative anomaly in Westminster can at least be brought into the Northern Ireland childcare subsidy scheme.

At a time when families are struggling, our Ministers, who have the power to act and make a difference to the cost that families pay, should do just that.

Place-Name Project

Mr Gildernew: I will raise the issue of the collapse of the Place-Name Project on the watch of the Minister for Communities. Continued funding of £90,000 per annum for that project would mean only a fraction of the funding that the Minister has announced for his pet projects. He is a Minister who can spend over £700,000 on musical instruments for marching bands; a further £100,000 to cover bands' travel expenses; £425,000 on American independence celebrations; and £40,000 on Belfast Orangefest *[Interruption.]*

Shamefully, the Members opposite cheer those partisan funding allocations.

11.15 am

Instead of promoting the Irish language, the Minister has embroiled himself in multiple court cases on Irish language signage in Grand Central station and in the Belfast City Council area, which recently failed. He has removed Irish language logos from his Department's branding, blocked increased funding for the Irish language, failed to bring forward an Irish language strategy and failed to support the key Place-Name Project. The Minister has tried again today to claim that it is not his responsibility, and, once again, he has failed. The fact that it is his responsibility is evidenced not only by his letter to me in April but by a letter from his Department in 2022 accepting that he is responsible for funding it. The Minister's strategy is not to promote or to develop the Irish language. Instead, he seeks to suppress it and to make it invisible. He will also fail in that.

Domiciliary Care: Rural Areas

Mrs Dodds: Once again, a crisis in domiciliary care is being talked about in the news cycle. This time, an independent provider is saying that it will withdraw services in rural areas. I wish that I could say that this is a new crisis, but it is part of a continuing crisis that, I am sad to say, the Minister has refused to address. No

action has been taken on this issue, despite many promises having been given. In many ways, that is symptomatic of the way in which the Health Department works: refusing to address issues that are of primary concern to our constituents across Northern Ireland. Sadly, the impact of that failure will be felt by the most vulnerable in our community, including the disabled and the elderly. That is particularly the case in rural areas, where it is very difficult to find those additional care packages.

Not only is it a failure to look after our most vulnerable but it puts enormous stress on families across Northern Ireland. I am sure that I am no different from any other MLA across the Chamber in receiving many emails about this issue in any given week. The statement from the care sector that it may have to withdraw services in rural areas is heartbreaking for those who deliver the care. They do the job not for the money or the glory but because they care about their patients, their community and the elderly within it. Last year, the Minister made promises to deliver the real living wage to the domiciliary care sector. Unfortunately, we have not yet seen that done. That is a signal failure. The crisis has been exacerbated by the rise in fuel prices. We need to see the trusts in particular address the issue. I have had a number of representations from domiciliary care workers who simply state that it is impossible to go to work because the cost of doing so is exorbitant.

This morning's news about the Southern Trust is very concerning. I will be meeting domiciliary care workers from the Southern Trust shortly. They talk about a reduction in time spent with clients, a reduction in the number of —.

Mr Speaker: The Member's time is up.

Mrs Dodds: Sorry. Thank you, Mr Speaker.

Mr Speaker: Thank you.

Legacy: Explosives

Mr Burrows: The scale and duration of violence during the Troubles demands not only remembrance but rigorous examination. Regrettably, that examination has been lopsided. All violence was wrong, but, too often, history has been rewritten north of the border and untold south of the border. For more than two decades, over 10,000 explosive devices were deployed across Northern Ireland and Great Britain, mainly by the Provisional IRA. That bombing campaign destroyed infrastructure, cost billions of pounds and

destroyed lives. The question of who armed the Provisional IRA before Semtex arrived from Libya has never been asked. Evidence presented at Westminster and the Houses of the Oireachtas over many years has pointed to the loss, theft and diversion of commercial-grade explosives from a factory in the Irish Republic. The concerns were not isolated; they were raised repeatedly. However, no action was taken on the loss of explosive material from that factory.

A former colleague of mine has spent years researching evidential and archival material from the 1970s and 1980s, and it shows that a very substantial proportion of the high explosives that were in the hands of the IRA and that were recovered by the security forces from either undetonated devices or searches originated from a single source: the Irish Industrial Explosives facility in Enfield, County Meath. The security forces in Northern Ireland have been accused of collusion simply for missing a piece of intelligence or not having the opportunity to interview one witness, yet, over many years, tons of commercial explosives from a factory in the Republic of Ireland end up in the murderous hands of the IRA. That issue was raised multiple times, and little or no action was taken. Why is that? The scale of the leak of explosives is vast. In 1973, 1974 and 1982, it is clear, if you review Hansard, that all gelignite recovered by the security forces emanated from that factory in the Republic of Ireland.

This is a matter of profound public importance. It goes to the heart of how the IRA sustained its bombing campaign. Our victims need the truth. Human rights lawyers have used endless inquiries that have lined the pockets of a small number of solicitors in Northern Ireland, yet Dublin has not instigated any inquiry into those bombs that originated from the Irish Republic. The UK Government's handling of legacy has been disgraceful. They have allowed history to be rewritten; they have allowed terrorists to turn the tables on the honourable men who served; they have been led by the Dublin Government; and they have had rings run round them by republican lawfare. I now ask that the Government take steps to find out why explosives came from Irish Industrial Explosives without checks.

Coleraine Football Club: Irish Cup Victory

Mr Bradley: It is with great pleasure today that I offer my heartfelt congratulations to Coleraine FC on a truly magnificent achievement on Saturday, as it won its seventh Irish Cup after a

thrilling 3-2 win over Dungannon Swifts. That was made all the more important given the way in which Dungannon played under the management of Rodney McAree. It was a fantastic final — one of the best that I have seen in many years. This was not just a win; it was a statement and a showcase of resilience, quality and belief. To come through such a competitive final and emerge victorious speaks volumes about the character of the squad.

Credit must go, first and foremost, to Henry Ross, Randal and Patrick, the club shareholders; Dale Pryde-MacDonald, whose leadership as CEO has helped to guide the club with clarity and ambition; and manager Ruaidhrí Higgins and his backroom staff, whose technical acumen, preparation and commitment have been evident in every performance. To the players, what a journey you have delivered for the fans: runners-up in the league and Irish Cup winners. The run-in to the season after the split has been nothing short of exceptional. Week after week, you have treated supporters to some of the most entertaining football for many's a day at the Showgrounds.

The attacking intent, cohesion and spirit have re-energised the club and supporters alike. The triumph feels especially significant as we look ahead to next year, with the centenary of Coleraine Football Club's acceptance into the Irish League in 1927. Born from an amalgamation of Coleraine Olympic and Coleraine Alexandra, the club has grown into a cornerstone of Northern Ireland football. To mark that milestone on the back of cup success feels both fitting and symbolic. Today, we celebrate not just a victory but a legacy — past, present and future.

I pay a personal tribute to big Colin and the patrons of Patsy's Bar in the town for their personal messages of support over the past week. I had to get that in, Mr Speaker. *[Laughter.]* Once again, congratulations to everyone connected to Coleraine Football Club. You have done your town proud.

Coleraine Football Club: Irish Cup Victory

Ms Sugden: I, too, recognise what was truly a special moment at the weekend, as Coleraine Football Club lifted the Irish Cup following a thrilling final against Dungannon Swifts. More than 11,000 supporters from both clubs travelled to Windsor Park, creating an atmosphere that reflected the very best of our local game. Dungannon Swifts deserve real

credit for their part in that occasion, both on the pitch and in the stands.

This is about more than just a great result. In the weeks leading up to the final, you could feel something building right across Coleraine. The blue and white army was out in force. There were flags on the lamp posts and in windows, and businesses proudly showed their support. The support was everywhere, and it spoke to a town coming together behind something that belongs to them. For those of us who are Bannsidiers, the connection runs deep. It is about identity as much as football. It is about the club that we grew up with, stand by and feel part of through the highs and the lows. That was clear in the stands: the support was constant, loud and fully behind the team from the start to the finish. There was a real sense that the players were carrying an entire town with them.

Coleraine FC fans are exceptional. Week after week, they turn out in numbers that rival and often exceed some of the bigger clubs in Belfast. Anyone who has stood in the Showgrounds on a Saturday afternoon knows exactly what the club means to people, and that matters more when we recognise where the club is based. Coleraine Football Club sits in one of the most socially deprived areas of Northern Ireland, yet it brings something incredibly positive into that space. It brings joy, pride and opportunity, not just in one area but across the town and the wider north-west. Our success comes on the back of a strong league campaign, where we finished as the runners-up, and it is a team that is clearly on an upward trajectory. It is Coleraine's seventh Irish Cup, and the first since 2018, which makes the moment all the more meaningful. I pay tribute to Ruaidhrí Higgins because it has been an incredibly difficult time in his personal life, yet he has led his team to silverware in his first year in charge, and that speaks to the resilience and belief that he has built in the squad.

There is real opportunity in what Coleraine FC is building. It is a club on the rise. We are going to Europe, and the team has a strong community behind it and a proven ability to deliver success. The team will take it as far as it can, but it cannot do it alone. We need to see more consistent investment in local sport. Too often, funding feels like it is concentrated in the same spaces, where clubs such as Coleraine, despite their success and community impact, are left trying to bridge the gap themselves. If we are serious about growing our game, supporting our communities and building on success, the investment needs to be spread more fairly. This is not just about one club; it is

about what clubs such as Coleraine represent right across Northern Ireland. I am mindful that the Minister for Communities knows both clubs well. I hope that he will recognise the opportunity here and consider how we can better support them going forward.

Assembly Business

Public Petition: Drumaness Bus Stop: Street Lighting

Mr Speaker: Nick Mathison has sought leave to present a public petition in accordance with Standing Order 22.

Mr Mathison: I am grateful for the opportunity to present the petition to the Assembly today. Members may not be familiar with the village of Drumaness; it is a very small rural community that is just past Ballynahinch in my constituency. I carried out a constituency surgery in Drumaness just before Christmas and received feedback that there was real concern in the community about the safety of the bus stops as you leave the village and head towards the A24 to Newcastle and Ballynahinch, particularly because schoolchildren have to cross a 40 mph road in the winter months, with no street lighting to access their school buses. It is simply not safe. When I spoke to residents — I knocked on lots of doors to highlight the petition calling for street lighting to be installed — the support in the village was unanimous.

There are only a few hundred houses in Drumaness, but we have 321 signatures from residents who support the installation of street lighting at the bus stops on that road. It is a simple matter of basic road safety. I am sure that all Members have received correspondence from the Infrastructure Minister when requests like this are submitted, and policy is often quoted about frontage development not being present on both sides of the road. The residents of Drumaness are very clear that the lack of frontage development has no bearing on the safety of their children and young people who cross that road in the winter months to access school transport. There is no objective way to defend asking children to cross a road in complete darkness just so that they can get to school.

I hope that the Minister will listen to the calls. The petition is very simple; we are not asking for street lights along the whole length of the A24. I completely accept that it is a rural road and full lighting would not be appropriate, but if

we expect our children to use those bus stops every day, they should be lit and safe so that the children can access school transport without being concerned about drivers coming down the road at 40 mph, or in excess of that, as they try to access public transport. I trust that the Minister has some discretion that she can exercise. The residents of Drumaness will be watching very closely to see how she responds to the request for street lighting to be installed at a key location in their community.

Mr Mathison moved forward and laid the petition on the Table.

Mr Speaker: I will forward the petition to the Minister for Infrastructure and send a copy to the Committee for Infrastructure.

11.30 am

Committee Membership

Resolved:

That Mrs Julie Middleton replace Mr Peter Martin as a member of the Committee for Education. — [Mr Clarke.]

Mr Gaston: On a point of order, Mr Speaker. Last Tuesday, during the debate on the motion on NHS dentistry, I pointed out that the Irish Sea border will create further complexity for the supply and cost of dental amalgam. In his response to the debate, Mr Nesbitt told the House that I was "entirely wrong". He said:

"It is UK-wide, following an international agreement. I am happy to put that correction on the record." — [Official Report (Hansard), 28 April 2026, p63, col 1].

Well, well, Mr Nesbitt. The Government's own explanatory memorandum to the Control —

Mr Speaker: Mr Gaston, you requested to make a point of order.

Mr Gaston: I did indeed, Mr Speaker.

Mr Speaker: Will you therefore make a point of order?

Mr Gaston: Absolutely.

Mr Speaker: You are making a statement, and it will not be tolerated.

Mr Gaston: To back up what I said during the debate, the Government's own explanatory memorandum to the Control of Mercury (Enforcement) (Amendment) Regulations 2025 makes clear that the EU mercury regulations apply directly in Northern Ireland under the terms of the Windsor framework.

Mr Speaker: Order.

Mr Gaston: I trust, Mr Speaker, that —

Mr Speaker: Order, Mr Gaston. Order.

Mr Gaston: — you will call the Minister of Health to the House to correct the record.

Mr Speaker: Order. If you want to make the case that Mr Nesbitt has misled the House, you can do so, but we do not need a whole speech and drama about it. You can make your case, but we will not have a whole speech about something that should take about 30 seconds to raise.

I ask the Members to take their ease before we move on to the next item of business.

(Mr Deputy Speaker [Dr Aiken] in the Chair)

Ministerial Statement

Katie Simpson Review

Mr Deputy Speaker (Dr Aiken): I have received notice from the Minister of Justice that she wishes to make a statement. Before I call the Minister, I remind Members that they must be concise in asking their questions. This is not an opportunity for debate, and long introductions will not be allowed. Minister, over to you.

Mrs Long (The Minister of Justice): Thank you, Mr Deputy Speaker. We all know the name "Katie Simpson". Regrettably, we do so because of her senseless, untimely and tragic death. We also know the name "Jonathan Creswell", a convicted abuser and the man charged with Katie's rape and murder, who was found dead at home on the second day of his criminal trial. Moreover, we know that many individuals raised concerns about the circumstances surrounding Katie's death and the investigation that followed. I thank all those individuals for their moral integrity, their bravery in coming forward and their persistence. They fought to give Katie a voice. As a society, we owe them a debt of gratitude.

With your permission, Mr Deputy Speaker, I will make a statement on the publication of the report of the independent review that I commissioned into Katie's death. I commissioned the review to seek to understand what can be done at the earliest stages to identify and manage serious offenders and to identify and protect potential victims. The independent review was undertaken by Dr Jan Melia, and I thank and commend Dr Melia for the integrity, sensitivity and thoroughness that she brought to the work.

I also pay tribute to Katie's family. Their lives changed irrevocably when Katie died. We cannot imagine the pain or magnitude of their loss, but we witnessed their courage and determination to seek answers to ensure that Katie's death was not in vain.

Before I continue, I ask Members to pause and remember Katie: a beautiful, talented and innocent young woman whose memory lives on among those who knew and loved her. *[Pause.]*

I publish the report today in the alarming knowledge that, since 2020, 30 women have been violently killed in Northern Ireland. Murder is the ultimate manifestation of domestic and sexual violence and abuse. All abuse is reprehensible, but it is pervasive in all its forms and across all walks of life in Northern Ireland. We must therefore be relentless in our condemnation of that behaviour, and we must support victims by giving them the protection that they need to live safely and without fear. As politicians, our responsibility is to compel, facilitate and deliver tangible change.

Too often, in reviews such as this, the personal story can be overshadowed by the necessary focus on external systems and procedures. However, Dr Melia's report very much keeps Katie and her family front and centre. It was a bespoke review without the legislative underpinning of a domestic homicide review or a public protection arrangements Northern Ireland (PPANI) serious case review. However, my Department and, indeed, the Executive are committed to tackling abuse and ending violence against women and girls (EVAWG). As such, I had to find a way to look into this case for Katie's sake and to ensure that systems change, attitudes change and we all get better at preventing harm, protecting the vulnerable and avoiding the circumstances that led to Katie's untimely death. At the outset of the work, I received a commitment to fully cooperate with the independent reviewer from the senior leaders of a range of relevant organisations. I am grateful to them for their active participation and candour throughout.

With the endorsement of Katie's family, the report is published today in its entirety. I urge everyone to take the time to read it and to reflect on the missed opportunities, both for Katie and the agencies that encountered her and her abuser over many years. It makes for uncomfortable reading, but that transparency is vital.

I ask Members and the general public to consider whether anything in the report resonates with their lives or the lives of people they know. If the answer is yes, please take that first step and reach out to someone you trust and can talk to. If you do not have that trusted person, then please make contact with professional services and organisations.

In anticipation that the publication of the report may trigger distress for victims and survivors, I have asked my Department to engage proactively with support services to ensure that they are prepared for an increase in requests for help. Anyone in immediate danger should always contact the police, without delay.

The message that I hear often from victims' representatives is that we must not shy away from difficult conversations. That is a simple but critically important point. For too long, abuse has been allowed to thrive in the shadows that are created by fear, silence, stigma and control. We need to shine a light into those shadows. We need to remove the stigma, and we need to speak openly and honestly about abuse. Avoiding those conversations does not protect victims: it entrenches harm.

The lives of Katie's family and those who loved her have been tainted and irreversibly impacted on by what happened. The only way that we can truly pay tribute to Katie's memory is to learn the lessons from the circumstances that led to and, ultimately, resulted in Katie's untimely death. The only good that can possibly come from this tragic loss is if others are better protected from such harm in the future.

I turn now to the report itself. Dr Melia sets out, in stark and uncompromising detail, what went wrong. The review, however, is not about focusing on individual practices or apportioning blame. Its fundamental purpose is to instigate collective, system-wide learning and to implement change. I also welcome the fact that the review's report will help inform the ongoing Coroner's Court inquest into Katie's death.

There are 16 detailed recommendations codified in a proposed action plan. In testament to Katie's memory and her family, we must give that action plan our undivided attention without

delay. I am therefore pleased to announce that Dr Melia will coordinate and chair an implementation group. That will provide much-needed continuity, which I welcome. I also hope that it provides assurance to Katie's family and friends that the action plan will be actioned. I call on the relevant agencies and organisations to fully support and cooperate with Dr Melia in that process.

The majority of the 16 recommendations are policing-focused, and the PSNI has made a number of recommendations as part of the review. Lessons from Katie's death, however, are not confined to the criminal justice arena, so there is no hierarchy of importance.

I wish to emphasise the six critical areas that Dr Melia identified for intervention. There is much room for improvement. Katie's death was concealed and staged as suicide, and it is abundantly clear that investigative practices and mindsets must change.

In the Chamber today, I will highlight just some of Dr Melia's detailed recommendations. In policing, coercive control must be recognised as a serious and potentially lethal factor. Patterns of behaviour, not isolated incidents, must drive assessments of risk. The review provides a clear framework, including six new indicators of concealed homicide, which should be embedded across sudden death investigations and specialist training. There, too, is a clear need to develop mandatory use of trauma-informed, victim-centred investigative models. Information about Katie was missing from the case. Suspicious death and suicide investigations should therefore include comprehensive victim profiling. Relatedly, we must seek to combat cognitive bias and confirmation bias. Police officers need to be fully trained to recognise and challenge gendered stereotypes or victim-blaming narratives. A lack of trust in victims and poor investigations empower perpetrators such as Jonathan Creswell. That also extends to forensic investigation standards in all sudden or unexplained deaths. Forensic protocols should reflect trauma-informed and gender-sensitive practices and require pathologists to consider coercive control and staged suicide as part of their analysis.

The absence of specialist domestic abuse input at the earliest stages of Katie's investigation was also a critical failing. The review is clear: specialist domestic abuse officers must be involved from day one wherever there is any history of violence within a family. We must ensure that expertise is shared, not siloed. Police team coordination and case ownership

must also improve. In Katie's case, the investigation was passed between departments without a designated lead, causing confusion and delays. That lack of ownership contributed to missed opportunities and a failure to act on known risks.

In her recommendations, Dr Melia also sets out that, in cases involving allegations of violence, coercive control or intimate partner abuse, bail conditions must focus on the safety of victims and their families. It is a matter for policing and the judiciary as to the granting and setting of bail conditions. However, I implore decision-makers to recognise the importance of incorporating coercive control risk indicators and including victim/family consultation when making bail decisions.

I also welcome the recommendation relating to risk assessment in PPANI, specifically the need for recognising coercive control as a continuing risk even in the absence of a current relationship.

I mentioned earlier that the lessons from Katie's case also extend beyond the sphere of criminal justice. We are all aware of the sustained pressure on our emergency departments, but recommendation 14 is a critical learning point, and that is to:

"Ensure that all emergency department (A&E) attendances involving physical injury prompt safeguarding considerations, particularly where domestic abuse is suspected or could be a contributing factor, or where there are multiple presentations."

The equestrian industry was also central to Katie's young life. Recommendation 16 makes clear the need to:

"Introduce mandatory safeguarding policies, training, and vetting across all equestrian facilities, including unaffiliated stables."

It is of great concern to me that, as I stand in the Chamber today, there may be other young girls or women unknowingly vulnerable or already subject to predatory and secretive abuse.

That brings me to reflect on a final recommendation, perhaps most fundamental of all, which is to develop and broaden Northern Ireland-wide campaigns on coercive control to include suicide and homicide. It is absolutely imperative that we educate all our citizens on coercive control, in all its forms and potency.

I conclude the statement today with a clear message. My Department and our partners will act on the recommendations contained in Dr Melia's report and ensure that lessons are not simply learned but embedded in practice. I do not underestimate the scale of the task. However, the work will be led by Dr Melia, and, therefore, I can confidently say that it will be in very capable hands.

I must also take this opportunity to remind Members of the domestic and sexual abuse strategy 2024-2031, led by my Department and the Department of Health. The initial three-year action plan contains 56 actions, which is a resounding reminder of how much work is yet to be done.

The Executive's strategy on ending violence against women and girls has now entered its second delivery phase. Both strategies quite rightly demand that the Executive work collaboratively and tenaciously to deliver on those many commitments. We must do so in Katie's memory. We must do so in memory of all victims before and after Katie's death. We must do so to reduce harm and save lives. I commend the report to the Assembly.

11.45 am

Mr McGlone: Members in the Chamber will particularly be remembering and thinking about Katie Simpson and will want to extend our sincerest sympathy and thoughts to her family and friends, some of whom are with us today. Minister, what robust protocols will be put in place to ensure that there is full accountability for police officers where investigations have been poorly conducted, such as the investigations into the abuse and murder of Katie Simpson?

Mrs Long: I pay tribute to the family of Katie Simpson and to the many people, friends and colleagues who loved her and have campaigned for justice on her behalf. The Member is right to pay tribute to them at the beginning of this.

It is important that the report is recognised for what it is. I was clear when I initiated it that it would not hold individuals to account. The Member will be aware that there is still an ongoing inquest, and the report does not cut across that. Police Ombudsman investigations also remain open at this time. It is important that, before we discuss issues around direct accountability, we allow those processes to conclude, but I agree with the Member in principle that those who failed Katie and,

indeed, other victims should be held accountable for those failures.

Mr Frew (The Chairperson of the Committee for Justice): I thank the Minister for her statement on this important issue. Like her, I pay tribute to Katie Simpson's family and everyone who loved her and knew her as a friend. The Minister has welcomed the recommendation for risk assessment within PPANI arrangements and:

"specifically the need for recognising coercive control as a continuing risk".

However, Jonathan Creswell was never referred to PPANI, and the review was to consider whether there had been opportunities for referral. What did the review determine about why he was never referred to PPANI, and what specific recommendations have been made about when it may be appropriate to refer such an offender to PPANI to help to prevent similar tragic cases in the future? Similarly, the review was to consider whether there had been opportunities for referral to the multi-agency risk assessment conferences (MARAC) process, given that Katie had presented to hospital with Creswell on a number of occasions. What were the review's findings and recommendations on that matter?

Mrs Long: I thank the Member for his question. Of course, he is correct that PPANI did not have oversight of the case and that MARAC responses had not been triggered. Dr Melia's review identified that missed opportunity to bring Creswell into PPANI, and that is critical learning for everyone who is involved. Practitioners in the public protection agencies have to use their professional judgement to identify dangerous individuals and ensure that they are referred at the appropriate points. Key agencies have committed to working with Dr Melia to implement the findings of her report and ensure that dangerous offenders are referred to PPANI in the future. My Department does not have an operational role in the day-to-day delivery of those arrangements, but we have responsibility for the overall statutory framework and associated guidance. I have already commissioned my officials to review the guidance to ensure that it continues to provide a robust and consistent framework for safeguarding and maintaining public protection so that people can have confidence that those referrals will be made and that there is clarity for all involved as to how and when to do so.

Ms Sheerin: Like others, I echo the remarks that have paid tribute to Katie Simpson's family.

This case has touched the hearts of many who have read the details of it, because it was sickening and harrowing. Katie was very clearly failed by systems that should have protected her.

Minister, have you given any consideration to a review of a specific offence of suicide that has been induced by domestic violence? Although Katie was murdered, even when it was thought that she had died by suicide, there was no further investigation of the person who was responsible for her death.

Mrs Long: I thank the Member for her question. We have corresponded on the matter for some time. There are two aspects to that, the first being that coerced suicide is already against the law. Encouraging or enabling someone to take their own life is a criminal offence. That is the first thing to say. The more challenging part of it is recognition that the person responsible for that is fully responsible for the suicide. For example, the inclusion of suicide in the sphere of domestic homicide reviews, as is happening now and is starting to be rolled out in England and Wales, is something that we are looking at. The problem can be in identifying a causal link that is beyond challenge. Whilst there may be learning from those cases, holding someone legally accountable, beyond reasonable doubt, for the death of another person who has died by suicide can be incredibly complex.

In this case, however, the more pressing part is for people not to accept the cognitive bias, when they are told that someone has taken their own life, and to simply accept that at face value or not to continue to collect the forensic evidence that would be necessary either to confirm the death as a suicide or, indeed, to confirm that the death was not a suicide. That is the learning that comes from the report today.

The issue of coerced suicide, particularly in domestic settings, is one that weighs very heavily on me, because I am aware of the impact that it can have on individuals. There is, as I said, already an offence of coercing or contributing to someone taking their own life. However, proving beyond reasonable doubt that that is the cause is the biggest challenge that we face.

Miss McAllister: Minister, I am grateful for your initiating the review. If you do not mind, Mr Deputy Speaker, I pay tribute to Katie's family — her mum and dad — who are in the Public Gallery today. It is a really difficult time for everyone who loved Katie, including her friends and family, and we will continue in the quest to get answers and make change permanent.

I have been raising questions about the murder of Katie Simpson for years now, and it is really important that we have those answers. My question today is about the entirety of the police misconduct process. It has been reported that almost all the officers who were under investigation in relation to the Katie Simpson murder investigation have either retired or resigned. Does the Minister agree that the law that allows the investigation and, therefore, the misconduct proceedings to stop must be changed so that any investigation can continue regardless of whether an officer resigns or retires?

Mrs Long: I thank the Member for her diligence and commitment to pressing this issue, even, at times, when others would have been happier had she not done so. It has shown real commitment and courage on her part that she stood up for Katie and for those who loved her and to find the truth.

I share the Member's concerns about the number of officers who have retired from the PSNI while under investigation and the impact that that has on confidence in policing. I am committed to ensuring that we work to close the gaps in the misconduct process and to ensure that officers who have committed wrongdoing do not walk away from policing with a clean slate. The Department is already progressing a number of legislative proposals in relation to police officer misconduct by way of an amendment to the police conduct regulatory framework. The Member will also be aware that I have committed to drafting clauses for inclusion in the Justice Bill that will create a barred and advisory list for policing in Northern Ireland as well as facilitate misconduct proceedings in relation to former officers. An amendment to the Justice Bill is to be tabled at Consideration Stage in order to facilitate the lists and former officer proceedings.

I want to see a misconduct process that is as efficient as possible, and I am committed to working to take any potential steps that we can to improve those processes. In that respect, we are also working to make a number of improvements to wider misconduct procedures and to make legislative provision for matters where officers fail to meet vetting standards. That will result in two statutory rules relating to misconduct and vetting. The planned amendments to the Police (Conduct) Regulations (Northern Ireland) 2016 will also reflect the recently revised code of ethics in statute as a schedule to the conduct regulations. The vetting regulations will be a bespoke set of regulations that will be introduced in order to deal with officers who fail

to maintain vetting standards. All the proposed amendments will be subject to the relevant statutory scrutiny process. It is important to ensure the public's trust and confidence in policing and to challenge attitudes and behaviour where they fall short of those acceptable standards.

Mr Burrows: I welcome the Minister's statement. Katie Simpson was an innocent woman murdered by an evil man.

The issue of bail pops up. Despite being charged with murder, facing a trial, living near the border and having already tried to interfere with witnesses and pervert the course of justice, Jonathan Creswell was granted bail. That is inexplicable. That decision allowed him to commit suicide and deny justice to the family. Does the Minister agree that there is something deeper in our justice system — I have warned about it for a long time — including our Police Service, whereby the rights of the suspect are given too much weight and the rights of the victim and the need for public protection are not given enough weight? Does she agree that it is time for a fundamental reset so that we protect victims, protect the public and do not always err on the side of the suspect's rights?

Mrs Long: I think that we all agree in principle, with the benefit of hindsight, that the decision to permit bail on that occasion was deeply flawed. However, such a decision is made without the benefit of hindsight, and it falls to the PSNI and the courts and not to me as Justice Minister. As I said in my statement, it is important that the risk to victims and witnesses and, indeed, the risk to any future trial should be properly considered when making a decision about granting bail.

I do not agree with the Member when he says that the pendulum has swung too far towards the rights of those who are accused, but I agree that there has to be a careful balance. That balance has to be maintained by the information that the PPS and the PSNI present to the courts and by the judiciary's careful consideration of it. There is a balance of rights. Decisions not to grant bail where bail is appropriate can, of course, be challenged, as can decisions to grant bail. There is a balance to be struck. From my perspective, I want to ensure that, when such decisions are made, particularly in cases where coercive control has been a factor, the implications for victims and witnesses are properly and thoroughly considered before any decision is reached.

Ms Finnegan: I extend my thoughts to Katie's family, who are very bravely here.

Minister, last week, the Criminal Justice Inspection review of the Domestic Abuse and Civil Proceedings Act 2021 showed a poor uptake and a reducing quality of training in the justice system. It is clear from your statement that more work needs to be done in policing to recognise coercive control as a serious and potentially lethal risk factor and to recognise and challenge gendered stereotypes and victim-blaming narratives. What more can be done by you and your Department to ensure that the Domestic Abuse and Civil Proceedings Act is implemented in full?

Mrs Long: First, we will ensure that this report's specific recommendations are implemented. As I said, I have already asked Dr Melia to continue her work, which is unique in this space, to oversee the implementation of the arrangements, because it is important that there is uptake. It is also important that we monitor delivery of training. Whilst my Department is not responsible for the training of front-line police officers or of members of the judiciary or Public Prosecution Service, given that they are operational and independent, it is nevertheless important that the House and my Department have the information necessary for us to scrutinise that training and see whether its uptake has been adequate or whether more can be done. A number of areas have been identified as part of the CJINI report and, more widely, as part of reviews that have been undertaken over recent weeks and months of the PSNI's conduct and attitude that give food for thought about where further training may be beneficial to officers, not just at the commencement of their training to become officers but throughout their time serving in the PSNI. We will continue to have that conversation with the PSNI, the PPS and the other parts of the justice system, as well as, crucially, with the Policing Board, which holds the Chief Constable to account for performance on such matters.

12.00 noon

Mr Kingston: The murder of Katie Simpson and the attempted cover-up by Jonathan Creswell were deeply disturbing, and the review has rightly attempted to learn lessons and make lasting changes to statutory responses.

Minister, the review highlights the need for pathologists to consider coercive control and staged suicide as part of their analysis of all sudden or unexplained deaths and for all

attendances at medical facilities or elsewhere that involve physical injury to prompt safeguarding considerations. Some may consider such routine questioning to be unwanted and even distressing, but, in the interest of victims, how will you and the wider Executive promote public messaging that such considerations must be taken into account and such questions asked in every difficult circumstance?

Mrs Long: In the case of any unexplained or sudden death, there are always opportunities to remain alert to the fact that the facts as they present themselves initially may not reflect what has happened. I think that the Chief Constable referred to it as maintaining "professional curiosity". That needs to be done. Every unexplained or sudden death, even where it is assumed to be a suicide and presents as such, needs to be treated as a crime scene until such times as it can be verified that it no longer is. That has already changed in how the PSNI conducts its investigations. Time has elapsed since Katie's case, and changes have already been instigated in that regard.

There is also a need for professional staff in hospitals to broach such issues sensitively. They often have to do so in the context of visits to the maternity ward, prenatal appointments and other sensitive circumstances, particularly where there is a pattern of repeat attending or where people turn up at hospital always with the same person accompanying them, who always answers questions on their behalf. There is therefore a need for us to be willing to ask those questions and to be asked those questions. We have to accept that, while it may not be relevant to our particular case, it is part of the overall picture that staff are trying to build of what has happened in each case that comes through the doors. There are things that we, as individuals, can do to promote that approach. As Members will see as a result of the recommendations, there are things that the health trusts will, undoubtedly, need to do with regard to guidance on how that can be done most appropriately, but, in the majority of cases, people in the health trusts will understand the need for sensitivity and will know how to broach those subjects.

I suppose that the real challenge for hospital staff is to get the time and space privately to engage with a patient so that they can ask those questions in an appropriate way and, hopefully, elicit the right answers. Staff cannot rely on a simple denial as evidence that no abuse is taking place, because people may be under pressure, particularly where there is coercive control, to cover up the violence and

abuse and to cover for the perpetrator. That also needs to be at the back of people's minds. If people are at least given the opportunity to make a disclosure, that is a starting point.

Ms Egan: I join others in paying tribute to Katie's family and loved ones, who have very much been in my thoughts.

Minister, you said that the review is about honouring Katie's memory by ensuring that all the ways in which she was so sadly failed cannot be repeated. That is hugely relevant for tackling violence against women and girls. Will you outline some of the wider work that will complement the implementation of the review's recommendations?

Mrs Long: The Member is right: the recommendations are specific to what happened in Katie's case. Although the learning from them is specific to her case, there are significant implications more widely. Such things do not happen in isolation; they form patterns of practice, thought and behaviour that can also impact on other people.

The implementation of some of the recommendations will make a tangible difference to our system. In addition, through the EVAWG strategy, we continue to work with the PSNI and the Executive Office to deliver the Power to Change public awareness campaign. I have talked a little already with Members about the need to raise awareness of why people might be asked those questions when they turn up at hospital, for example. We are also looking at the implementation of the domestic abuse offence to capture coercive and threatening behaviour. Training is very much part of that. A diverse range of legislative measures aimed at addressing sexual offending, coercive control and domestic abuse has been introduced, and further measures are planned that will tackle the use of online or technologically aided abuse. Officials are also planning the introduction of domestic abuse protection notices and orders, and, hopefully, that will provide additional protections for victims of domestic abuse. A new, enhanced, multi-agency model that will replace MARAC is being developed and will be in place in 2026-27. It will deliver earlier intervention, stronger coordination and a greater focus on managing perpetrator behaviour.

A comprehensive review of the statutory guidance underpinning PPANI is being scoped by officials. PPANI was first introduced in 2008, and amendments have been made to the guidance to keep pace with legislative developments in recent years. However, a

review of the guidance in its entirety is long overdue, so that is what we are embarking on at this point. By taking together that review, the domestic homicide reviews and, in particular, the review of Katie Simpson's case we have a robust work plan for putting the mechanisms in place that will better protect the community. However, ultimately, it will work only if those who are engaged in that work are committed to implementing it fully and faithfully on every occasion.

Mrs Dillon: I acknowledge the family of Katie Simpson and the people who have supported them and the families of all of the women who have died at the hands of their partners, ex-partners and men in their lives. The word "charming" was often used about Jonathan Creswell, and that is how such men get access to women and girls. That is how they get away with what they do.

In that vein, Minister, you talked about training, and we know that, in the PSNI, training is compulsory. We as Policing Board members will certainly ensure that we do our job in holding the PSNI accountable. However, much wider training is needed. I understand that the judiciary cannot be compelled to take part in training, but there are many failures. I look forward to reading the report in full to see exactly what the recommendations are and what has come out of it. There are many failures through the judicial system and through the PPS. Many of the women and girls we deal with tell us how they are being failed right from the beginning to the end of the system, not just in one part. I want to understand what conversations you have had with the judiciary, with the PPS and with the Health Minister on how we can seriously make sure that that training is compulsory through the powers that you have and the conversations that you have. The judiciary and the Health Minister have the powers to make it compulsory, and we need to see that happen.

Mrs Long: The first thing that I can commit to is to ensuring that every leader in every part of the justice system has a copy of the report and is able to reflect on its content. The Member makes the valid point that people are often referred to as "charming" or that they seemed to be reliable or trustworthy or an upstanding member of the community. I am tired of hearing people wax lyrical about abusers. It does not matter how they present to the public. It does not matter how they present to the people around them in their church or in their golf club or wherever it might be. What matters is what they do at home with the people they abuse, and that is the only thing that should matter.

The fact that somebody can present themselves as a Jekyll and Hyde character should not be to their advantage.

Abusers know how to present themselves. They know how to behave. They know how to get away with what other people would not get away with. They are predatory individuals. As you know, I have serious concerns about the use of things such as good character references in those categories of cases because we know that good character, as seen by those outside, means nothing in the context of the relationship that they have used to abuse another individual. Therefore, to me, they are not worth the paper they are written on. We need to be much clearer about where the law sits, and the Member will know that I am looking at that.

Ms Ferguson: I thank the Minister for her statement and for the publication of the independent review. Like everyone else, I pay heartfelt tribute to the family of Katie Simpson. This must be a difficult day, and our thoughts and prayers are with the family at this time.

Minister, the review sets it out that, in cases involving coercive control and domestic violence, bail conditions must focus on the safety of victims and their families. Is there a role for you in bringing in new legislation to amend the current bail regulations, and will you commit to including any changes in the Criminal Justice (Sentencing etc) Bill or in the forthcoming victims and witnesses Bill?

Mrs Long: The content of the Criminal Justice (Sentencing etc) Bill and the victims and witnesses Bill at this stage in the mandate is probably fairly tightly controlled. Any change to wider bail legislation would require significant policy development. It would also require us to look carefully at the balance of responsibilities and independence of the judiciary. However, that does not preclude what is in this report being implemented today. The recommendations in the report regarding consideration of the impact on victims and families in cases where coercive control is part of the mix can be implemented by any judge sitting today making a decision about bail. Bail can be resisted by the Public Prosecution Service or the PSNI on the basis of their assessment of the risk to the safety of the victim and their family. With or without legislation, therefore, that balance can already be considered. I encourage all involved in the justice system to read the report, read what is recommended and implement it as of today so that we do not end up with a further situation where a young woman not only loses her life

but is robbed of the right to justice as a result of decisions taken.

The Member is correct: this will be a painful day for Katie's family and friends. As I said, the report is a difficult read, and they are aware of its contents. I thank them for two things. First, I thank them for their dedication and commitment to ensuring that Katie would get some measure of justice and accountability. Secondly, I thank them for allowing the report, unusually, to be produced in full rather than simply be a kind of executive summary. The fullness of the report and the detail that is in it really matter. I hope that they will see a step change in how we deal with such cases and that, if nothing else, that will be a legacy that Katie will have left behind for other young women who follow in her footsteps.

Mr McReynolds: Minister, what will change immediately as a result of the review?

Mrs Long: A lot of things can change immediately. For example, I have outlined issues around the consideration of bail. That is simply a matter for the courts to consider. There is a plethora of issues that the courts can consider. Some changes have already occurred. A table at the end of the report shows the recommendations. Some have commenced, some are in progress and some are yet to be progressed, so there are opportunities even now with changes that have already happened.

The PSNI has identified and embedded learning in its death investigation manual, which I referred to earlier, and extra training has been mandated in relation to domestic abuse and coercive control, which is hugely important. Aspects of the EVAWG strategy, domestic and sexual abuse strategy and so on have been driven by operational learning predating publication of the report but linked to it. For me, whilst some areas will continue to develop over time, much in the report can be implemented straight away if there is the will to do so. With regard to cooperation to date with Dr Melia, there has been a willingness by all who were involved to engage with the report fulsomely and openly and to try to make the changes necessary to ensure that there is no repeat of what happened in that case.

Ms Hunter: I, too, add my love and support to Katie's family, who have been so badly failed. I greatly admire their advocacy, bravery and resilience.

Right now, Minister, there are families across Northern Ireland in the same horrific

predicament: the murder of a loved one staged as a suicide. How many families are having the death of loved ones re-examined?

Mrs Long: I do not have those operational figures to hand. The number has changed over time in that some have been investigated and discharged as genuine suicides, whilst others have been investigated and reopened as having, potentially, more sinister motivations. However, the report shines a light on the fact that simply because something is presented as suicide, particularly by the person's partner or by somebody in a close relationship, it should not be taken for granted that what is being said and presented represents the true facts of the case.

There has to be a presumption, until it can be proven to be a suicide, that there could be sinister motives. That is really important in terms of the professional curiosity that the Chief Constable spoke of in his response to some of these cases. It is important that all the evidence is gathered and that everything is handled in the way that you would handle a homicide until such times as you are absolutely certain that it is not one. It is clear from this report that evidential opportunities were lost as a result of the acceptance at face value of what was told to officers about the death of Katie Simpson. Had that not happened, perhaps what had actually happened would have been clearer sooner.

12.15 pm

Ms Mulholland: Like everyone else, I put on record my admiration for Katie's friends and those who loved her and her family. The Minister knows that I am really interested in safeguarding. There have been many failings in that area over the last while. Can you give us a bit more information about what changes in safeguarding, particularly in equestrian settings, you will bring in with this?

Mrs Long: Real issues have been highlighted. I was fortunate enough to have the opportunity to meet with Katie's family and discuss some of their concerns, particularly around safeguarding in the equestrian environment. Katie's death has exposed systemic safeguarding failures across Northern Ireland's equestrian sector. Many facilities, particularly unaffiliated yards and freelance operations, continue to operate without regulation, oversight or basic safeguarding protections. Dr Melia recommends that a phased, multi-agency approach is urgently needed, beginning with practical steps and building towards mandatory

vetting, cultural reform and sector-wide accountability. That is obviously not just an issue for the equestrian sector. We have to be alive to the potential for abuse of position and exploitation of children and vulnerable adults across all walks of life, whether those vulnerable adults are in a workplace or conducting a hobby or whether it crosses the line between the two, as so often is the case when it comes to equestrian pursuits. We need to look beyond the equestrian sector, though it is very important in Katie's case. We need to look to other areas where you have adults and young people mixing with differential power narratives between them and to how we ensure that those young people are adequately and properly safeguarded at all times from the abuse of power and trust.

Ms Bradshaw: I concur with what others have said in paying tribute to Katie Simpson's family, and I thank Dr Melia for her work on the review. Minister, the term "coercive control" has come up a number of times today. Will you please outline how the justice system will take more cognisance of that?

Mrs Long: The Domestic Abuse and Civil Proceedings Act (Northern Ireland) 2021 significantly strengthened protections for victims of domestic abuse, particularly when it comes to coercive control. It recognised that serious harm can be caused by not only physical violence but psychological, emotional, coercive and controlling behaviours. Dr Melia has made recommendations for further training for staff to identify indicators of coercive control and respond to them correctly. She calls for that to be embedded in decision-making during investigations, at bail hearings and in risk assessment and management. It also calls on multi-agency management of offenders under PPANI to ensure that coercive control is recognised as a continuing risk, even in the absence of a current relationship. The fact that someone has ended the relationship does not necessarily mean that the coercive controlling behaviour has ended, and it is important that people recognise the long tail that that can have on someone's life.

Furthermore, and importantly, the review recommends that we have to strengthen and broaden public awareness initiatives across Northern Ireland when it comes to coercive control. Those campaigns should also address and challenge victim-blaming attitudes. Sadly, we have heard some of those victim-blaming attitudes in our media, even over the past weekend. We need to foster better public understanding of abuse and its serious consequences and reach the public where they

are, whether that is at home, in work, medical settings or education, to ensure that we recognise that coercive control is a serious issue and does serious harm. It is no less harmful than physical violence; indeed, it has often led to some of the most serious cases of physical violence and homicide that we have seen.

Mr Durkan: I thank the Minister for her statement and for having had such an important piece of work carried out. Our thoughts today are with Katie's family and friends, but I cannot help thinking also of the late Paul Lusby, a constituent of mine, who raised early concerns about Creswell and felt that not only were those concerns dismissed but that he was demonised for raising them.

Minister, you hinted that, in contrast to your party colleague, some seemed content to shut the issue down. Will you elaborate on that? Is there any suggestion of political involvement or interference in the investigation of Katie's murder?

Mrs Long: First, I thank the Member for being proactively engaged in the matter. The report is there to be read, and there is no suggestion in it that that is a significant concern. However, the Member will be aware that much media attention and much discussion have surrounded the death of Katie Simpson. Many views have been expressed about an unwillingness to confront what was a very serious situation. That is what I was referring to when I spoke about those who seemed unwilling to look.

There is a tendency in all of us, when we take a position on something, to not want to go back and rethink that position. It is much easier to hope that someone else has got it wrong than to accept that perhaps we have got it wrong. If that is the prevailing culture in organisations, particularly hierarchical ones, it can be incredibly dangerous. Just because you are more senior does not mean that you have seen the thing that could be key in an investigation. It is often someone who is more junior and much closer to the issue who might have witnessed, or seen or felt uneasy about, something that really matters.

None of us in any walk of life should be so arrogant as to think that we cannot learn from others and should not listen to and take seriously the complaints when they are raised. One of the lessons from what surrounded Katie Simpson's death is about the number of people who had to raise concerns before their voices were heard. Not every victim will have so many people who are so committed to fighting their

case, and people's getting justice cannot be reliant on that.

Mr Carroll: I also pay tribute to Katie Simpson, and my thoughts are with her family. It is clear that we are, once again, dealing with a PSNI failure when it comes to violence against women and girls. I know that the family, through their solicitor, have raised serious questions about the PSNI. I do not know how thorough its investigation was and whether anything was concealed from it — I hope that it was not — but, Minister, are you happy with the PSNI's investigation of the murder and how its officers, including the senior officer in charge, handled the case? How many members of the PSNI have been subject to disciplinary proceedings because of the investigation of the killing of Katie Simpson, and for what reasons were they disciplined?

Mrs Long: I have already dealt with the fact that so many people who were being investigated for the mishandling of the case were able to retire, and I have set out the changes that I intend to make to ensure that there can be no repeat of that. In addition to the review report, which clearly identifies the misogyny, confirmation biases and victim-blaming narratives that were accepted, I am aware that a recently published independent review confirmed that there was clear evidence of sexism and misogyny in the PSNI. It would be, frankly, ridiculous of me to stand here and say that I am satisfied with how Katie Simpson's murder was investigated from the outset, when a report that is before me highlights many failings, not just by the PSNI but by health trusts and others that were in direct contact with Katie and with Jonathan Creswell over a significant period.

I will not sweep what is in the report under the carpet. Instead, I have asked Dr Melia to take forward the implementation of the report's recommendations, as I said, and I will make sure that what is in the report is learned from and that our systems change and improve. Any system that is made up of human beings will have flaws. That is the reality of the human condition. What we need are systems that can be set in place whenever those flaws or biases are exposed to prevent further harm being done. That is the purpose of the report. It is important that I say that the PSNI, along with all the other agencies that were asked to cooperate with the investigation, cooperated openly and transparently. That is not just my assessment; it is the assessment of Dr Jan Melia, who is better-placed than anyone else to give that assurance.

Mr Gaston: Like all MLAs who have spoken, my thoughts are with Katie's family, especially her parents, as they listen to the Minister's statement.

Minister, BBC Northern Ireland's 'Spotlight' episode on the Katie Simpson murder reported that someone from a political party contacted the journalist Tanya Fowles to tell her, "Nothing to see here" and that Katie's murder was a suicide. Did the review consider that issue? Was Dr Melia in contact with the journalist or with the BBC to attempt to establish which party was involved?

Mrs Long: The purpose of the review was to look at systemic failures in the public protection system — the PSNI and the other statutory and voluntary agencies that were directly involved. I am aware of the allegations, as are most people in the Chamber, but it was not a criminal investigation and, therefore, it would not have looked into the issue of whether there had been any attempt to pervert the course of justice, which is what such a call may have amounted to. It was not a criminal investigation but was about the systems that are in place to protect people. Those who have information about that call — the alleged conversation and interventions — need to provide that directly to either the PSNI or the ombudsman for thorough investigation. The Member will be aware that, as I said at the outset, there is an ongoing ombudsman investigation. That investigation may or may not lead to criminal proceedings; it is still to be concluded. There will also be a coroner's inquest. Those may be better forums for looking at what are essentially allegations of malfeasance in public office or perverting the course of justice. Either of those could be looked at by the PSNI or the ombudsman at any time.

Mr Deputy Speaker (Dr Aiken): One other Member has indicated that they wish to speak. If any other Members wish to speak, they should make their position known now.

Mr McGrath: I thank the Minister for the statement on this most important issue. Of course, our thoughts are with Katie's family. Katie was let down by the system, but the system is made up of individuals who operate within it. We have a complicated tapestry of justice agencies. Some of those agencies are the responsibility of the Minister, some are not, and some are the responsibility of other Ministers who need to step up to the mark. What assurance can the Minister give that all those agencies will be required to carry out the recommendations that are contained in the

report, so that we can have confidence that all the agencies and individuals will do everything that they can so that this does not happen again?

Mrs Long: As I said at the outset, the review was not on a statutory footing in the same way that a domestic homicide would be; it was a different kind of review, which I instigated specifically because I believed that the seriousness of the failures were such that we needed a proper, independent investigation of the system.

On the question of what confidence I have in people's willingness, the fact, first of all, is that people cooperated openly, transparently and proactively with the investigation and the report. When the Member gets the opportunity to read the report, he will see that they operated transparently. The report is tough reading. People were not hiding their failures: they were open and honest. That is important for change. I am also reassured because I am sure that Dr Melia would not have agreed to oversee the implementation of the review were she not confident that the people with whom she worked would be serious about implementing it. That does not mean, however, that I will sit back and let this drift. I want to be continually updated on progress and to be assured that real change is being delivered. While some things will have changed between Katie's sad death and now, many have not. I want to be sure that those things that have not yet changed change quickly, so that not just me and the House but the general public, who may call on those services in the future, are reassured.

12.30 pm

Mr McNulty: I thank the Minister for her statement. I commend Katie Simpson's family, who are here today, for their bravery and for the dignity that they have shown despite their grief. Although they will, I am sure, welcome today's statement, the gaping chasm of grief and hurt that they are all feeling can never be filled.

Minister, will you provide more information on how you intend to develop and broaden campaigns on coercive control?

Mrs Long: We will want to address the issue through the ending violence against women and girls programme, in collaboration with the Executive Office, and through the domestic and sexual abuse strategy and action plan, for which Minister Nesbitt and I are jointly

responsible in the Department of Health and the Department of Justice respectively.

It is important that people understand the complexities of coercive control. I have recently had some positive meetings with people who have flagged an ever-changing landscape when it comes to the lengths to which people will go to abuse a partner, a former partner, a family member, a parent or a child. People have to be constantly on their guard as to what coercive control looks like. In some cases, it may appear obvious. In other cases, however, it is very subtle. We therefore need people always to be conscious of coercive control.

Raising awareness in the community has already started. We have tried to do that through some of the Department of Justice's advertising campaigns on coercive control. There may be opportunities, depending on finances, for us to rerun some of the campaigns that looked at the different kinds of abuse and control out there. Crucially, we need to do more with first responders, such as those working in our hospitals, in the community and voluntary sector, in GP surgeries and in the PSNI and other justice agencies, to make sure that they recognise what coercive control looks like, because, sadly, many victims do not recognise that they are victims of coercive control, with many living in denial. They may think that their partner is hard to live with or difficult to work with but do not realise that they are a victim of serious coercive control, which often spills over into violence only after a persistent length of time. That is one of the reasons that there is a reasonable person test in our legislation on coercive control. If a reasonable person deems the behaviour to be inappropriate and coercive, that is sufficient for further investigation to take place. It is right that that should be so.

Mr Deputy Speaker (Dr Aiken): I also pass on my regards to the Simpson family. I thank you very much indeed for coming today. I regret the circumstances in which you have had to listen to the statement, but our thoughts and prayers are with you all.

That concludes questions on the statement. I ask Members to take their ease before we move on to the next item of business.

(Madam Principal Deputy Speaker in the Chair)

Executive Committee Business

Northern Ireland Fiscal Council Bill: Consideration Stage

Madam Principal Deputy Speaker: I call the Minister for Finance, Mr John O'Dowd, to move the Consideration Stage of the Bill.

Moved. — [Mr O'Dowd (The Minister of Finance).]

Madam Principal Deputy Speaker: Members will have a copy of the Marshalled List of amendments detailing the order of consideration. The amendments have been grouped for debate in the provisional grouping of amendments selected list. If you bear with me, I will explain the amendments. There is a single group of amendments for debate, which contains five amendments. I remind Members who intend to speak during the debate that they should address all the amendments on which they wish to comment. Once the debate is completed, any further amendments in the group will be moved formally as we go through the Bill, and the Question on each amendment will be put without further debate. Amendment Nos 2 and 3 are mutually exclusive. Therefore, if amendment No 2 is made to the Bill, amendment No 3 will not be called. Amendment Nos 4 and 5 are also mutually exclusive. Therefore, if amendment No 4 is made to the Bill, amendment No 5 will not be called. The Questions on stand part will be taken at the appropriate points in the Bill. If that is clear, which I hope that it is, we will proceed.

Clause 1 ordered to stand part of the Bill.

Clause 2 ordered to stand part of the Bill.

Clause 3 (Budget assessment reports)

Madam Principal Deputy Speaker: We now come to the single group of amendments for debate, which contains all five amendments that I mentioned earlier.

I call Matthew O'Toole to move amendment No 1 and to address the other amendments in the group.

Mr O'Toole: I am very pleased to speak today, and because I am in the slightly unusual

position of being both the Chair of the Committee and the mover of the majority of the amendments, I will speak first as Chair of the Committee, and then I will move on and give a detailed view of the amendments that are before us today, if that is amenable to the Principal Deputy Speaker and Members. It is very important legislation, and I am pleased to have been the Chair of the Committee that scrutinised the Bill.

Madam Principal Deputy Speaker: Matthew, sorry. I understand the sequence that you have laid out, but you have not moved your amendments, which is the first order of business.

Mr O'Toole: I beg to move amendment No 1: In page 2, line 11, at end insert—

"(bb) consideration of the extent to which the proposed budget is aligned with the most recently agreed Programme for Government required under section 20(3) of the Northern Ireland Act 1998."

The following amendments stood on the Marshalled List:

No 2: In page 2, line 11, at end insert—

"(bb) consideration of the impact of the proposed budget on the economy of Northern Ireland;"— *[Mr O'Toole.]*

No 3: In page 2, line 12, after "assessment" insert ", which may include consideration of the potential impact of the proposed budget on the economy of Northern Ireland".— *[Mr O'Toole.]*

No 4: In clause 4, page 2, line 25, at end insert—

"(ca) costs of duplicated public service provision,".— *[Mr Tennyson.]*

No 5: In clause 4, page 2, line 34, at end insert—

"(bb) the Council's view of the impact of duplication in the delivery of public services on fiscal sustainability, and".— *[Mr O'Toole.]*

Madam Principal Deputy Speaker: If you move your amendments, you need to speak to them. You also need to decide whether the Finance Committee supports the amendments or you are speaking in your capacity as the leader of the Opposition.

Mr O'Toole: I will give the Committee's view first. To be clear, the Committee has scrutinised the Bill overall, and it has not given a view on the amendments that are in my name or anyone else's name. The Committee has done other scrutiny that I want to outline to the Assembly for its benefit more generally.

The Bill is unusual not because of its length or complexity but because of its clear importance. It is not every day that we legislate to put a body into law. The Bill places the Northern Ireland Fiscal Council, which has been in operation since 2021, on to a statutory footing following commitments made in the New Decade, New Approach agreement. It is an important piece of legislation, which provides a clear legislative framework for the council's functions.

The Committee undertook very detailed scrutiny of the Bill. It sought written evidence from key stakeholders, carried out online surveys, commissioned research and took extensive oral evidence from a range of organisations, including economists, academics, the Scottish Fiscal Commission (SFC), the Irish Fiscal Advisory Council (IFAC), the OECD, the Northern Ireland Audit Office (NIAO) and the NI Fiscal Council, as well as the Department. I place on record my sincere thanks to all those who contributed. Their evidence was invaluable to our rigorous scrutiny of the Bill. The Committee specifically considered the issues in accordance with the OECD principles for independent fiscal institutions, which are transparency, integrity, accountability and effective governance. I thank the Department's Bill team, who worked very closely with the Committee.

The Bill comprises nine clauses and two schedules, which I will briefly run through and highlight the issues raised by the Committee. Clause 1 establishes the NI Fiscal Council as a statutory body. There has been widespread agreement that they think the council on a statutory footing is an appropriate and necessary step. It supports the council's authority, credibility and permanence and aligns Northern Ireland with established international practice.

Clauses 2 to 6 set out what the council is there to do. They place clear duties on the council to assess the Executive's Budget and examine the sustainability of public finances. That work is particularly important, given current pressures on public finances. Clause 2 sets out the council's main functions to examine and report on public finances, including statutory duties to publish a Budget assessment report and a

fiscal sustainability report alongside any other reports that the council considers appropriate. Clauses 3 and 4 provide the detail on those reports, including the purpose of the Budget assessment report and the distinction between that report and its thematic fiscal sustainability reports. In carrying out its scrutiny, the Committee gave careful consideration as to whether the council should have a formal role in forecasting whether an assessment should take place. The Committee has not tabled amendments, but, clearly, members have taken a view on that, and I will move amendments later in a different role.

Clause 5 enables the Department of Finance to confer additional functions on the council. That received particular scrutiny. The Committee sought and received assurances that any such changes would be subject to consultation, including with the Fiscal Council, and would require Assembly approval. The Committee also secured extremely important clarification in the Bill's explanatory and financial memorandum (EFM) that the Committee for Finance will be included in the consultation process. I thank the Department for its willingness to address that question.

The Committee also examined issues relating to independence, transparency and accountability. It welcomed the explicit provision in clause 6 that the council is not subject to direction or control and must act transparently, objectively and impartially, aligning with the OECD principles of independence and non-partisanship. The Committee considered matters relating to reporting, timing and engagement with the Assembly across clauses 2 to 6. It secured a number of assurances and clarifications related to the explanatory and financial memorandum, and I thank the Department for working with us on that. We have had important clarifications to the explanatory and financial memorandum that will strengthen and clarify accountability, when it comes to the Finance Committee — usefully, we had ourselves inserted into the EFM — and to the Assembly more broadly. The Committee is therefore content with clauses 1 to 6.

I will turn to schedule 1. Much of the Committee's scrutiny focused on whether the governance framework provides sufficient assurance of the council's independence in practice. In particular, the Committee examined appointments, access to information, reporting, transparency and funding. The Committee recognised that amendments to the governance arrangements for the Fiscal Council could have wider implications. Such changes may set precedents for other arm's-length bodies,

creating an unintended ripple effect, which the Committee was keen to avoid. For that reason, the Committee approached its scrutiny with caution, mindful that amendments specifically related to governance could have unforeseen consequences. For example, had we made substantive amendments to how the governance arrangements work, they could have had unintended consequences for other arm's-length bodies.

However, we investigated in detail the transparency of appointments arrangements, including concerns about perceptions of independence. We sought clear assurances that appointments would be made in line with the Commissioner for Public Appointments code of practice and be subject to a skills audit, as well as securing clarification in the explanatory and financial memorandum that the Committee will be kept abreast of any changes to council membership. It is really important that we get that. It is important that we clarify that the Fiscal Council is not simply reporting to the Executive but, in fact, that it may have difficult things to say about Executive policy. It needs to be able to have the independence to say those things to the public and to this Assembly. The Committee also considered the council's right of access to information and noted the council's evidence that access to information has not been an issue to date. It welcomed provisions underpinning transparency, including the requirement to publish data statements, and secured clarification that those statements will also be provided to the Committee for Finance. That is really about baking in that independence. In addition, the Committee welcomed confirmation that memoranda of understanding are already in place with Departments and the Northern Ireland Office and will be reviewed once the provisions are placed on a statutory footing.

Schedule 1 also makes provision for an annual report and external reviews. The Committee placed emphasis on the importance of strong Assembly engagement and the visibility of the council's work, and the Department agreed explanatory and financial memorandum amendments, confirming that both the annual report and external review reports will be shared with the Committee for Finance in addition to the Department.

Funding arrangements also received significant scrutiny, including the fact that the council's costs are included in the Department's estimates and that accounts are audited by the Comptroller and Auditor General. The Committee explored what those arrangements mean for independence and transparency,

including the value of clear Budget lines and the importance of funding stability over the longer term. That is absolutely critical, because the Fiscal Council cannot be genuinely robust and independent if there is any doubt over its funding. We got clarity from the Department on that, but it will be for future Finance Committees and, indeed, all Members of the Assembly and external observers to ensure that the Fiscal Council is funded transparently and in a way that allows it to do its job. Clearly, the Fiscal Council, by the nature of its job, has to say things that are occasionally difficult for an Executive and for the UK Government, and, indeed, for other bodies to hear.

12.45 pm

Schedule 2 makes consequential amendments that place the council within existing administrative audit frameworks, enabling it to operate as a statutory body. Throughout our scrutiny, we have sought to ensure that the Bill strikes the right balance between independence, accountability and flexibility, while remaining mindful of potential effects on other arm's-length bodies.

We welcome the Department's engagement, particularly its willingness to provide assurances and amendments to the explanatory and financial memorandum that are particularly important. The Minister may want to touch on those in his winding-up speech, because we need to ensure that the Committee is kept informed, including direct receipt of council reports, membership notifications, data statements, consultations on regulations under clause 5 and copied accounts. Subject to the EFM amendments being made, we are satisfied that those are satisfactory, but obviously we want to see them made. Having completed our scrutiny, the Committee supports and has consistently supported the Fiscal Council Bill. Placing the Fiscal Council on a statutory footing is an important step in strengthening fiscal transparency and independent scrutiny in Northern Ireland.

I will now speak in my personal capacity as mover of all but one of the amendments. I apologise: some of them are in the name of Matthew O'Toole, and some are in the name of the leader of the Opposition. Please do not read anything into that. It does not mean that some are better than others or that I like some of them more than others. It is just a quirk of the timing with which they were submitted.

A lot of what I do as leader of the Opposition is in the spirit of robust political challenge and holding the Executive to account. Often, I do

that in a robust way, and sometimes it is not comfortable for parties in the Assembly Chamber. Sometimes it is not that comfortable for me, because I have to stand up and do it by myself and get all the heat. However, today's amendments from me are genuinely about trying to build a consensus around how we improve governance in Northern Ireland. They are not attempts to score party political points nor to embarrass or pressurise a future Executive, because, however future Executives are structured — I hope that we continue to have future Executives, difficult as it is to govern this place, and I recognise that — we should all be looking for ways to improve the way that we do government.

Our amendments to the Fiscal Council Bill will enable us to improve policy outcomes. If done right, they will improve the quality of the policy debate in the North. Whatever your political perspective — whether you are unionist or nationalist; whether you are on the left or the right; whether you, like me and many of us in the Chamber, are geeks about fiscal and economic policy or whether you do not give two hoots and simply want your public services to work better — this is about improving governance with better policy debate, better scrutiny and better accountability. That will seem a bit techie, but it is really important.

I will go through the amendments. I am happy to take questions. I am mindful that we will break at 1.00 pm. I hope that I will have finished by then, but I do want to be generous in taking interventions or clarifying points for people, because I am keen that, hopefully, we can pass at least some of the amendments and build a consensus on improving policy making.

Amendment No 1 inserts in clause 3 the requirement or the opportunity for the Fiscal Council, in its budget assessment report, for:

"consideration of the extent to which the proposed budget"

— that is, Budgets published by the Executive. I will not get into debates about the current Budget situation or where that is, because I am not sure that that is particularly useful for this debate. I want to talk about us doing better budgeting more generally. This amendment would allow:

"consideration of the extent to which the proposed budget is aligned with the most recently agreed Programme for Government required under section 20(3) of the Northern Ireland Act 1998".

The Northern Ireland Act requires a Budget and a Programme for Government of the Executive. We can have debates — I am sure that I will, at some point, have angry debates about the quality of the Budget, the absence of the Budget or the Programme for Government or whatever — but, theoretically, no one can dispute that we need the Budget to be aligned to the Programme for Government. However, I do not think that even the most optimistic observer of this place, going all the way back to 1998 — this is not about one or two specific political parties; this is about all of us, including my party — could claim that every Budget that has been agreed by this place, when we have been up and running and have agreed Budgets, has been aligned to the Programme for Government. We think that giving the Fiscal Council the power or, in fact, the obligation to assess the extent to which a Programme for Government is being delivered or reflected in a Budget is, frankly, a no-brainer.

There was always a legislative question, and the Minister may come on to ask me about it. I am not predicting what he or other Members might say, but one might say that the Fiscal Council can do that anyway. It is true that there is a degree of flexibility in the legislation, but there is not endless flexibility. The Bill drafters make certain choices about what they include and what they do not include. For example, the Budget assessment report has to include:

"consideration of the extent to which public revenue in Northern Ireland is enough to meet planned expenditure".

That seems sensible and obvious, but those words did not have to be included. Bill drafters have included those words so that the Fiscal Council knows that we expect it to report on that and to give the public of Northern Ireland and MLAs a clear sense of whether there is enough money to meet planned expenditure. That is an obvious thing. It is no less reasonable to ask that the Fiscal Council report on whether that is aligned to the Programme for Government and how well that is being delivered.

My amendment does not say that it needs to be an entirely free-standing report; in fact, it simply has to be included in the Budget assessment report. It does not say that it needs to be 50 pages long, five lines long or five words long. It simply says that there should be:

"consideration of the extent to which the proposed budget is aligned".

There is deep frustration among the public around delivery. Again, I will be careful, as I do not want to spend my remarks today scoring points — I will have plenty of other opportunities to do that, and I will take those opportunities — but it is simply about giving the Fiscal Council a clear mandate to report on how well the Executive are delivering. I could go through a range of things and say that they are not delivering on this or not delivering on that: that is not what this is about. This is about giving the Fiscal Council the best possible opportunity or the best possible mandate to do its work and to give the public in Northern Ireland a clear sense that someone is properly scoring and costing what is in the Programme for Government.

Some of that work falls to the official Opposition. Not to challenge the Speaker's decision on amendments taken, but we had hoped to have party political costing, including for the official Opposition and for all parties, as a requirement of the Fiscal Council. That amendment has not made it to the Floor. I am not making any commentary on whether that is the right or wrong decision, but part of the scrutiny role of political parties or the Fiscal Council is about giving us the power to properly assess how well the Programme for Government is being delivered.

It is clear that the public have profound concerns about delivery here. The most recent LucidTalk poll is fairly shocking in respect of the level of trust. Giving the Fiscal Council that power does not mean that it has to devote all its energy to it, but it is a hugely useful addition to its responsibilities. It would improve the work that we do, because those of us who are fortunate enough to be able to form an Executive will, when a Programme for Government is being designed after the election — hopefully, this time next year, in a year and a bit, people will be sitting down to thrash out a Programme for Government with clear, measurable outcomes — be able to say, "We will be measured against this, so we need to be sure that we will be able to deliver the things that we are going to put in the Programme for Government". It is not unreasonable for any party that that stuff is deliverable and can be measured.

I am willing to hear objections as to why that is wrong. I genuinely hope that other parties and Members across the Chamber can support it. It is not about putting anybody on the spot; it is about us doing our job in constructive opposition as constructively as we can.

That is amendment No 1. I suspect that I will probably not get through them all before lunch,

but it is not me being loquacious in that regard. I had to go through them in some detail.

Madam Principal Deputy Speaker: Matthew, amendment Nos 1 and 2 have already been passed. You need to address amendment Nos 3, 4 and 5. Thank you.

Mr O'Toole: That was about amendment No 1. I am not speaking to clause 1; I am speaking to amendment No 1.

Amendment Nos 2 and 3 are mutually exclusive, as you said, Madam Principal Deputy Speaker. Both of those are on the Marshalled List because I want to have a genuine debate. We had a debate at the Finance Committee, though we did not come to a hard and fast view. There was some scepticism and some interest. I do not want to misrepresent the views of the Finance Committee. I am speaking on my own account; others can speak for themselves. There was a genuinely useful discussion. Critical to our work as representatives in the North, whether you are unionist or nationalist, left or right is the extent to which the things that we do are geared not just towards counting the money that comes in and goes out, though that is critical and a big part of the Finance Minister's job, but towards improving people's prospects and our economy and making sure that economic outcomes are properly part of policy decisions.

One of the frustrations that the Minister clearly has and that probably every previous Finance Minister has had, as well as anybody who observes politics, is that the devolved financial settlement is very much geared towards money in and money out. That means that the debates, including the contributions from people like me in my role as leader of the Opposition, sometimes become about saying, "Why are we not spending money on this?" and, "The UK Government are not funding us to the right level". Both of those debates are critical, but we often miss the third leg of the stool, which is the economic output. "Economic output" does not mean growth in a narrow sense; it can mean living standards, jobs and a range of other issues.

Dr Aiken: I thank the Member for giving way. This is just a short intervention. We had the recent debacle of the Treasury's open-book exercise and its sudden discovery of £3.5 billion of savings that, it reckons, we could have. Does the Member agree that that would not have arisen, had the principle of the Fiscal Council looking at those things in advance been in

place, so that we, too, could look at those issues?

Mr O'Toole: I do not want to make that promise on behalf of the Fiscal Council. There is a reasonable level of cynicism about the open-book exercise. Frankly, I think that it is a ridiculous document. There was a fairly jaundiced agenda from the Treasury. Certainly, having the Fiscal Council has already improved the debate here in the past five or six years. I hope that my amendments will improve the quality of debate even further.

To be clear, amendments Nos 2 and 3 — am I going to be interrupted for lunch, Madam Principal Deputy Speaker?

Madam Principal Deputy Speaker: You are, Matthew. On a point of clarity about what I said, clauses 1 and 2 have already been debated. You are, obviously, speaking to amendment No 1, which is to clause 3.

I am going to interrupt you, because, as people will be aware, the Business Committee has arranged to meet at 1.00 pm. I propose, therefore, by leave of the Assembly, to suspend the sitting until 2.00 pm. The next item of business will be questions to the Minister of Health, after which Matthew will continue.

On behalf of everyone, I implore you to be specific. Even though the debate is very important and interesting, we need to home in on your amendments.

Mr O'Toole: Absolutely, Madam Principal Deputy Speaker.

Madam Principal Deputy Speaker: I appreciate that.

The debate stood suspended.

The sitting was suspended at 12.58 pm.

2.00 pm

On resuming (Mr Speaker in the Chair) —

Oral Answers to Questions

Health

Women's Health Strategy

1. **Ms McLaughlin** asked the Minister of Health for an update on the implementation of a women's health strategy. (AQO 3496/22-27)

Mr Nesbitt (The Minister of Health): With your indulgence, Mr Speaker, I may require an extra minute to answer, because this is an important issue of some depth.

Work on a women's health action plan is advancing, with policy and service developments ongoing across many areas. I intend to publish the plan later this year, after we have received and considered the final report of the public listening exercise that my Department helped fund. The exercise is now complete, and I am very grateful to the thousands whose voices are helping shape the final action plan. The final report on the listening exercise is expected by the Department in the coming weeks.

I understand the level of anticipation around the action plan, which is about recognising and responding to the significant disparities that women continue to face in health outcomes and access to care. Much work is already under way within current resources. We are trying to reduce waiting lists and change how we deliver key services to better meet women's needs. Last year, for example, my elective care framework's implementation and funding plan included £3.5 million in recurrent funding to provide over 4,000 additional assessments and 900 treatments in gynaecology. That funding is helping improve patient pathways, enhance diagnostic capacity and provide additional theatre and outpatient sessions. We are also in the process of establishing two regional endometriosis centres, one in the Western Health and Social Care Trust and the other in the Belfast Health and Social Care Trust.

Too many women are still waiting too long, but the position is improving. Compared with the end of September 2025, by the end of December 2025, 3,000 fewer women across Northern Ireland were waiting either for treatment or for their consultant-led first

outpatient appointment for gynaecology, and I expect that progress to continue.

When it is published, the action plan will describe the wide range of policy and service developments that are supporting women's health, what has been achieved to date and what is achievable in the years ahead within current resources. The action plan will also aim to encourage positive dialogue on women's health and well-being in our health and social care system and in society more broadly. I look forward to updating the House in due course.

Ms McLaughlin: Thank you, Minister, for that answer. We await the publication of the action plan. The Secretary of State for Health recently relaunched the UK Government's women's health strategy and is trying to tackle the medical misogyny and disparity that exists. Given that Northern Ireland is the only part of the UK without a dedicated women's health strategy, do you accept that we are falling further behind? Will you commit to ensuring that the funding that is required to deliver actions will be ring-fenced so that we can make improvements?

Mr Nesbitt: I regret the fact that we are the only nation or region of the United Kingdom not to have such a strategy. I am very much in favour of having one. It was only time constraints that led me to the position of wanting to have an action plan first. I hope that a strategy will follow during the next mandate. The Member is aware of how tight things are with funding. There is upwards of £800 million of a shortfall in this financial year. As well as publishing the action plan and saying that I very much hope that the next Minister will commit to a women's health strategy, I am in the foothills of developing another initiative, which, I think, will be a real game changer. I look forward to updating the House on that in due course.

Ms Flynn: I am conscious that there was a massive announcement last week in relation to women's health. I thank the Minister for the announcement on the mother-and-baby unit. There has been plenty of brilliant feedback. So many women and families are delighted with the announcement. On that subject, will any provision be made for interim measures? The Minister covered a bit of that in his statement. If not, why not?

Mr Nesbitt: After the debate, it was clear to me that the mood and will of the House was to look at an interim measure that was good and safe, not necessarily one that was best practice. From the Royal College, we know that best

practice means proximity to an adult inpatient centre and obstetric-led maternity services. We looked at a couple of sites and discussed them internally. The five directors of mental health from the five geographic trusts wrote to me as one to say that they would not support the interim solution that we had in mind and that we had to stick to best practice. That is why we are going for the Belfast City Hospital site. As I made clear, I was originally told that, if we started now, we could have it open in 2031. I found that entirely unacceptable, so the deadline is now no later than the financial year 2028-29. I have not finished there, however. Once the design team has finished, I will press for an earlier opening than 2028-29. I may not be successful, but I am going for it.

Mrs Dodds: We have been talking about a women's health strategy and action plan since devolution was restored, so I am glad to hear that there will be progress, even if it is late in the day. Women's health and the attitude to it are marked by inequalities. There are inequalities in Northern Ireland, but there are also inequalities across the United Kingdom. Will the Minister tell the House when he plans to introduce the new injectable cancer immunotherapy drug — it is called Keytruda, I think — for women and men in Northern Ireland?

Mr Nesbitt: I thank the Member for her question. I have some rather good news in that regard. Keytruda is already used in Health and Social Care (HSC) for many different forms of cancer, in line with recommendations from the National Institute for Health and Care Excellence (NICE). The manufacturer of Keytruda has recently launched the injectable form that we are hearing about in the news outlets. I recognise the benefits of rolling out such innovations to patients in Northern Ireland in saving precious time for those receiving treatment for cancer as well as in releasing valuable time for clinicians to care for more people. As of today, three of the five trusts have already rolled out injectable Keytruda. That happened in April last year as part of a managed transition involving a substantial programme of work to update existing clinical protocols and minimise waste of the existing infusion product. It is in three of the five; I hope that it will be in all five as soon as possible.

Miss McAllister: I want touch on the women's health action plan. I appreciate how difficult budgets are at the minute, but attitude does not cost money. The way in which women are treated culturally in Northern Ireland can be difficult for many. It comes down to the issue of

medical misogyny. Through the women's health action plan, what steps will you commit to taking, Minister, to ensure that there is a mindset and culture shift in our health service, so that women feel that they are validated and listened to and that their concerns are properly taken seriously?

Mr Nesbitt: That is a very important issue. I have to say that the scale of medical misogyny is difficult to quantify. It is essential that women feel listened to, respected and treated fairly when accessing the health and social care system. The action plan will consider the need for improved awareness of, training for and for understanding of women's health issues across the full range of healthcare settings.

I do not accept that the health and social care system is failing every woman on every issue, but it is clear that there is a level of misogyny. The Member is correct to identify it as a cultural issue. I think that all of us in the House recognise that cultural change is the highest bar to set for any organisation. However, that is not an obstacle to doing it; it has to be done, and it will be started on my watch. As well as hoping that the next Minister will commit to a strategy that includes dealing with medical misogyny, I will put in place quite a radical reform of how we fund the health and social care service.

Mr Gaston: Minister, as part of the women's health strategy, are you looking at how your Department records gender identity as distinct from sex to ensure that men are not being offered women's health appointments?

Mr Nesbitt: I thank the Member for his question. Our lifespan gender service model is not a new service; rather, existing services are being merged into one. Nothing is changing in the criteria or the parameters from the model of care that has been commissioned for over a decade. However, the new service will take account of the Cass review, which called for multidisciplinary teams to be developed in regional centres. That investment will ensure that that recommended approach is taken in line with other United Kingdom jurisdictions. The creation of two senior psychologist posts will greatly bolster the multidisciplinary team, and I will rely on them to make the right calls.

Mr Carroll: Does the Minister agree that one of the quickest ways for women's health to be improved and not be left behind is the roll-out of women's health hubs? If he agrees, will he start by rolling one out in West Belfast?

Mr Nesbitt: I am certainly in favour of women's health hubs, but the Member must be aware — I started Question Time by referring to it — of the £800 million gap in funding. I cannot make a commitment that I cannot fund. I am afraid that, at this stage, I cannot foresee my getting the funds for a women's hub in this financial year, as much as I would like to.

'The State of Emergency Medicine in Northern Ireland' Report

2. **Mr T Buchanan** asked the Minister of Health to outline any assessment that has been made of the 'The State of Emergency Medicine in Northern Ireland' report published by the Royal College of Emergency Medicine. (AQO 3497/22-27)

Mr Nesbitt: I thank the Royal College of Emergency Medicine for its report entitled 'The State of Emergency Medicine in Northern Ireland'. It reinforces our understanding of what needs to be done to address the pressures in our emergency departments. As is highlighted in the report, despite challenges with improving individual causality, there is clear evidence that extended delays in EDs increase overall clinical risk. My Department continues to act to improve hospital flow and reduce congestion in EDs. We have urgent care centres, minor injury units and phone-first services that are fully operational across the region and help to appropriately divert demand away from EDs.

The continuing expansion of Hospital at Home and same-day emergency care services, alongside additional support for the Northern Ireland Ambulance Service (NIAS) and the strengthening of consultant capacity in EDs, will also help to deliver further improvements. NIAS introduced Release to Rescue on 27 April, with the aim of ensuring that no patient waits for longer than two hours in an ambulance outside an ED. My officials continue to work with the Ambulance Service and the trusts as Release to Rescue is implemented.

Ultimately, improving the outcomes and experiences of emergency departments is about whole-system flow and the timely, appropriate discharge of patients who no longer need hospital care, thus freeing up inpatient beds for those who need them the most. There is no quick or easy fix; achieving the improvements required involves a complex interplay of services in and across the wider HSC system and an investment in hospital and community capacity, which is dependent on funding being made available to me.

Mr T Buchanan: I thank the Minister for his response. The report conservatively estimates that 1,032 excess deaths were associated with waits of 12 hours or more in Northern Ireland's emergency departments. Minister, that is the equivalent of 20 lives every week, which is catastrophic. Will you outline to the House what you are doing about that? You have mentioned a number of things, but what are you doing to address the issue in order to help to reduce the number of deaths in 2026?

Mr Nesbitt: I hope that the Member acknowledges that the problem has not arisen in just the most recent financial year; the numbers are roughly similar for the year before that, and the year before that. I am acutely aware of the impact of those ongoing relentless pressures in what is already a very challenging environment on the physical and mental well-being of not just patients but all clinical staff working in emergency departments.

The first thing that I am doing is Release to Rescue. That started last week, and the results are very favourable. There were, I think, only eight occasions when an ambulance handover took longer than two hours. That is a really concrete and positive deliverable in tackling that very sticky problem.

2.15 pm

Mr McGuigan: One of the key challenges across the totality of our health service is staff shortages. With the Department of Health no longer funding physician associate degrees, can you outline whether the Department will repurpose that funding? Will it be used for other training places?

Mr Nesbitt: As the Member is aware, there has been an ongoing problem in the workforce for that particular specialism. What the Member is asking for is not something that I can make up on the hoof, because I have not given consideration to how that money is re-profiled. We have an £800 million shortfall, so I have no doubt that officials will say to me that I have to put all the money that I can towards closing that gap. I would be very reluctant to take a single penny out of the money that is put in for training and workforce.

Mr Donnelly: The Minister will be aware that the 12-hour target in A&Es is that no patient should ever wait more than 12 hours, but recent statistics show that 12-hour waits have increased by 14% in the past year, from 10,000 to 12,000, whilst the Royal College of Emergency Medicine report referred to by Mr

Buchanan showed that excess deaths related to long waits in EDs have more than doubled in the past five years to more than 1,000 a year. Given that stark evidence of the need for reform, what action will the Minister take to advance reconfiguration before the end of the mandate?

Mr Nesbitt: We will do whatever we can. I will not be able to remember this off the top of my head, but a charity looked at hospital waits in emergency departments in England, and those figures were also absolutely shocking. So it is not as if we are doing something or not doing something that is not happening elsewhere. This is a very sticky problem, and I will continue to do what I can in the remaining months of the mandate to address it.

Mr McNulty: Minister, the report lays bare the fact that our emergency departments are in a state of ongoing crisis, with excess deaths and corridor care becoming, sadly, the norm. Staff give their all, but they are often overwhelmed. There are adverse experiences of waiting for ambulances and waiting in ambulances, emergency departments and corridors. What immediate action are you taking to improve patient safety, Minister?

Mr Nesbitt: I do recognise the significant challenges that EDs face, and I am acutely aware that the current level of use of non-designated clinical spaces, or corridor care, is too high and has to be reduced. I accept that it is reflective of the current pressures on the wider health system. The impact on patients and staff in that environment is not acceptable to me as a routine matter, nor, I believe, is it sustainable. Therefore, work is already ongoing that will address that, subject to resources as always. For example, there is the diverting of patients to more appropriate pathways, more timely discharge, an increased focus on self-care and the utilisation of pharmacy support and GP services. We are doing all that we can to try to address those unacceptable pressures.

Hospital Appointments: Postal Services

3. **Mrs Dillon** asked the Minister of Health to outline any discussions that he has had with Royal Mail in relation to delays in postal deliveries resulting in patients missing urgent hospital appointments. (AQO 3498/22-27)

Mr Nesbitt: My Department is committed to working with the health and social care trusts to continually improve communication methods

with all patients, ensuring that they have the best possible experience and access to care. The trusts maintain oversight of postal delivery performance through established contractual and supplier arrangements. Where concerns have arisen regarding delays in patient correspondence, those can be raised through appropriate channels, including contract management discussions and engagement with contracted postal service providers such as Postal Sort. Ongoing monitoring is in place to help identify and address delivery issues. The aim is to reduce the risk of missed appointments and ensure timely communication with patients and clients. To help reduce the number of "did not attends" (DNAs), the trusts frequently use text messages as reminders, alongside sending appointment letters to notify patients of upcoming appointments. The My Care app enables patients and service users to securely access a subset of their care record, including information such as appointment letters, with the aim of reducing DNAs. That aims to provide a timely and convenient method of communication, especially when postal services may be delayed, giving patients the opportunity to cancel or reschedule, thereby ensuring that valuable appointment slots can be offered to others.

Mrs Dillon: I thank the Minister for his answer. Minister, I have been contacted by a significant number of constituents, particularly from the area around Pomeroy, who have many issues to do with health because that area straddles two trusts. Appointment letters do not reach them, and some are for serious appointments that they absolutely cannot afford to miss. Mid Ulster District Council met Royal Mail and the trusts about that, and I do not think that it really got the answers that it required. A number of people have been removed from waiting lists because they missed appointments. Can we get an absolute guarantee from you today that no patient will be put off a list because they missed an appointment due to a failure of Royal Mail to deliver that post? The trust has the contract with Royal Mail, and the patient relies on that letter coming to them. I acknowledge that we have the My Care app and the reminder text. Not everybody is able to access and avail themselves of the My Care app.

Mr Speaker: *[Inaudible.]*

Mrs Dillon: However, it is a valuable tool.

Mr Speaker: Minister.

Mrs Dillon: The text message may come —

Mr Speaker: Minister.

Mrs Dillon: — too late for people to organise lifts to hospital appointments.

Mr Nesbitt: There is a protocol. Trusts are required to follow the integrated elective access protocol (IEAP). That has been developed to define the roles and responsibilities of all those involved in the elective care pathway. IEAP outlines good practice to assist staff with the effective management of waiting lists. The protocol aims to ensure that a consistent approach is taken across all trusts. In compliance with the guidelines, patients who do not attend their appointment due to unforeseen or exceptional circumstances, such as postal delivery delays, have a four-week period to contact their health and social care trust to be reinstated on to the waiting list from the original date of their appointment. That will prevent patients from being disadvantaged because of missed appointments. I hope that that reassures the Member.

Ms Egan: Minister, I have also been contacted by constituents in North Down, and many of them have missed healthcare appointments at hospitals because of Royal Mail delays. Have you given any direction to the trusts that those people's appointments need to be prioritised urgently because it was not their fault that they did not receive the letter from Royal Mail?

Mr Nesbitt: It is not the fault of the patient that their appointment is missed because Royal Mail did not get the communication to them on time. As I just said to Linda Dillon, we have that integrated elective access protocol, which gives you up to four weeks to get yourself reinstated to where you were on the waiting list. I do not have any vires over Royal Mail or any postal service. I am in charge of the health and social care system in Northern Ireland. However, I would encourage Royal Mail and others to think very carefully about the impact of not delivering HSC literature and communications in a timely manner.

Mr K Buchanan: Minister, I had a positive meeting with Royal Mail on Friday regarding this matter. I learned from that meeting that the trusts go to Postal Sort when a communication is written. That is then processed, and it then goes to Royal Mail. Is the problem with Postal Sort or with Royal Mail to do with the type of service that the trusts have asked for? If you do not put a first-class sticker on an envelope, you do not get a first-class service. Is the service being asked of Royal Mail the correct service?

Everybody is pointing the finger at Royal Mail, but the truth is somewhere in the middle.

Mr Nesbitt: My Department has not carried out an assessment of the postal service currently utilised by the health and social care trusts, so no assessment has been made on the use of Royal Mail's economy postal services.

Children's Respite Services

4. **Mrs Guy** asked the Minister of Health for an update on the provision of children's respite services. (AQO 3499/22-27)

Mr Nesbitt: The additional regional funding provided for the children with disabilities service is being spent on a range of initiatives to improve family and community support for children with a disability, with the aim of increasing short-break provision and expanding specialist care programmes. The trusts have increased contracts with voluntary and community providers, securing additional support for families through a broad range of service initiatives.

I remain very mindful of the urgent focus on overnight short-break provision for children with disabilities. However, it has to be recognised that the provision of short breaks for children with disability is much more expansive than solely overnight provision. I can confirm that there has been increased service provision across all five geographic trusts that has supported improved access to short breaks, either via day supports or overnight provision. I advise Members that, as a result of the children with disability investment, approximately 869 additional overnight short breaks were provided across the region between January 2025 and the end of January 2026. That is in addition to the development of a variety of valuable community and family support services that further enhanced children with disability services.

Whilst the regional investment is beginning to address key areas, I need to reiterate to Members that short-break services for children with disabilities remain fragile. The longer-term development of a comprehensive continuum of services will take some time. It will be necessary to address the significant gap that exists in residential provision alongside preventative community-based services, in order to protect the availability of short-break services. Further sustained investment, in capital projects and workforce development, will be required over several years.

Mrs Guy: I thank the Minister for his response. The documentary 'I am not Okay' laid bare the dire circumstances that so many of our families with children with complex needs are living with. In response to that programme, the Minister announced £13 million to deal with the issues that those families were experiencing. I have to say that that announcement is looking increasingly cynical because those families are still "not Okay". Will the Minister provide a full breakdown of how the £13·1 million investment into children's social care and respite services for the past financial year was spent? Specifically, how much has been spent on delivering beds for respite?

Mr Nesbitt: I will ignore the accusation of being cynical and address the fundamental. The five trusts have confirmed final funding for the financial year 2025-26 across a range of proposals. The amount of funding, which is rounded up, is as follows: Belfast Trust, £2·2 million; Northern Trust, £1·4 million; South Eastern Trust, £2·1 million; Southern Trust, £1·4 million; and Western Trust, £2·2 million. That is a total of approximately £9·4 million, so, therefore, there is approximately £3·7 million of slippage against the original funding of £13·1 million. I apologise for that, but I do not apologise for the ambition in securing £13·1 million, and it is recurrent funding.

Ms Ferguson: Obviously, I very much welcome the £2·2 million going to the Western Trust for children's respite care and support. Given the current regional recruitment campaign that will target the recruitment of carers, who, we all know, are the backbone of society, how many is the Minister aiming to recruit and will it be sufficient to meet the current unmet need in respite services?

Mr Nesbitt: As ever, the answer has to be predicated and ring-fenced by the budget, but I thank the Member for welcoming the investment in her area. Recruitment is very challenging in that area, and the Member may well be aware of that. We will press on with trying to get the right workforce in the right place as soon as possible. It is important to say that I am also committed to supporting the parents and carers of young people with disabilities. Let me write to the Member if I have more detail from the Department.

Ms Hunter: Many parents whom I speak with in my constituency say that they are burnt out, overwhelmed, exhausted and injured many days of the week. Many of them say that they feel that they are being failed. Do you think that they are being failed, Minister?

Mr Nesbitt: I acknowledge how difficult it is for those parents. What we traditionally call "burn out" is very common, and I get it. I have met many parents and carers and not just those who we now call the "Spotlight mums", whom I have met on a number of occasions. However, it is a rather emotive way to phrase the question. There are a lot of people in the Department and across the health and social care geographic trusts who are trying to do their best. Therefore, I do not agree with the language that the Member has used. I agree with her, and I imagine that she would agree with me, that we can and must do better.

2.30 pm

Child and Adolescent Mental Health Services: Waiting Times

5. **Mr Allen** asked the Minister of Health to outline the average waiting time for access to child and adolescent mental health services (CAMHS) in each of the past five years. (AQO 3500/22-27)

Mr Nesbitt: Improving access to child and adolescent mental health services remains a key focus for the Department. The information provided by trusts demonstrates that average waiting times have fluctuated over the past five years. The average wait was 49 days in the 2021-22 financial year. It then dropped to 46, increased to 60 and improved again to 47. The data for 2025-26 shows a further reduction, with an average wait of 42 days.

The use of regional averages as a performance metric does not reveal the degree of variation across the trusts. Each trust has encountered challenges in meeting the nine-week target for initial assessment in CAMHS. There have nonetheless been significant improvements in some areas: for example, in the Northern Trust, the average wait time of nine weeks in 2021-22 fell to six weeks in 2025-26.

Despite ongoing pressures associated with workforce, rising demand and rising levels of clinical acuity in the children referred, the data returned by the trusts demonstrates progress in recent years. I remain committed to supporting trusts to reduce waiting times for children and young people across Northern Ireland further.

Mr Speaker: We have to move on to topical questions.

Domiciliary Care Services: Rural Areas

T1. **Mr McGrath** asked the Minister of Health, after noting that Members have heard from Connected Health that, as a result of the Minister's failure to fund the independent care sector properly, domiciliary services in rural areas are at risk of being cut, resulting in a mess, what he is doing as part of his neighbourhood care model to address the gulf between where we are now and delivering the social care sector that people desperately need. (AQT 2301/22-27)

Mr Nesbitt: Without an additional £800 million, I will struggle in that area, as I will in many others, but I am focused on it. On 2 March, Independent Health and Care Providers (IHCP) issued correspondence to my permanent secretary about its significant concerns about the structure, cost and workforce profile of the Southern Trust's home care model. The correspondence was further to a freedom of information request that IHCP sent to all trusts about their home care services.

The Member is on the Committee for Health, which has a statutory duty to assist and advise. I am all ears.

Mr McGrath: The first step towards identifying the solution to a problem is to acknowledge that there is a problem and then to determine who is causing it. I have asked you time and time again who is causing health service problems — you, through a lack of decision-making, or the Executive, through lacking the finance to deal with the problems — yet you have always ducked the question. I will go again: is it your lack of decision-making or the Executive's lack of funding that is causing the problem in domiciliary care?

Mr Nesbitt: The fact that we have an £800 million shortfall in our funding for 2026-27 is a clue.

Emergency General Surgery: South West Acute Hospital

T2. **Mrs Erskine** asked the Minister of Health what plans, if any, he has to commission emergency general surgery at the South West Acute Hospital (SWAH). (AQT 2302/22-27)

Mr Nesbitt: The Member will be aware of the process. A consultation was under way, but I was not happy with it, so I contacted the Western Trust. I could not instruct the trust to

pause the consultation, but I am grateful that it agreed to do so and that it eventually decided to scrap it. I then encouraged the trust to come up with a broader vision for the South West Acute Hospital, because, as I have said in the House, it is a pity that we put an exclusive — I stress the word "exclusive" — focus on one service that is not available in the South West Acute Hospital at the expense of celebrating the many successful processes and procedures that take place there.

Mrs Erskine: That process has gone quiet. No vision is coming forward from the Department or the trust, and I believe that the clock is ultimately being wound down on decision-making on emergency general surgery. I have heard from campaigners who tell me that the Western Trust is prepared to develop a business case to restore emergency general surgery at the South West Acute Hospital. Any decision, however, on the restoration or suspension of emergency surgery at the SWAH ultimately falls to you, Minister.

If a business case falls on your desk —

Mr Speaker: Can we have a question?

Mrs Erskine: — will you press on with the implementation of removal, or will you restore emergency general surgery?

Mr Nesbitt: The Member seems to think that the Department has some role in drawing up the vision: the Department has no role in drawing up the vision. I have asked the Western Health and Social Care Trust to draw up the vision. If the Member believes that some sort of brake is being applied by the Western Trust, my question to her is this: what discussions has she had with the senior manager of the Western Trust on that?

Blood Cancers: Early Detection

T3. **Miss McIlveen** asked the Minister of Health, having thanked colleagues who attended a successful myeloma awareness event in Parliament Buildings last month that she held along with her brave and passionate constituent Mel Walker, what progress is being made on improving early detection of blood cancers such as multiple myeloma. (AQT 2303/22-27)

Mr Nesbitt: I thank the Member for her question. I am not across the detail of that, but I would be more than happy to write to the Member. If she wants to focus her

supplementary question on the information that she is seeking, I would be grateful.

Miss McIlveen: I thank the Minister for his response. I am happy to request a meeting to discuss the matter further. What progress has been made on access to chimeric antigen receptor (CAR) T-cell therapy in Northern Ireland? Will the Minister outline any reasons for the delay in the availability of CAR T-cell therapy?

Mr Nesbitt: CAR T-cell therapy has proven to be very successful. It will be introduced once we have the new haematology ward at Belfast City Hospital. Progress is being made on that, but it will be a number of years before the ward is available. The CAR T-cell procedure can operate only in particular clinical conditions. I believe that the respiratory conditions — the air around the procedure — are very important.

Members have called for an all-island approach. I reiterate that we have discussed this with colleagues in Dublin. They have made it clear that they do not have the capacity to offer CAR T-cell therapy to patients in Northern Ireland at this time and that, if they were to set about trying to increase their capacity, it would take longer to do that than is scheduled for the opening of the new haematology ward at Belfast City Hospital.

Health and Social Care: Identification of Abuse

T4. **Mr Dunne** asked the Minister of Health, taking into account the headlines in this afternoon's local media that 37 people have come forward to say that they were abused by Jonathan Creswell and given that the Katie Simpson review found that repeated presentations to hospital with injuries were not recognised as potential indicators of abuse, what specific steps his Department is taking to ensure that, across the health service, patterns of harm are properly identified and, importantly, acted on. (AQT 2304/22-27)

Mr Nesbitt: The Member is referring to information that, as he said, has just come into the public domain. The Department and the trusts will need some time to look at that. I assure the Member that the identification of abuse is a core part of training across the Health and Social Care system.

Mr Dunne: I thank the Minister for his answer. Will the Minister commit to introducing new safeguarding triggers or flagging systems in

A&E departments and across GP settings to ensure that no patient who presents repeatedly with injuries ever again falls through the cracks?

Mr Nesbitt: I am certainly happy to go back to the Department and ask whether a review of current safeguarding procedures is required.

Health and Social Care: Data Collection

T5. **Mr Gaston** asked the Minister of Health, given that, in reply to a recent question for written answer, he said that he is conducting a review of how gender and biological sex are recorded across his Department, when the Health and Social Care data directory began collecting information based on gender as distinct from sex at birth and what issues that has created for the health service. (AQT 2305/22-27)

Mr Nesbitt: That is a level of detail that I do not carry in my head, but I am more than happy to write to the Member.

Mr Gaston: Will the Minister assure the House that his Department has not been sending letters to biological men about smear tests or medical conditions that impact on biological women specifically? Is it not an indictment of his Department that it is so captured by wokery that I have to ask such a question?

Mr Nesbitt: I am more than happy to check, but I imagine that, if such letters are being issued, they are being issued by the trusts, not the Department.

Elective Care Targets

T6. **Mr Allen** asked the Minister of Health for an update on the Programme for Government elective care targets, given that one of the biggest issues raised with the Member and others is access to timely treatment. (AQT 2306/22-27)

Mr Nesbitt: I thank the Member for his question. I can give him some statistics now. We had 262,773 episodes of delivery to the end of February. That took place over 11 months. There was a 68% reduction from peak endoscopy waits. There was a 98% reduction in patients — in real terms, that is 5,287 people — for named procedures, primarily targeting longest waits and some paediatric services. From March 2025 to March this year, there was

a 16% — 15,500 — reduction in patients on an inpatient or day-case list.

Mr Allen: I thank the Minister for his answer. That is welcome progress, and it is welcome that those people got timely treatment. I am sure that the Minister will join me in recognising the staff who are at the front end of that service delivery.

What impact is the lack of budget certainty having on the delivery of the targets?

Mr Nesbitt: On the first point, there seems to be a great deal of cynicism about the statistics. There are about 70,000 people working in Health and Social Care, and a significant number of them have been working on the waiting list initiative, which has delivered around three times the Programme for Government target. Being so cynical and sceptical about the statistics, as if the Department is making them up at random, does nothing for the morale of those people. Those people are working long hours, including nights and weekends, and are making a real difference on the waiting list initiative.

On the second point, there is no Budget. We are therefore losing momentum on the waiting list initiative, and that is potentially disastrous, having done so well in the 2025-26 financial year. It takes up to six weeks to schedule additional work. You have to book a theatre. You have to rota staff. You have to persuade staff to give up an evening or maybe a Saturday morning when they have other pressures on their life, not least family life and work-life balance. The lack of a budget is doing real damage and putting very much at risk the progress that we have made to date. The history of such things says that, when you ring-fence money for waiting list initiatives, the waiting lists come down, and, when you stop spending the money, they go back up. That is what will happen without the reform that I am trying to bring forward and embed in the remaining months of the mandate.

Healthcare: Community and Voluntary Sector

T7. **Mr Beattie** asked the Minister of Health, after stating that he was pleased to join the Minister on a visit to Knitted Knockers in Lurgan in the Member's constituency, where they met the irrepressible Joanne Harris, a Pride of Britain winner, whether he agrees that the local community and voluntary sector plays an essential role in the support and delivery of

healthcare across Northern Ireland. (AQT 2307/22-27)

Mr Nesbitt: It was an absolute privilege to visit Knitted Knockers, and it was energising to see the enthusiasm in the room. I agree with the Member. In fact, before my role as a politician, I was a commissioner at the Commission for Victims and Survivors. Early on in that tenure, it became clear to me that the only people who were making a difference to victims and survivors on a practical, day-to-day basis were those in the voluntary and community sector who looked after the ordinary, day-to-day needs such as getting children to and from school, doing a bit of shopping or trying to find some resource for them. I cannot speak more highly of the community and voluntary sector. As we move to a neighbourhood model, I hope to reward and embed it in the new system.

Mr Beattie: Given the known benefits of that relationship, such as satisfaction and value for money, does the Minister hope to expand it through the neighbourhood model that he has just mentioned?

Mr Nesbitt: Absolutely. It has a key role to play. We look to GPs, community pharmacists and everybody delivering primary care. We look to local councils and everybody who has a stake in community development. On the collaborative issue, the community, voluntary and charity sector will be prime and central to that group of people.

2.45 pm

Silverbirch Medical Practice, Bangor.

T8. **Mr Chambers** asked the Minister of Health whether he will join him in welcoming the recent issuing of a new contract for the Silverbirch Medical Practice in Bangor. (AQT 2308/22-27)

Mr Nesbitt: I absolutely will. I believe that it was a one-handed practice, and the GP decided to retire. I am pleased that the Department was able to work with partners at pace to provide a replacement service. The paperwork is being processed as we speak, at which point the strategic planning and performance group will write out to the patients who use the Silverbirch Medical Practice in Bangor to let them know about the new arrangements.

Mr Chambers: I welcome the Minister's remarks. The news was particularly welcome for the almost 2,700 patients. How does the

Minister hope to bring GPs in North Down along with him on the move to his new neighbourhood model?

(Madam Principal Deputy Speaker in the Chair)

Mr Nesbitt: I hope that the GPs are getting a sense of the potential offered by shift left to give them the rewards, resources and funding that they have been calling for over a number of years. I am proud to report on one initiative, and it is a shameless replication of my decision to ask Professor Mark Taylor to lead the waiting lists initiative. We can all agree that that has been an outstanding success. I have decided to replicate that, and I am pleased to say that Dr David Ross, who is a well-known and respected general practitioner, has agreed to replicate that role in the roll-out of the neighbourhood model.

Madam Principal Deputy Speaker: That ends questions to the Minister for Health.

Mr Nesbitt: On a point of order, Madam Principal Deputy Speaker. I believe that Mr Gaston made a point of order earlier in which he questioned whether I had misled the House with regard to dental amalgam. Hansard records that, on Tuesday 28 April, Mr Gaston said:

"We have changes relating to dental amalgam driven by EU alignment rules that will create further complexity in supply and cost. That is happening here in Northern Ireland in a way that does not apply across the rest of our United Kingdom."

He went on to say:

"That is because of the Irish Sea border". — [Official Report (Hansard), 28 April 2026, p59, col 1].

Principal Deputy Speaker, the dental amalgam changes that were discussed in that debate arise from an international meeting held in November 2025 called a Minamata Convention conference of parties. It agreed to set 2034 as the global date for phasing out dental amalgam, and that is an international commitment that applies UK-wide. It is not a product of the Irish Sea border, as the Member claimed. I am happy to put his record straight.

Madam Principal Deputy Speaker: The Minister will be aware that I cannot make a decision on the point of order that was raised earlier, but I am happy that he was able to put his response on the record.

Executive Committee Business

Northern Ireland Fiscal Council Bill: Consideration Stage

Clause 3 (Budget assessment reports)

Debate resumed on amendment No 1, which amendment was:

In page 2, line 11, at end insert—

"(bb) consideration of the extent to which the proposed budget is aligned with the most recently agreed Programme for Government required under section 20(3) of the Northern Ireland Act 1998."— *[Mr O'Toole.]*

The following amendments stood on the Marshalled List:

No 2: In page 2, line 11, at end insert—

"(bb) consideration of the impact of the proposed budget on the economy of Northern Ireland;"— *[Mr O'Toole.]*

No 3: In page 2, line 12, after "assessment" insert ", which may include consideration of the potential impact of the proposed budget on the economy of Northern Ireland".— *[Mr O'Toole.]*

No 4: In clause 4, page 2, line 25, at end insert—

"(ca) costs of duplicated public service provision,"— *[Mr Tennyson.]*

No 5: In clause 4, page 2, line 34, at end insert—

"(bb) the Council's view of the impact of duplication in the delivery of public services on fiscal sustainability, and"— *[Mr O'Toole.]*

Madam Principal Deputy Speaker: We now continue the Consideration Stage of the Northern Ireland Fiscal Council Bill. Matthew O'Toole was on his feet, and I invite him to be on his feet again and to be concise.

Mr O'Toole: These are very important amendments. We spend a lot of time debating non-binding motions, and it is important that the House considers actual legislation and amendments to legislation in detail. That is not

to say that non-binding motions are not important — we are moving one later today — but it is important that we discuss these matters, and I intend to give them proper consideration, as the House would expect, given both the roles that I hold.

I talked about amendment No 1 and the logic in aligning a Programme for Government (PFG) with a Budget and ensuring that the Fiscal Council is mandated to properly test and tell the public whether the Programme for Government aligns with the Budget. The Bill has the flexibility to give the Fiscal Council the power to do whatever it likes, within reason, but the Bill also makes a specific choice to mandate the Fiscal Council to do specific things. The amendments create a specific obligation or expectation that the Fiscal Council will do specific things, but they are designed to be flexible, and they do not create onerous additional burdens. I want to be clear about that. However, the alignment between the PFG and the Budget is critical, and specifically asking the Fiscal Council to ensure that there is a commentary on how well those two things are aligned is a natural and essential step forward for scrutiny. If we were not to pass that today, people in the outside world would rightly wonder why not. They would ask what the Assembly or the Executive have to fear from the Fiscal Council simply being asked to reflect on this in relation to the legislation. That is amendment No 1.

Amendment Nos 2 and 3 are connected. They are mutually exclusive, but I tabled both for a reason. I did so because it is important that we debate properly in the Chamber. A lot of time is spent on non-binding motions, but this is an opportunity to talk about amendments and, in a sense, offer the Assembly a choice. I am of the view — I said it earlier — that we do not discuss economic impacts enough in this place. It is one reason why the public are frustrated and why some of our political debate touches on only half the point. Due to the nature of the devolved spending settlement, we, of course, focus on how much money we have and on the fact that we might want more money from the UK Government. Those are legitimate questions. We have had a lot of debate about the calculation of relative need here in Northern Ireland. That is an essential debate, but it is also important that we debate the economic impact of policies.

Economic impact does not straightforwardly mean growth, albeit the Assembly will note that, today, we have had a rather concerning forecast from Ernst and Young (EY), one of the few bodies that does a Northern Ireland-specific

economic forecast, which suggests that our economy will grow by 0.7% this year. That is due to a range of things, including our particular exposure to the crisis in the Middle East, which, we all know, was prompted by Donald Trump, and the pressures that it has created, and, possibly, to some extent, the constrained public spending situation. That will have an economic impact in Northern Ireland. The lower economic growth in Northern Ireland will have a range of impacts. It will mean that there will be fewer jobs created in our constituencies and less money to spend on our high streets. All of that will feed through to the Finance Minister and the Executive through other pressures that will be created. They will not necessarily be direct fiscal pressures, but, in some cases, they will be fiscal because rates revenue and the amount of rates that goes unpaid is, in part, driven by economic activity or lack of economic activity on the high street. The fact that growth is going to be at just 0.7% in the North, this year, also means that more people than would normally be the case will be in receipt of benefits, seeking assistance or under pressure in some form or other. We know that lots of people are under pressure because of the huge increase in the cost of diesel and home heating oil.

Every policy that we pursue will have an economic consequence, but we rarely debate them properly; we sometimes touch on them or allude to them. Amendment Nos 2 and 3 offer a choice. They offer the Fiscal Council the opportunity to give us, and the public, commentary on the economic consequences of decisions that are made or not made. I will give a few examples, because I do not want people to think that it is about one perspective. The Minister has talked a lot about external commentators in relation to Executive choices. There are external commentators who have a particular view about decisions that are made or not made by the Executive, but every one of those decisions would have economic consequences — potential upsides and downsides — that would need to be understood. Take, for example, decisions on Northern Ireland Water and funding it, albeit I do not think that there is any appetite for introducing water charges. If we were to think about increasing borrowing — the Minister has done a little bit of that — to pay for investment in Northern Ireland Water, one would imagine that that would have economic consequences and impacts, amongst which would be the building of more houses, more economic growth and, therefore, more jobs for people in Northern Ireland. Therefore that is a legitimate thing to discuss.

People from a different political perspective have talked a lot about public-sector wages — I do not agree with those people. Historically, public-sector workers in the North have struggled with the lack of pay parity and have had to strike and take industrial action. It is also true to say that, if they do not receive pay parity, there is less money for them to spend in the shops, small businesses, pubs etc.

To be clear, my suggested amendments do not mandate, nor should they be understood to mandate, the Fiscal Council to produce a macroeconomic forecast. That would be a big deal, and we heard in evidence at the Committee that it would not be something for which the Fiscal Council would have capacity. I was curious about that as a potential measure. Having taken and heard the evidence and having thought about and considered it, I do not think that it would be practical to ask the Fiscal Council to produce the kind of things that the Office for Budgetary Responsibility in London produces, such as a twice-yearly updated forecast of growth, unemployment, inflation and a range of other things. I do not think that that would be a responsible expectation for the Fiscal Council, but I do think that it is potentially reasonable to ask the council to do that when, as the Bill says, it is considering its Budget assessment reports and considering the impact of the Budget on the economy of Northern Ireland. That does not require a forecast and would not require huge additional resource; it would simply require the council to do some level of macroeconomic analysis of the impact. That would genuinely improve our policy debate.

It is worth saying that there is, as it were, a parallel precedent for there being an economic context to the Budget, because every Budget, certainly since I have been in this place, that has been produced by the Department of Finance includes an economic chapter at the very beginning and says, "This is the context for the local economy. This is where growth is. This is where we think the economy is". There is then a whole series of chapters on individual Departments. There is a legitimate question about how connected that economic analysis is to the judgements or decisions made latterly on Budget allocations. All I am saying is this: let us join that up a bit more, and let us have more of a conversation about economic impacts. There is no particular left/right or unionist/nationalist persuasion to this; it is simply about us doing policy better.

Amendment Nos 2 and 3 are mutually exclusive, and I will explain why that is the case. Both amendments amend clause 3, but

amendment No 2 places an equality of consideration of economic impacts alongside the various other requirements on the council under clause 3. Therefore, it is giving, in a sense, equality, as in it is saying, "This is one of the things that is closer to the level of consideration that has to be given to clauses 3(2)(a), 3(2)(b) and 3(2)(c)".

Amendment No 3 is a little bit more muted in that it says — I will not go through the text and where it falls — that the council:

"may include consideration of the potential impact of the proposed budget ... of Northern Ireland".

That gives the Fiscal Council more flexibility, and it is designed to give the Fiscal Council more flexibility. We discussed some of this in the Committee. It cannot be said that we are putting an onerous or unacceptable burden on the council's resources. The amendment gives the council the power and specifies that we think that it may want to use that power to analyse proposed potential impacts.

I would rather that we pass amendment No 2, but I am also content with amendment No 3, if there is a majority for it in the House. I am genuinely intrigued to hear what other parties, including Executive and non-Executive parties, think about that, because I genuinely do not understand why we would not do this. I put down both amendments because I am keen to hear debate and hear what objection or support Members have for either of those amendments. Hopefully, there will be some response, and I am more than content not to move one of the amendments if there is a preference for the other.

I am really clear that one of the most consistent frustrations that I have had, not just since I have been leader of the Opposition but since I have been an MLA, is that we do not talk often enough about economic impacts. If the Minister has announced an aspiration to devolve more fiscal powers to him here, he and I share that aspiration. Others in the Chamber do not, and I respect that, too. This is without prejudice to whether we do that or not, but, whether we do that or not, we need to have a much richer debate about economic impacts. That would serve not just the business community but workers and families in this society and would add to the quality of debate.

Amendment Nos 2 and 3 are mutually exclusive, and I hope that Members are able to support at least one of them. Obviously, if they support one, the other one will be defeated. I

am happy to hear from Members, and I am also happy to take interventions and answer questions as the debate goes on.

Amendment No 5 is also in my name and is similar to an amendment put down by Mr Tennyson. We know, here in Northern Ireland, that there have been lots of reports about the pernicious effect of what is often called the "cost of division". It is not called the cost of division in either of the two amendments that we are debating today; it is called the duplication of public services.

3.00 pm

There have been various reports from Ulster University, Deloitte — in relation to policing — and various other sources that have talked about the fiscal consequences.

There may be economic consequences, but we are not asking that the council look at them. They are fiscal consequences, which are the consequences for public spending from having to duplicate public services and therefore create additional pressure at a time when there is already real pressure. The Minister tells us all the time how much pressure there is. We know the constraints that there are on other Ministers' budgets. It is reasonable for us to get a proper estimate of those costs from the Fiscal Council. To be clear, I cannot speak for Mr Tennyson, so I will not, but we are talking about broadly the same thing and are probably in broad sympathy with each other's amendments.

My amendment No 5 relates to clause 4, which deals with fiscal sustainability reports. They are the more thematic, longer-term reports that the Fiscal Council produces, not the annual Budget report. It would not be practical to go through every annual Budget and say, "There is duplication of services here, there and everywhere". Fiscal sustainability reports are thematic. They allow the Fiscal Council to look at an issue. It has produced several of them in the past few years. It is not unreasonable for us to make a specific request of the council that it look at the cost of duplicating services; in fact, it would be a healthy thing for it to do. It may well throw more light on the issue. It may be that some of the numbers that have been quoted — the hundreds of millions of pounds a year — are either not borne out or are borne out in ways that surprise us. The council would not be making policy decisions. It would not be making decisions for the Minister of Finance or, indeed, any other Minister. This would simply help improve the data on which we make policy decisions.

Those are our four amendments, two of which are mutually exclusive. They are, I hope, reasonable and sensible. To repeat, they do not place a significant additional burden on the Fiscal Council. I hope, as the proposer of the amendments, that my words will reassure Members that it is not my expectation or intention that they will create significant additional burdens on the Fiscal Council. It is, however, my contention that the quality of our policy debate is not good enough. I do not think that anybody could argue that the quality of government overall — something for which we are collectively responsible — has been good enough. As the Opposition, we are relentlessly focused on improving our accountability and scrutiny. Sometimes, that involves moments of robust challenge and even theatrical display. Today, however, is about creating in law more power for that really important watchdog, the Fiscal Council, to report and give clarity to us as MLAs, to the public more generally and to the media and the people who report on such things, so that we can have robust and better policy outcomes. The amendments are reasonable. They would improve scrutiny when it comes to delivery of the Programme for Government, the economic impact of our policies in the Budget and understanding the cost of division.

I commend the amendments to the House. I very much hope that colleagues in the Executive parties, in the spirit of constructive engagement and improving how we do government here, will be able to support them. I am happy to answer any further questions about them. I genuinely do not understand why colleagues would not support the amendments, but I hope that they will. Thank you all for listening to me.

Miss Dolan: After several years of operating and helping to provide scrutiny and transparency in public finances, the legislation will put the Fiscal Council on a statutory footing, bringing it into line with best practice in other jurisdictions, safeguarding its independence and protecting its scrutiny role. I am sure that others in the Chamber will agree that the Fiscal Council has had a positive impact since its formation four years ago, having published over 20 reports ranging from Budget assessments to reports on the sustainability of our public finances and health system.

I turn to the amendments. Evidence provided by similar bodies from neighbouring jurisdictions during Committee Stage has been useful in informing us and helping us understand how such institutions can evolve. Amendment Nos 2 and 3 seek to expand the Fiscal Council's remit

to include economic and fiscal forecasting. While I recognise the intention behind the amendments, Members should be mindful that our context differs significantly from that of other jurisdictions. For example, the Scottish Fiscal Commission (SFC) provides forecasts to support the Scottish Government's Budget process, but that reflects a different set of fiscal powers, particularly on taxation, that we do not currently possess.

Mr O'Toole: Will the Member give way?

Miss Dolan: No, sorry.

Indeed, as the Chair of the Fiscal Council has stated, its current role is more reflective of our financial framework, where most Executive revenue comes from the block grant. While I obviously support the broader principle of enhanced financial powers and acknowledge that such amendments point to a possible future direction, I do not believe that it is necessary or appropriate to legislate for that change at this time.

A Member: Will the Member give way?

Miss Dolan: No, thank you.

Amendment Nos 4 and 5 relate to expanding the council's scope to examine issues such as the cost of duplication of services. While the intention behind the amendments is clear, the existing flexibility in the Bill already allows the council to explore such areas where it deems it appropriate without the need for explicit provision.

The fundamental purpose of the Bill is to maintain and strengthen the Fiscal Council's independence in assessing the sustainability of our public finances, and the council itself has supported the legislation as achieving that aim. The OECD has also stated that the Bill has been developed in line with principles for independent fiscal institutions.

I thank the Minister and the Department for their engagement with the Committee, particularly for bringing forward amendments to the explanatory and financial memorandum for consideration.

While I have considered the amendments and understand the rationale behind them, I do not believe that they are necessary. I therefore welcome the Bill as a positive step forward in placing the Fiscal Council on a statutory footing but will not support the amendments.

Ms Forsythe: I welcome the opportunity to speak on another piece of substantive legislation from the Department of Finance, and thank the departmental officials, Finance Committee staff and all who gave evidence in Committee as we worked hard on the Bill. We welcome the Bill, which underpins the Fiscal Council's work with a statutory basis, following its operation since 2021, and the way in which it clearly emphasises its independence in governance as key. The statutory foundation of the Northern Ireland Fiscal Council will further bolster its ability to carry out independent scrutiny of our financial situation at a time of economic uncertainty and unprecedented pressures facing our public service delivery, and establishing, through this legislation, a legally binding oversight body should help our efforts.

There is nothing more important to our taxpayers than to see transparency and accountability when it comes to public money. To date, our Fiscal Council has demonstrated the positive impact that it has had in improving transparency, scrutiny and understanding of our public finances. Its wide range of reports far exceeds what it is required to do, including, quite recently, its assessment of Northern Ireland Water's funding model, and shows the council's ability to scrutinise across many departmental remits and address some uncomfortable truths that hamper our ability to deliver, as well as issues coming from our public finances.

As others have outlined, the clauses set out what the council would do, the required reports and some of the details of those. It is important to point to the mission of the Fiscal Council, which is:

"to bring greater transparency and independent scrutiny to the current and future condition of Northern Ireland's public finances, to inform public debate and policy decisions".

For me, that last point is critical: it is independent assessment of Northern Ireland finances to inform policy decisions, to inform public debate, not to be a part of those. It is not for the Fiscal Council to perform as economists, pass political opinion or to be prescribed in legislation to undertake work with any potentially politically defined objectives. The Fiscal Council's independence and professional discretion is essential to protect all the things that are proposed in the amendments.

All of the amendments raise sensible conversations that we all want to be a part of

and debates that we all should be engaged in. However, we do not believe that they are best placed in the legislation, prescribing things as "essential duties" of the Fiscal Council. The amendments call on the Fiscal Council to do more than report on the public finances; they call on the council to give opinions, to perform as policy analysts and, potentially, economists. That is not its current role, and it could change the dynamic of how it operates.

In amendment No 1, there is a call for a consideration as to the extent to which the proposed Budget aligns with the most recently agreed Programme for Government. Under its professional discretion, the Northern Ireland Fiscal Council is free to make any comment on that as it sees fit. It has done in the past, and I have every confidence that it will in the future. That is a varying opinion and part of the public debate, as Executive Ministers and those critiquing them have different views. The leader of the Opposition said in this debate that that would give the Fiscal Council:

"a clear mandate to comment on how well the Executive are delivering".

That comment is quite politically motivated, and it led to comments on his other amendments that did not make it through, including one that proposed that the Fiscal Council would make costings from Opposition proposals. That would err on the side of doing the Opposition's job for it and put the Fiscal Council into the middle of the political operation of how the Opposition and the Executive work.

Passing amendment No 1 would introduce a requirement for how the alignment would be measured as well as assessed reports. The detail on how that would operate is unclear. We feel that the current application of the Fiscal Council's professional discretion, as necessary, is appropriate to inform public debate without injecting a new statutory duty.

Regarding amendment Nos 2 and 3, we see the role of the Fiscal Council as being to report on public finances in order to feed economists in their work of making assessments. It is not the role of the Fiscal Council to act as an economist. There are economists in place across the Northern Ireland Civil Service whose job is to assess the output of bodies such as the Fiscal Council, and the wider impacts on each Department. In the Department for the Economy, the economists' role is also to assess the impact of public financial activities on the Northern Ireland economy. We recognise the need for and the importance of that role, and we acknowledge that it may be somewhat

lacking. That brings back into question the Northern Ireland Audit Office report into some of the capacity and capability in the Northern Ireland Civil Service. That report highlights the need to enhance skill sets and roles around how reform and the work of economists may be delivered, but we do not believe that that is the role of the Northern Ireland Fiscal Council, and we do not support its being added to the legislation.

Amendment Nos 4 and 5 bring in a somewhat political interpretation of what may be considered by some to be the cost of duplication. It is unclear how the proposers of those amendments intend to define that. If the Fiscal Council was so minded to undertake that work, it could do so under its current discretionary powers. However, that seems more like a potential report for a body like the Northern Ireland Audit Office or an exercise that, if it had added value, should be undertaken by each Department or arm's-length body to interrogate their data and pull out evidence on which services are genuinely being duplicated, rather than having a high-level helicopter view, as has been the case with some previous reports that are in the public domain.

There is a genuine need for work to identify inefficiencies in how we deliver our public services, and it goes alongside the need for transformation of our public services. It cannot and should not be a generic piece. It needs to be reviewed properly and operationally. For example, in the health service, we have multiple arm's-length bodies, with duplication of many back-office functions, including form-filling, administration and transfer of data. That needs to be interrogated by management, internal audit, external audit and reformed. Those are operational and meaningful tasks.

Dr Aiken: I thank the Member for giving way. The Member will be aware that the recent Fiscal Council report quoted that, based on an analysis of like-for-like delivery of public services, there were 1.88 civil servants here for every one in England and Wales. The Ulster Unionist Party will support amendment No 5 because the real issue that we seem to have here is that the Northern Ireland Civil Service, in all its years, has never identified that internally as being a problem. In one report, the Fiscal Council brought that issue to the fore. Therefore, does she not see that there is merit in amendment No 5?

Ms Forsythe: I thank the Member for his intervention. I completely agree with the point that he made about the quantification of public-

sector workers, but I do not necessarily think that addressing the impact of duplication in the delivery of public services, as set out in the amendment, is the answer. I believe that there is a piece of work there. It is really important, and there are wider issues around that, but my concern about adding the line into the legislation is that it is not clearly enough defined. For example, if that one piece of work were done, what other pieces of work would come under that, and how would they be resourced by the Fiscal Council? Therefore, I do not believe that it is concise enough, but I totally agree with him about the piece of work that he is suggesting needs to happen. On that, it is worth pointing out that, currently, the Fiscal Council is quite modestly staffed, with limited resources, so prescribing things in legislation would mean that some things would be prioritised over others.

To us, the critical value of the Fiscal Council is its independence. The financial reviews, opinions, presentations or bids that come from within Government are often shaped by a particular perspective. In our consideration, we reviewed and had concerns about the Department of Finance's role and how that sat in the legislation. It is important that the view of the Minister or whoever sits in the Department cannot persuade the actions of the Fiscal Council. Throughout our scrutiny, we considered the operation of that at length and received assurances that the independence of the Fiscal Council will be maintained.

3.15 pm

The Bill also mentions that there may be additional funding requirements. We believe that it is important that the Assembly is consulted when it comes to any additional funding that is needed, because, as we set up this body in legislation, we should not write a blank cheque for it or any other public body that would allow them to grow without submitting formal proposals or business cases. We must always work together to ensure that we achieve the best value for money for Northern Ireland taxpayers.

We have spoken at length in the Chamber —.

Mr O'Toole: Will the Member give way?

Ms Forsythe: Yes.

Mr O'Toole: I appreciate that the Member's party has taken a position on that. Obviously, I will wind up on the amendments later. Does the Member accept that we are entitled to legislate

for any public body to do specific things? One would not expect a business case for a specific thing to appear in primary legislation.

Ms Forsythe: I thank the Member for his intervention. I completely agree, but it is important to make the point that, as multiple new bodies and quangos are being set up, we must, at the outset, keep a close eye on them and not write blank cheques that allow them to grow unchecked.

To us, the role that the Northern Ireland Fiscal Council plays is important, and we welcome the Bill, which will underpin the Fiscal Council's work on a statutory basis. We believe that maintaining the independence of that body is paramount and essential.

Mr Tennyson: I, like others, welcome the opportunity to contribute to the Consideration Stage of the Fiscal Council Bill. I welcome the progress that has been made on the Bill to date and the steps that have been taken towards placing the Fiscal Council on a statutory and permanent footing, following the New Decade, New Approach agreement.

The Fiscal Council was created to bring independent scrutiny, transparency and long-term thinking to our public finances. Since 2021, it has been doing that. Its detailed Budget assessments and work on Northern Ireland's funding formula and issues such as the sustainability and viability of NI Water have been indispensable to all of us as elected representatives and brought greater transparency for the media and the public about how exactly the Executive spend their money.

If ever there were a time when those qualities of transparency and scrutiny were needed, it is now, as the Executive look into yet another budgetary crisis, with shortfalls affecting every Department, service and family across Northern Ireland. Our constituents see that pressure in their schools and hospitals, in crumbling roads and in long housing waiting lists. Those pressures have not developed overnight. We have a duty not only to stabilise our finances but to respond with honesty about the structural challenges that lock Stormont into a cycle of overspending and short-term fixes. That is precisely what amendment No 4 in my name and amendment No 5 in Matthew O'Toole's name seek to address. Those amendments seek to go some way towards grappling with one such structural challenge: the cost associated with running duplicated public services in a divided society.

The cost of division has been spoken about repeatedly in the Chamber over the years. It has been estimated, debated and, at times, acknowledged, but, most of the time, it is avoided. Previous estimates have suggested that the cost of division could be up to £833 million every single year owing to duplication in education, leisure and community provision; segregation in housing; and the additional costs associated with policing a divided society. Allow me to be the very first to acknowledge that not all those costs are direct costs to the Executive or entirely avoidable, but we know that that duplication exists and that it is a reality. Tackling that cost, from my perspective, is not only about driving down the financial costs associated with division but about looking at the real benefits that exist for our society. According to research from Pivotal, there is an overlay, if you like, between levels of division in our society and levels of deprivation. There should be a real imperative on all of us to look at how we can better integrate communities. There is also the social benefit of children and young people growing up in communities where they are mixing, playing, working and socialising with people from different community backgrounds. That will be crucial if we are to build the more integrated, shared and reconciled community to which, I believe, the vast majority of people in Northern Ireland aspire.

Amendment Nos 4 and 5 seek to increase the transparency of and focus on the cost of division by asking the Fiscal Council to consider those costs as part of its thematic financial sustainability reports. Contrary to what some other contributors have said, this is not about forcing a particular policy outcome, nor is it about encroaching on the independence of the Fiscal Council, as others have claimed: far from it. It is about equipping ourselves with the facts and acknowledging that the cost of division is a reality; not some abstract concept but rather a real burden on our society. I accept that the Bill has been developed in line with OECD principles, and it is right that the Bill reflects international best practice, but so too must it stand up against the lived reality of our communities and our public services locally and respond to our local needs.

We have heard that, by being specific about wanting the Fiscal Council to look at those issues, we are interfering with its ability to be independent. I do not accept that. How far does that argument travel? If we are to place any parameters in the Bill on what the Fiscal Council should look at, does that impinge on its independence? We are not saying that the Fiscal Council should come with policy

recommendations about how to deal with the cost of division. It may well report that there are some direct costs to certain Departments because we are a divided society. There may, then, be a political choice by Assembly Members to sustain those because they feel that that is the best way forward. That is a political judgement, but none of us should be afraid of being confronted with the available evidence.

More than that, I think that, by putting that in legislation, we are insulating the Fiscal Council from allegations of acting politically, and we are empowering it to use its discretion to look at the issues. In every debate in which I have participated, the DUP and Sinn Féin have been entirely reluctant to discuss or confront the very real costs of division that exist in our society. If the Assembly legislates to give the Fiscal Council permission to look at those issues, that will protect its independence when it presents its findings to the Assembly.

I want to look at the leader of the Opposition's amendments in turn. Amendment No 1 deals with enabling the Fiscal Council to report on, effectively, how the profile of spend reflects commitments made in the Programme for Government. I certainly have no difficulty, representing a party that is in the Executive, with that ambition. If a Programme for Government is to mean anything, we should be able to evidence that those priorities have been followed through in Budget allocations. If you look at the Executive's capital profile, you see that there is a specific issue where, effectively, the delays in delivering infrastructure projects and the lack of an investment strategy mean that capital priorities often reflect the priorities of Executives gone by, rather than those of current Ministers. I believe that amendment No 1 is not overly onerous, nor is it in any way political, because the Executive are setting their priorities, but it would give the public and Assembly Members greater insight as to whether funding is following through on what has been agreed in the Programme for Government.

Turning to amendment Nos 2 and 3, I was fairly hesitant when the issue was first raised by Mr O'Toole in the Finance Committee. At that stage, we were having a discussion about the potential for economic forecasting. My view was and is that forecasting is not necessary for the Fiscal Council and that we do not have a huge range of tax-raising powers devolved to the Assembly at this point, though it may be an issue that we would want to look at in the future. I acknowledge, however, that Mr O'Toole has revised that proposal significantly and,

amendment No 3, which is my preference, simply says that the Fiscal Council's conclusions in its sustainability reports:

"may include consideration of the potential impact of the proposed budget on the economy of Northern Ireland".

Again, that gives the Fiscal Council permission to go into that space, while not requiring it to do so on every occasion, ensuring that we protect its independence and giving it the flexibility to draw its own conclusions. I am happy to support amendment No 3. Likewise, if my amendment No 4 falls, I will be happy to support amendment No 5.

In relation to my amendment No 4, I recognise that the Fiscal Council is not the be-all and end-all when it comes to the cost of division. Diane Forsythe said that there is a job of work for Departments and arm's-length bodies to do, and I agree with that. For quite some time now, I have been calling for the Finance Minister and the UK Government to lead an independent assessment of the cost of duplication and division in our public services. A lot of us saw the cliff edge coming. Once we reached agreement with the Treasury in 2024, we saw that there would inevitably be new challenges over the horizon. The opportunity has not been grasped to have a serious conversation about where money could be saved through tackling division in our community and reducing duplication in our public services. If the Member's argument is that Departments and arm's-length bodies should do that, why not place that scrutiny and transparency on a statutory footing so that the financial watchdog can ensure that Departments follow through with those commitments?

I absolutely commend the Bill's Consideration Stage, and I commend the amendments that have been tabled. If Members are serious not just about scrutiny but about building a reconciled and integrated community, and if they are serious about funding our public services and not segregation, I ask them to support the cost of division amendments that are before us today.

Dr Aiken: I thank Members for their discussion points so far. The Ulster Unionist Party will support amendment Nos 1, 2, 3 and 5.

I will take Members back in time to when the process of putting a fiscal council in place was first mooted as part of the Stormont House Agreement. I was not around in politics back then, but, when we had the numerous discussions in Stormont Castle in 2016-17, one

of the issues was how we would make a fiscal council or a fiscal system with an independent body overseeing how we did our finances and what that was likely to be.

The key to this, and the principal point that I will talk about, is that, for every input that we put into the system, we should have an output and be able to measure its effectiveness. We cannot do that in isolation, however; we have to do it against the background of what is happening in the economy and the impact that it has on the economy as we go forward. The model that many of us have looked at is the Scottish model. Members have rightly talked about the fact that we do not have tax-raising powers, or at least not to that extent, yet. However, we need to build up an evidence base of the effectiveness of our government: what it is capable of delivering and how it can deliver it independently. We have heard from some Members that we can look at the Civil Service's delivery and output, but we have been around that buoy quite a few times since devolution in 1998, and the Civil Service has never delivered the degree of oversight and improvement that we need to see, nor, indeed, the data and the ability necessary to show how our effectiveness will be delivered.

We are in a situation where, to use one example, we have spent close on £200 million on the A5 road, which is vital, and the York Street interchange, which is also badly needed, but have not laid 1 square metre of tarmac. What was the input into that? What was the output from that? What is the effectiveness of that? It would have been useful to have that measured effectively and independently by the Fiscal Council. One thing that we have seen from the Fiscal Council — I will say right now that I am a great supporter of Sir Robert Chote and the team — is the curiosity to look into some of the issues with that. It should be possible to have that degree of looking at economic growth and its impact laid down in statute.

The Scottish system looks at supplementary costings. That means non-input costings that have come from HM Exchequer or other external sources. Northern Ireland is a classic example. Every time that we ask what the economic cost of the Windsor framework is, nobody can give us an answer, because the Government do not collect or look at the figures. Those supplementary costings should be linked to the system. We are not doing that. We need to have a method of achieving that in our aims and objectives.

In the short time that the Fiscal Council has been in place, it has gained a reputation for stalwart delivery of the facts. It has used every piece of information available to it in the context that we are in. However, it must be able to do that against the wider background of the economic situation in Northern Ireland. That is important.

We have heard today about the difference in growth figures. Anybody who looks at the growth figures in the Republic of Ireland will say that a lot of that is due specifically to FDI growth, profits being exchanged or the increase in Apple profits.

If Members were to ask anybody in Dáil Éireann what the Irish Republic's growth level is, they would talk not about GDP but about gross national income (GNI), because they know about its economic impact on people. We have no real information on which to base our GDP or GNI. The amendments would give the Fiscal Council the legislative breadth — perhaps later, rather than right now — to consider those economic issues. It is not about forecasting. We had a very valuable debate in the Finance Committee about those issues. I accept what the proposer said in that regard. I would have gone further, but I think that that is the direction of travel in which the proposer and I wish to go in principle. I will not delay the House any further. We will support amendment Nos 1, 2, 3 and 5.

3.30 pm

Mr Tennyson: I thank the Member for giving way. He says that he will support amendment No 5, but he did not reference amendment No 4 in his remarks. Ostensibly, amendment Nos 4 and 5 are trying to achieve the same thing. The proposer of amendment No 5 and I have been pretty magnanimous in supporting the other's position. Will the Member explain what he believes to be the difference between the two? Given that they are ostensibly trying to achieve the same thing, why will he not also support amendment No 4?

Dr Aiken: I thank the Member for his intervention. I preferred the explanation from the leader of the Opposition. Either way, it is not going to make much difference. I firmly believe, however, that it is an area at which we should be looking.

It is vital that the council be able to look at the cost of duplication. When we invited in the Treasury to do an open-book exercise, it found £3.5 billion in savings. Although that is a highly

disputed figure, the Fiscal Council was able to point out that there are 1.88 civil servants per single job in Northern Ireland. We need to get to the bottom of that, and we need to do so in an independent and verifiable way. We cannot rely on the Civil Service for such figures, given its voluntary exit scheme, which cost a lot of money, did not deliver any savings and has not improved the Northern Ireland Civil Service one iota. It is clear that we also need to look at that area.

Miss Hargey: As others have said, it is good that the Fiscal Council Bill is being debated in the House today. There was a good level of discussion and, to be fair, agreement on the Bill at the Finance Committee.

Back in 2021, former Minister of Finance Conor Murphy announced the establishment of the Fiscal Council to provide independent scrutiny of Executive Budgets and to look at their transparency. I thank Minister O'Dowd and his officials, some of whom are here today, who worked with individual Members and the Committee to provide the additional information that we required throughout the process. Ensuring that the Fiscal Council is placed on a firm statutory footing has been important since its creation. It is one of the reasons that we wanted to get the Bill to this point today. An important focus of the Bill has been on ensuring that the council operates independently. That was the subject of a lot of the discussion as we deliberated over the Bill, and it is the reason behind several of the amendments.

As we consider the five amendments, it is important that we keep coming back to the Fiscal Council's main role and function. Importantly, its role is to be independent and to provide objective analysis of the sustainability of our public finances. The Fiscal Council is not there to be drawn into political positioning or to take on functions that may sit elsewhere. Some of the amendments, particularly those to do with costing party political proposals, cross that line, which risks pulling the council into the political arena. In doing so, they could undermine the very independence that gives the council its value. We already have mechanisms in place to support parties, so we should be careful not to duplicate or dilute existing work.

Mr O'Toole: Will the Member give way?

Miss Hargey: Of course.

Mr O'Toole: I hate to be rude, but we are not debating those amendments today, as they were not selected for debate. They therefore

have nothing to do with what is on the Marshalled List. I appreciate that you do not agree with them, but they are not being debated.

Miss Hargey: I am just providing a flavour of some of the conversations that we had in Committee. I know that it is an issue that you have raised in the Chamber previously.

The same applies to amendments about Programme for Government alignment and looking at the wider economic impact. Those, of course, are important issues, as has been highlighted, but it is not the Fiscal Council's job to look at them. Expanding its remit in that way would stretch its capacity. We have talked about the team's capacity and about making sure that we maximise the team. However, it is there to do the core work that the council has been set up to do.

There are amendments that deal with duplication. There was mention of looking at the issues of climate change and the protocol. The Bill already gives flexibility to look at issues where they are relevant. That flexibility is important. I do not think that anybody is shying away from conversations on the cost of division or other issues. We have debated those issues in the Chamber in the past year, and I made the point that segregation on the basis of social class has a more extensive impact on outcomes, or lack of them, for people in our community. Those costs are almost double the projected costs of segregation on religious grounds.

There are important issues that we need to raise, but I do not think that that is the role of the Fiscal Council. It can look at issues, but I do not think that we can predetermine at this point or, indeed, in legislation what it should look at. The council should have the independence to determine its own course of work. It also means that the council can respond to what matters when it matters, without being tied down or fixed and, indeed, without prescriptive legislation. Putting that role in the Bill would present challenges for the future. If we were to go too far in prescribing what the council must do, we would risk its ability to adapt and to focus on emerging issues and challenges. Going back to the independent nature of the structure, that would also risk prescribing what we allow the council to work on in future.

For those reasons, as Jemma said, we will not be supporting the amendments. I believe that the Bill, without the amendments, strikes the right balance between accountability and independence. Importantly, it sets up the Fiscal

Council to continue its valuable work and to look at areas that it feels are beneficial without being steered by the political will in here but being steered by the council itself and the expertise that it contains.

Madam Principal Deputy Speaker: I call the Minister of Finance to respond to the debate.

Mr O'Dowd: Go raibh maith agat, a Phríomh-Leas-Cheann Comhairle. *[Translation: Thank you, Madam Principal Deputy Speaker.]* Apologies to the House for my phone going off during Diane's contribution.

I thank all Members who have contributed to the debate on this important issue. I also thank the Finance Committee for its detailed scrutiny of the Bill throughout Committee Stage.

As Members will be aware, the Bill contains provisions that will place the Fiscal Council on a statutory footing. I hope that all Members will agree that the Fiscal Council has made a significant impact on improving the transparency, scrutiny and understanding of our public finances since it was established in March 2021. Its assessments are insightful and highly valued. They make an important difference to improving transparency, scrutiny and understanding of the Budget and monitoring process.

The Bill will enable the council to continue its work, operating independently. That phrase was used throughout the debate by most, if not all, Members, and I will return to that as I proceed through my comments. The Bill will enable the council to operate independently from ministerial, Executive, Committee or departmental interference. Indeed, as Members will be aware, clause 6 of the Bill states:

"In particular, in carrying out its functions under section 2, the Council is not subject to the direction or control of—

(a) a Minister,

(b) a ... department,

(c) a Minister of the Crown or a department of the government ..., or

(d) the Assembly."

As Members consider how to vote on the amendments today, we have to ask ourselves whether, at this stage, we are placing directions on the council by supporting amendments that direct what work it should carry out, rather than

leaving that to the professionalism of the current council members or those who will be there in the future.

I may agree or disagree with various aspects of the amendments proposed by Members on what they believe the council should be interrogating, investigating and reporting on, but that is not why I will be voting against the amendments. I am not voting against the amendments on the issues that Members have raised, be they the cost of division, economic studies or the Programme for Government. I will be voting against the amendments because I firmly believe that the council, as an independent body, should set its work programme in line with OECD principles and best practice from elsewhere. That is why I will vote against your amendments, not because I believe that the council should not be carrying out the work that you suggested but because it is for the council to decide whether it carries out that work rather than the Assembly directing it to do so. Therefore, I encourage Members to stick by the independence of the council, ensure that it sets its programme of work, that Ministers, Departments or indeed the Assembly do not interfere with its work. We must allow the council to get on with its work of reporting and ensuring that we have continuing improvement in the transparency and independence of our public services.

During evidence from the Fiscal Council, the council chair confirmed that any further requirements would not be desirable at this stage because a majority of the Executive's Budget comes from the block grant. That is specifically in relation to the impact on the economy etc. I know, through other proposed amendments, that the OECD principles are core to this for me. Let us learn from best practice elsewhere. Scotland has a slightly different model, which was referred to by a number of Members. Even then, if we are going to have a truly independent body, let it be independent rather than us setting the work programme for it.

Dr Aiken: I thank the Minister for giving way. An OECD report — I would have to check in which year — very much refers to the ability to be examined against economics and also against inputs and outputs. That is the one thing that we are missing because it is not legislated for.

Mr O'Dowd: I would argue that it is not legislated against, in the sense that we are allowing the Fiscal Council to set its own work programme. Therefore it can look at whatever

area it believes is relevant to its broader principles and deliver reports accordingly.

In fairness, it has been a good debate. There is broad agreement on the general role of the Fiscal Council. Understandably, there will always be different views on how we set its programme of work and what it should be looking into. In that sense, all the amendments are valid, but I want to reassure those who tabled the amendments that I am not voting against the idea that the council should do a cost of division report or should not do a report into the Programme for Government or into the economy. I am voting against those amendments because I believe in the independence of the council and in allowing it to set its own work programme.

Madam Principal Deputy Speaker: Thank you, Minister. I call Matthew O'Toole to make a winding-up speech on his amendments.

Mr O'Toole: Thank you very much, Madam Principal Deputy Speaker. It has been a useful debate, albeit there were misapprehensions about the Fiscal Council, the OECD recommendations on independent fiscal institutions and, to an extent, Mr Tennyson's amendment, so I want to run through some of the responses.

Most of the amendments are in my name. We are content to support amendment No 4 in Mr Tennyson's name. It would be strange of us to then move amendment No 5 or to pass amendment No 5 afterwards should we be lucky enough to get to that situation because it would probably create a fairly incoherent piece of amended legislation. My motivation in tabling the amendments was sincerely about improving scrutiny. I have genuinely not heard any good arguments from Members who are opposed to or sceptical about our amendments. It is important to be clear and robust in saying that.

An overarching thread runs through this, namely that, by amending the legislation, we are somehow jeopardising the independence of the Fiscal Council.

That is nonsense. It is nonsense because we are told that, by giving the Fiscal Council additional powers, obligations or expectations, we are somehow jeopardising its independence. If that is the case, why legislate about it at all? By definition, this draft law creates obligations, expectations and demands of the Fiscal Council. That is the entire point of the Bill. We would not be passing it into law if

the situation that others have outlined was the case.

3.45 pm

It has been said that we are constraining the council and putting expectations on it and that there is something political in what we are proposing. However, we are all politicians, and we are passing a Fiscal Council Bill today that includes in clause 3, not just the power but the legal obligation for the Fiscal Council to produce a Budget assessment report. Clause 3 states what that Budget assessment report has to include. It also says that the Fiscal Council has to produce a fiscal sustainability report. I could literally list the entire Bill: the entire Bill is about politicians mandating in law what we think the Fiscal Council should and should not do. That is what we are doing. Therefore, I am afraid that it is absurd to say that we are jeopardising the independence of the Fiscal Council by asking it —. I am happy to give way to the Minister.

Mr O'Dowd: I thank the Member for giving way. He somewhat answers his own question. We are bringing through a piece of legislation to establish the Fiscal Council. The Fiscal Council has a role, and that has to be set out in legislation, otherwise we would just bring in a piece of legislation that says, "We are establishing the Fiscal Council, and the Fiscal Council will *[Inaudible]*". What do fiscal councils do? The general principle of what a fiscal council does, as accepted by the OECD, is contained in the legislation, but the guiding principle of the legislation is that the Fiscal Council is independent and can carry out its own work programmes.

Mr O'Toole: I agree with the Minister, but only to an extent. Of course, there is always a judgement as to how much specificity you include in a piece of primary legislation. That is why, for example, we are debating four or five amendments today, rather than dozens upon dozens. Members could have come forward, including those from the Opposition, saying, "We would like to do x, y and z". We were not successful in getting our amendments on Opposition costing selected. I am not going to get into that debate now, because the relevant amendments are not on the Marshalled List and are therefore not up for debate. There was a reasonable reason for submitting those. However, of course, we could have sought to include costing on a whole range of things, from EU membership to membership of the UK to a united Ireland — any number of things. All of those things would have been politically

contentious and highly controversial. None of my amendments are politically contentious or highly controversial, unless you want to avoid additional scrutiny and power being given to the Fiscal Council. I am worried that that is what is happening today, but for the public record I will respond to some of the points that were made in the debate.

Jemma Dolan said something that I am afraid was wrong, and I have to correct it. I asked for an intervention and was not given it, and that is fair enough. Jemma said that we were asking the Fiscal Council to forecast, but that is not true. Not only is the word "forecasting" not in any of my amendments, I specifically said in my opening remarks, "We do not want the Fiscal Council to do an economic forecast or a fiscal forecast". I accept that it was something that we looked at and discussed in the Committee. It would have been a big undertaking, and it would have created lots of genuinely additional resource expectations and burdens on the Fiscal Council. In some ways, I would like to be able to get there, for us to have some independent statutory form of forecast, so that we are not necessarily relying on independent consultancies or academics producing our forecasts. Not that there is anything wrong with their doing them, but I do not think that it would be unhelpful to have an official one. However, I accept that this is not the vehicle to deliver that. Therefore, my amendments Nos 2 and 3 are much more modest. They do not include forecasting powers: they are simply inviting the Fiscal Council to analyse the economic impact of the Budget. Amendment No 2 is somewhat more ambitious than amendment No 3, so I was happy to not go with amendment No 2 if we could have a majority supporting amendment No 3. It would appear that the Alliance Party and the Ulster Unionist Party are supportive of both, but particularly of amendment No 3, so I do not understand why we cannot have that.

To go back to the Minister's critique about our putting too much expectation on the Fiscal Council, to be honest, the economic power or the economic analysis bit is fundamental. This is not just an additional ancillary responsibility. The Minister mentioned the OECD's principles for independent fiscal responsibility. We asked the OECD, and it in no way suggested that the power that we are proposing is an inappropriate one to give the Fiscal Council. In fact, it identified it as being one of the core tools for economic analysis that is given to independent fiscal institutions. It appears that there has been a specific decision by the two big parties in the Executive to reject that amendment today. There is nothing in the OECD principles to prevent the Fiscal Council from doing what is

proposed, and it would not create a huge burden. It would simply put into the Bill a specific power to allow the Fiscal Council to do economic analysis where it is able to do so. The amendment is modest, and I really do not understand — well, I have my suspicions, but perhaps I will be uncharacteristically generous about it — why it is not happening. It should happen, because, given that we fail to do a whole range of things in this place, and people wonder why we have not made policy in a better way, it would provide us with one opportunity to do that.

The Fiscal Council does not make policy for us — I will come to Diane Forsythe's point — as it cannot and should not, and the Bill, amended or unamended, does not give the Fiscal Council the power to do so. All that it does is give it the power to scrutinise and to generate better information and data for better scrutiny by the public and by MLAs. It has done its job exceptionally well over the past four or five years. It has proven that it can do it robustly and rigorously without anyone questioning its political independence or impartiality. It could do so with a view to economic analysis without jeopardising that.

Diane Forsythe mentioned that we would be writing a blank cheque; I am afraid that that is just not true. I enjoy the irony in the idea of a blank cheque and the Fiscal Council, but we would not be doing that. We would simply be providing for an additional but limited set of obligations on it. I genuinely reject the idea that there is something inherently political in attempting to amend a Bill. We are legislators and, fundamentally, that is what we are here to do in order to get the legislation right.

Eóin Tennyson spoke well about the cost of division, which is a hugely significant issue that has been the subject of debate. The passing of either of the amendments today would not prescribe any policy intervention, because that is for democratically elected politicians and Ministers, not an independent fiscal body. It is important to say that council members are not politicians and that the council does not have a democratic mandate. All that it can do is come up with data and analysis, which we have lacked, including on the cost of division. We know that it is there and that it has a fiscal as well as a societal consequence. That could give us a little more data to work with in addressing it and could help us to move the debate forward.

Deirdre Hargey mentioned deprivation. She is absolutely right. We know that we have persistently high levels of deprivation, that

poverty levels in Northern Ireland are still unacceptably high and that it is about the communities that bore the brunt of conflict. We talked earlier about the Springhill massacre. There is an intersection between post-conflict issues and the economic challenges that face those places today. All those things are true. That would be a legitimate economic question for the Fiscal Council to analyse, were it to be given the specific power to look at economic issues. That is a legitimate economic subject.

Miss Hargey: Will the Member give way?

Mr O'Toole: I am happy to give way.

Miss Hargey: The council would have flexibility under the Bill to look at some of those areas, but it is down to the council — this is the independence point — to pick an area in order to delve into the issues.

Mr O'Toole: I will make two points about that. The first is about the economic question. When we talk about economic consequences, we are talking about a broad area. Most independent fiscal institutions use the words "economic" and "fiscal" as big descriptors, either together or with one hived out. There is a difference between "economic and fiscal" and a range of issues that are "economic or fiscal" or "economic and/or fiscal" that you might not want to put into a Bill. Given that economic analysis is not provided for in the Bill, unlike Acts that have set up other fiscal bodies, we felt that it was appropriate to include economic analysis in a specific provision. I make no apology for that, and I am genuinely frustrated that it looks as though it will not pass today; I hope that Members will think otherwise.

Eóin Tennyson made a couple of other points that were really important. In referring to amendment No 1, which is about alignment with the Programme for Government, he mentioned the absence of an investment strategy. The failure to properly join up and create strategic policy planning documents is a long-running challenge that has emerged in so many reports. There is then the question of implementing them, but the absence of an investment strategy, the absence — I will not labour this point — of a multi-year Budget and the absence of a sense that it will deliver a coherent set of plans for the public in Northern Ireland are points that are made repeatedly, not just by me, as leader of the Opposition, but by the public, business groups, trade unions and interested parties who comment on our politics, and they are not wrong. This is an opportunity to improve

the quality of scrutiny and to see how well Budgets do or do not deliver.

I do not want misquote the Deputy Chair, Diane Forsythe, but I think that she said that I had effectively given the game away that this was about political point-scoring. I do not accept that, because any body that has a watchdog role, whether it is the Fiscal Council, the Audit Office or another body, invariably strays into matters that become political and invariably says things that cause discomfort and displeasure to politicians and Ministers. A body cannot scrutinise Ministers without occasionally saying things that displease them, cause them discomfort or result in difficult interviews. That is the entire point. I am afraid, therefore, that it is a redundant argument to simply say that we should never give this organisation the power to say something that might cause someone some political discomfort. That is not acceptable. The fact that it might cause the DUP and Sinn Féin political discomfort is not my problem; it is a problem for the public, who, I am afraid to say, feel —

Ms Forsythe: Will the Member give way?

Mr O'Toole: — that genuine scrutiny is sometimes avoided.

Having said something slightly political, I am happy to give way to the Member.

Ms Forsythe: I thank the Member for giving way. Does he not accept my point that his contributions about how the amendments will be great at critiquing the Executive and how the amendments that did not get on to the Marshalled List would have supported the position of the Opposition could seem, to others, to be political and to support the position of the Opposition over that of the Executive?

Mr O'Toole: First, it is important to say that those amendments did not —.

Madam Principal Deputy Speaker: Sorry, I have given a lot of latitude, but we are not debating amendments that did not make it on to the Marshalled List.

Mr O'Toole: I did not raise that matter, Madam Principal Deputy Speaker.

Madam Principal Deputy Speaker: No, but I am just letting you know. I also ask that you use your winding-up speech to wind up rather than to make additional introductory remarks at the end of the debate.

Mr O'Toole: I am doing that, Madam Principal Deputy Speaker. I —.

Madam Principal Deputy Speaker: Sorry, Matthew, but you are not. I have been following you very closely. I just ask that you please focus on your winding up. Thank you.

Mr O'Toole: OK. It has been touched on — I have said it myself — that we are not discussing amendments that are not on the Marshalled List. I have been clear that the purpose of the amendments is to improve the policy debate. It is clear that other parties agree with that and see the legitimacy of the amendments.

To finish, I will go through a couple of other points, as I had been doing. Eóin made good points about the absence of an investment strategy and the lack of clear scrutiny on these things. I make no apology for tabling the amendments and attempting to improve scrutiny. On Steve Aiken's contribution, I welcome the fact that the Ulster Unionists are in broad agreement with the amendments, although I did not mention the growth level compared with that in the Republic. In one sense, whether or not we are compared with any other jurisdiction, or whether one has a view on that, we need to know more about how policy affects economic outcomes. Whether that is microeconomic outcomes, such as the performance of the high street, or wage levels or anything else, that would be useful. The amendments would simply have given the Fiscal Council the ability to look at some of the economic consequences of Budget-making; it would not have obliged it to build a model to do lots of yearly forecasting.

Deirdre Hargey mentioned that this is about independent, objective analysis. Yes, that is absolutely the case. There is nothing wrong with MLAs, whether in the Opposition or the Executive, tabling amendments to improve a piece of legislation — that is not party political. If the Fiscal Council Bill passes Consideration Stage and goes to Final Stage, we will, by definition, be passing it into law and giving it a mandate. That is no more or less political than Eóin Tennyson, me or anyone else putting down an amendment to give the council a specific responsibility. When we are putting a body into law, there is nothing illegitimate about MLAs seeking to give that body additional powers or to clarify what they would like it to do, but I recognise that certain parties in the Assembly do not want it to do those things.

The suggestion was made that we would be steering the Fiscal Council politically. By

passing the Bill, we are, to an extent, steering it politically. Including the additional words from the amendments would mean that the Fiscal Council would have to engage with the legislation that we have passed and that it would have specific powers and obligations. However, it would have to carry them out independently and objectively, because it has been set up in law, which is the whole purpose. We would not, then, have an opportunity to steer or second-guess the council. If we pass the amendments, we will not be saying at a later stage, "Remember we passed that amendment? That means that you have to do it this way". That is not what it is about at all.

With respect, I do not think that that is a legitimate question.

It is fair enough to raise the point that flexibility exists in the legislation. That is why the amendments are flexible. There are not dozens upon dozens of them; there are simply a few in specific areas.

4.00 pm

The Minister talked about flexibility and said that the council should set its own work programme. As I said, I largely agree with that. It will not totally set its own work programme, however, because it will be doing Budget assessment reports and fiscal sustainability reports that are constrained to an extent by specific provisions in the Bill.

For the Fiscal Council to have an additional set of expectations from the Assembly was an opportunity. Unfortunately, I fear that we will miss that opportunity today. That does not mean that the Fiscal Council Bill is not hugely important legislation, because it is. I am, however, deeply disappointed, because it looks as though certain parties will vote against improving the scrutiny of delivery in Northern Ireland. If the amendments are not successful today, the public will legitimately say, "I wonder why".

Madam Principal Deputy Speaker: Thank you, Matthew.

Question put, That amendment No 1 be made.

The Assembly divided: Ayes 32; Noes 46.

AYES

Dr Aiken, Mr Allen, Ms D Armstrong, Ms K Armstrong, Mr Beattie, Mr Blair, Ms Bradshaw, Mr Burrows, Mr Butler, Mr Carroll, Mr

Chambers, Mr Dickson, Mr Durkan, Ms Egan, Mr Gaston, Mrs Guy, Mr Honeyford, Ms Hunter, Mrs Long, Mr McGlone, Mr McGrath, Ms McLaughlin, Mr McMurray, Mr McNulty, Mr McReynolds, Mr Mathison, Ms Mulholland, Mr Nesbitt, Mr O'Toole, Mr Stewart, Ms Sugden, Mr Tennyson.

Tellers for the Ayes: Dr Aiken and Mr O'Toole

NOES

Mr Baker, Mr Bradley, Mr Brett, Miss Brogan, Mr Brooks, Ms Brownlee, Mr K Buchanan, Mr T Buchanan, Mr Buckley, Ms Bunting, Mrs Cameron, Mr Clarke, Mr Delargy, Mrs Dillon, Mrs Dodds, Miss Dolan, Mr Dunne, Ms Ennis, Mrs Erskine, Ms Ferguson, Ms Finnegan, Ms Flynn, Ms Forsythe, Mr Frew, Mr Gildernew, Mr Givan, Miss Hargey, Mr Harvey, Mr Kearney, Mr Kelly, Mr Kingston, Mrs Little-Pengelly, Mr Lyons, Mr McAleer, Mr McGuigan, Mr McHugh, Miss McIlveen, Mr Martin, Mrs Mason, Ms Murphy, Mr O'Dowd, Ms Reilly, Mr Robinson, Mr Sheehan, Ms Sheerin, Mr Wilson.

Tellers for the Noes: Mrs Dillon and Miss Dolan

Ms Ennis acted as a proxy for Miss Brogan.

Question accordingly negatived.

Amendment No 2 proposed: In page 2, line 11, at end insert—

"(bb) consideration of the impact of the proposed budget on the economy of Northern Ireland;".— [Mr O'Toole.]

Question put, That amendment No 2 be made.

Madam Principal Deputy Speaker: I have been advised by the party Whips that, in accordance with Standing Order 27(1A)(b), there is agreement that we can dispense with the three minutes and move straight to the Division.

The Assembly divided: Ayes 32; Noes 46.

AYES

Dr Aiken, Mr Allen, Ms D Armstrong, Ms K Armstrong, Mr Beattie, Mr Blair, Ms Bradshaw, Mr Burrows, Mr Butler, Mr Carroll, Mr Chambers, Mr Dickson, Mr Durkan, Ms Egan, Mr Gaston, Mrs Guy, Mr Honeyford, Ms Hunter, Mrs Long, Mr McGlone, Mr McGrath, Ms McLaughlin, Mr McMurray, Mr McNulty, Mr McReynolds, Mr Mathison, Mr Muir, Ms

Mulholland, Mr O'Toole, Mr Stewart, Ms Sugden, Mr Tennyson.

Tellers for the Ayes: Mr McGrath and Ms McLaughlin

NOES

Mr Baker, Mr Bradley, Mr Brett, Miss Brogan, Mr Brooks, Ms Brownlee, Mr K Buchanan, Mr T Buchanan, Mr Buckley, Ms Bunting, Mrs Cameron, Mr Clarke, Mr Delargy, Mrs Dillon, Mrs Dodds, Miss Dolan, Mr Dunne, Ms Ennis, Mrs Erskine, Ms Ferguson, Ms Finnegan, Ms Flynn, Ms Forsythe, Mr Frew, Mr Gildernew, Mr Givan, Miss Hargey, Mr Harvey, Mr Kearney, Mr Kelly, Mr Kingston, Mrs Little-Pengelly, Mr Lyons, Mr McAleer, Mr McGuigan, Mr McHugh, Miss McIlveen, Mr Martin, Mrs Mason, Ms Murphy, Mr O'Dowd, Ms Reilly, Mr Robinson, Mr Sheehan, Ms Sheerin, Mr Wilson.

Tellers for the Noes: Mrs Dillon and Miss Dolan

Ms Ennis acted as a proxy for Miss Brogan.

Question accordingly negated.

Amendment No 3 proposed: In page 2, line 12, after "assessment" insert ", which may include consideration of the potential impact of the proposed budget on the economy of Northern Ireland".— [Mr O'Toole.]

Question put, That amendment No 3 be made.

Madam Principal Deputy Speaker: I have been advised by Party Whips that, in accordance with Standing Order 27(1)(A)(b), there is agreement that we dispense with the three minutes and move straight to the division.

The Assembly divided: Ayes 33; Noes 46.

AYES

Dr Aiken, Mr Allen, Ms D Armstrong, Ms K Armstrong, Mr Beattie, Mr Blair, Ms Bradshaw, Mr Burrows, Mr Butler, Mr Carroll, Mr Chambers, Mr Dickson, Mr Durkan, Ms Egan, Mr Gaston, Mrs Guy, Mr Honeyford, Ms Hunter, Mrs Long, Mr McGlone, Mr McGrath, Ms McLaughlin, Mr McMurray, Mr McNulty, Mr McReynolds, Mr Mathison, Mr Muir, Ms Mulholland, Mr Nesbitt, Mr O'Toole, Mr Stewart, Ms Sugden, Mr Tennyson.

Tellers for the Ayes: Ms Hunter and Mr McGlone

NOES

Mr Baker, Mr Bradley, Mr Brett, Miss Brogan, Mr Brooks, Ms Brownlee, Mr K Buchanan, Mr T Buchanan, Mr Buckley, Ms Bunting, Mrs Cameron, Mr Clarke, Mr Delargy, Mrs Dillon, Mrs Dodds, Miss Dolan, Mr Dunne, Ms Ennis, Mrs Erskine, Ms Ferguson, Ms Finnegan, Ms Flynn, Ms Forsythe, Mr Frew, Mr Gildernew, Mr Givan, Miss Hargey, Mr Harvey, Mr Kearney, Mr Kelly, Mr Kingston, Mrs Little-Pengelly, Mr Lyons, Mr McAleer, Mr McGuigan, Mr McHugh, Miss McIlveen, Mr Martin, Mrs Mason, Ms Murphy, Mr O'Dowd, Ms Reilly, Mr Robinson, Mr Sheehan, Ms Sheerin, Mr Wilson.

Tellers for the Noes: Mrs Dillon and Miss Dolan

Ms Ennis acted as a proxy for Miss Brogan.

Question accordingly negated.

Question put, That clause 3 stand part of the Bill.

Some Members: Aye.

Some Members: No.

Madam Principal Deputy Speaker: I remind Members that this is a vote on clause 3, not amendment No 3, so you all need to chill your jets. It has been a long day.

Question put and agreed to.

Clause 3 ordered to stand part of the Bill.

Clause 4 (Fiscal sustainability reports)

Amendment No 4 proposed: In page 2, line 25, at end insert—

"(ca) costs of duplicated public service provision,".— [Mr Tennyson.]

Question put, That amendment No 4 be made.

Madam Principal Deputy Speaker: I have been advised by the party Whips that, in accordance with Standing Order 27(1A)(b) — shh! — there is agreement that we can dispense with the three minutes and move straight to the Division.

The Assembly divided: Ayes 32; Noes 47.

AYES

Dr Aiken, Mr Allen, Ms D Armstrong, Ms K Armstrong, Mr Beattie, Mr Blair, Ms Bradshaw, Mr Burrows, Mr Butler, Mr Chambers, Mr Dickson, Mr Durkan, Ms Egan, Mr Gaston, Mrs Guy, Mr Honeyford, Ms Hunter, Mrs Long, Mr McGlone, Mr McGrath, Ms McLaughlin, Mr McMurray, Mr McNulty, Mr McReynolds, Mr Mathison, Mr Muir, Ms Mulholland, Mr Nesbitt, Mr O'Toole, Mr Stewart, Ms Sugden, Mr Tennyson.

Tellers for the Ayes: Ms Bradshaw and Mr McMurray

NOES

Mr Baker, Mr Bradley, Mr Brett, Miss Brogan, Mr Brooks, Ms Brownlee, Mr K Buchanan, Mr T Buchanan, Mr Buckley, Ms Bunting, Mrs Cameron, Mr Carroll, Mr Clarke, Mr Delargy, Mrs Dillon, Mrs Dodds, Miss Dolan, Mr Dunne, Ms Ennis, Mrs Erskine, Ms Ferguson, Ms Finnegan, Ms Flynn, Ms Forsythe, Mr Frew, Mr Gildernew, Mr Givan, Miss Hargey, Mr Harvey, Mr Kearney, Mr Kelly, Mr Kingston, Mrs Little-Pengelly, Mr Lyons, Mr McAleer, Mr McGuigan, Mr McHugh, Miss McIlveen, Mr Martin, Mrs Mason, Ms Murphy, Mr O'Dowd, Ms Reilly, Mr Robinson, Mr Sheehan, Ms Sheerin, Mr Wilson.

Tellers for the Noes: Mrs Dillon and Miss Dolan

Ms Ennis acted as a proxy for Miss Brogan.

Question accordingly negatived.

4.45 pm

Amendment No 5 proposed: In page 2, line 34, at end insert—

"(bb) the Council's view of the impact of duplication in the delivery of public services on fiscal sustainability, and".— [Mr O'Toole.]

Question put, That amendment No 5 be made.

Madam Principal Deputy Speaker: I have been advised by the party Whips that, in accordance with Standing Order 27(1A)(b), there is agreement that we can dispense *[Interruption]* — shh! Please. There is agreement that we can dispense with the three minutes and move straight to the Division.

The Assembly divided: Ayes 32; Noes 47.

AYES

Dr Aiken, Mr Allen, Ms D Armstrong, Ms K Armstrong, Mr Beattie, Mr Blair, Ms Bradshaw, Mr Burrows, Mr Butler, Mr Chambers, Mr Dickson, Mr Durkan, Ms Egan, Mr Gaston, Mrs Guy, Mr Honeyford, Ms Hunter, Mrs Long, Mr McGlone, Mr McGrath, Ms McLaughlin, Mr McMurray, Mr McNulty, Mr McReynolds, Mr Mathison, Mr Muir, Ms Mulholland, Mr Nesbitt, Mr O'Toole, Mr Stewart, Ms Sugden, Mr Tennyson.

Tellers for the Ayes: Mr Durkan and Mr McNulty

NOES

Mr Baker, Mr Bradley, Mr Brett, Miss Brogan, Mr Brooks, Ms Brownlee, Mr K Buchanan, Mr T Buchanan, Mr Buckley, Ms Bunting, Mrs Cameron, Mr Carroll, Mr Clarke, Mr Delargy, Mrs Dillon, Mrs Dodds, Miss Dolan, Mr Dunne, Ms Ennis, Mrs Erskine, Ms Ferguson, Ms Finnegan, Ms Flynn, Ms Forsythe, Mr Frew, Mr Gildernew, Mr Givan, Miss Hargey, Mr Harvey, Mr Kearney, Mr Kelly, Mr Kingston, Mrs Little-Pengelly, Mr Lyons, Mr McAleer, Mr McGuigan, Mr McHugh, Miss McIlveen, Mr Martin, Mrs Mason, Ms Murphy, Mr O'Dowd, Ms Reilly, Mr Robinson, Mr Sheehan, Ms Sheerin, Mr Wilson.

Tellers for the Noes: Mrs Dillon and Miss Dolan

Ms Ennis acted as a proxy for Miss Brogan.

Question accordingly negatived.

Madam Principal Deputy Speaker: There are no more amendments to be voted on; there are just the clauses. If Members bear with me, I will go through them.

Clause 4 ordered to stand part of the Bill.

Clause 5 ordered to stand part of the Bill.

Clause 6 ordered to stand part of the Bill.

Clause 7 ordered to stand part of the Bill.

Clause 8 ordered to stand part of the Bill.

Clause 9 ordered to stand part of the Bill.

Schedule 1 agreed to.

Schedule 2 agreed to.

Long title agreed to.

Madam Principal Deputy Speaker: That concludes the Consideration Stage of the Northern Ireland Fiscal Council Bill. The Bill stands referred to the Speaker.

Coronavirus Act 2020 (Extension of Provisions Relating to Live Links for Courts and Tribunals) Order (Northern Ireland) 2026

Mrs Long (The Minister of Justice): I beg to move

That the Coronavirus Act 2020 (Extension of Provisions Relating to Live Links for Courts and Tribunals) Order (Northern Ireland) 2026 be approved.

Madam Principal Deputy Speaker: The Business Committee has agreed that there should be no time limit on the debate. I call on the Minister to open the debate on the motion.

Mrs Long: Thank you, Madam Principal Deputy Speaker. I am grateful to the Justice Committee and to the Examiner of Statutory Rules for their scrutiny of the order.

Article 2 of the order extends the provisions allowing courts and tribunals in Northern Ireland to receive evidence wholly or in part using audio or videoconferencing systems, which are commonly referred to as "live links". Those are primarily video systems that are utilised to facilitate the attendance of persons participating in any court or tribunal hearing remotely. The provisions are in addition to legislation that allows the use of a video link for a specific witness or defendant with all other participants attending in the courtroom. The extension will allow us to maintain access to a digital tool that has proved to be an essential element of the toolkit for addressing the backlog of cases accrued during and since the pandemic until 24 September 2026.

Members will recall from debates on similar motions for approval that we plan to put in place new primary legislation to provide a long-term legislative solution for live links in our courts and tribunals. Executive colleagues and Committee members are aware from debates on past orders of the need for further extensions to assist throughput in the courts while the Justice Bill, which will put live links on a permanent footing, progresses through the Assembly. I remain keen to have the Justice Bill in place as soon as is reasonably practicable, although the current timescale for enactment of that legislation means that at least one further

extension of the provisions in the Coronavirus Act 2020 is likely to be required. In the meantime, the extension will help to maintain the effective operation of the justice system, and it will continue to support broader access to court proceedings where a judge is satisfied that participation by live link is in the interests of justice.

I recognise the concerns that Members have expressed previously about continued reliance on legislation that was originally introduced as an emergency measure, and I share those concerns. I wish that there was a practical alternative to continuing to rely on those provisions as a temporary measure, but there is, in my view, justification in that the legacy of the pandemic continues to have an impact on the justice system. Northern Ireland, like the other jurisdictions in the UK, has suffered a persistent backlog in the criminal courts since the pandemic.

During the pandemic, more cases were received than were disposed of in the criminal courts, which meant that the number of outstanding cases rose. The Department's analysis of live case numbers at any stage and of the processing times for cases completed in courts in the past six years indicates that the pandemic not only had an impact but continues to have one.

5.00 pm

For example, the total number of live Crown Court cases from the point at which a person is charged or informed has risen as a result of the pandemic, from 940 cases on 1 March 2020 to 1,672 cases on 1 January 2026, which is up 77·9%. For adult Magistrates' Court cases from the point at which a person is charged or informed, the number of cases has also risen, from 25,604 cases on 1 March 2020 to 30,736 cases on 1 January 2026, which is up 20%.

Despite the considerable efforts made to have an impact on the number of active defendants, there remain, compared with pre-COVID rates, 62·4% more defendants. Within that total, there are approximately 85·4% more defendants in the Crown Court and approximately 59·2% more defendants in the Magistrates' Court, both adult and youth, than there were on 1 March 2020. The median number of days taken for a case to be completed in all courts from the date on which an offence was reported until it was dealt with was 189 days in 2024-25, up 26·8% from 149 days in 2019-2020. It reached a high of 226 days for cases dealt with in 2021-22. For cases at the court stage, the most recent

management information, which is from January 2026, indicates that there were 11,808 defendants' cases at that stage in the criminal justice system compared with 7,269 in March 2020. Based on current disposal rates, it is anticipated that the backlog will not be cleared until beyond 2026. Taking account of those statistics, although progress is being made, I can say that there remains a substantial percentage of cases that have been in the Crown Court and the Magistrates' Court for more than three years.

Although the pandemic is a significant material factor, it is not the only issue creating a backlog of cases. Other factors include limited options for increasing case throughput by stakeholders and industrial action by other players in the criminal justice system, as well as the usual, ongoing financial pressures. In that context, the Magistrates' Court and the Crown Court depend on the continued ability of the system to hold remote hearings. As part of that system, the bespoke justice video platform (JVP) was completed in mid-November 2025, replacing SightLink. There is currently a consistent level of video-conferencing connections, totalling approximately 15,000 per month. Importantly, there remains support from court users, in particular those who advocate for victims of crime, for that avenue of participation to be available, subject to judicial approval, for those who prefer not to attend court in person. The use of such provisions aligns with commitments made or reflected in the Victim Charter. I therefore commend the order to the Assembly for approval.

Mr Frew (The Chairperson of the Committee for Justice): I am pleased to be able to speak briefly on the motion as Chairperson of the Committee for Justice.

The Minister outlined the intention of the statutory rule (SR). It is one in a sequence to allow for the continued use of live links for courts and tribunals. It is the ninth such extension under section 90 of the Coronavirus Act 2020. The Committee recommended that the Assembly approve all previous extensions, and it maintains that position, following consideration of the SR before us, recommending that the provisions be extended until 24 September 2026. In its consideration of the previous rules, the Committee sought assurances from the Minister that the continuation of the use of powers in the Coronavirus Act remained appropriate and proportionate as an interim arrangement until a permanent provision could be established by means of primary legislation. As Members will be aware, the Minister plans to amend the

Justice Bill at Consideration Stage to make permanent provision in that regard. Although this may not be the final extension before the Justice Bill completes its passage through the House, the end is therefore probably now in sight. The powers to allow courts and tribunals to make use of live links will hopefully soon be enshrined in primary legislation.

The Committee considered the rule at its meeting on 23 April 2026, which included consideration of a report from the Examiner of Statutory Rules. The report raised no issues with the technical aspects of the rule. The Committee then agreed to recommend that the SR be approved by the Assembly. Therefore, on behalf of the Committee of Justice, I support the motion before us.

I now speak briefly in my capacity as an individual MLA. Out of the Coronavirus Act 2020, this is one of the measures that had a positive outcome, and I support it 100%, along with the death certificate and birth certificate measures in the Finance Department. I understand why we need the extensions, and I am glad that the Minister has committed, at her earliest opportunity, to put this into primary legislation. Her destiny has not been her own because, of course, the Committee took a long time to scrutinise the Justice Bill, and rightly so. That is why we have had nine extensions.

However, sooner or later, the Assembly and Executive will have to face up to the harm that the Coronavirus Act 2020 brought to the people. In a crisis, we need more scrutiny, not less, and the Assembly went into abeyance, a zombie form. It allowed one person, no matter who that one person was, to have the power to change, bring in or think up new legislation in the morning, have it passed in the afternoon and have it enacted in the evening. We should never be in that position again.

I support the extension. I hope that it soon will be in primary legislation, that is, the Justice Bill, and I look forward to the Consideration Stage of that Bill very soon.

Ms Sheerin: Like my colleague on the Justice Committee, I welcome the extension. Whilst not perfect in how it has played out, we recognise the necessity for it and the fact that the Minister is bringing forward appropriate legislation to cover these arrangements. Therefore, Sinn Féin is happy to support this measure.

Madam Principal Deputy Speaker: Minister, it is over to you to conclude.

Mrs Long: I thank Members for their contributions to today's debate. I will not stray into the issues raised by the Committee Chair as an individual MLA. I will leave that to Baroness Hallett because the COVID inquiry will no doubt come up with some very robust recommendations. However, the importance of making live links available to those who find themselves, often through no fault on their part, engaged or compelled to engage in the justice system must not be underestimated. They can provide an avenue of communication that can reduce stress and other pressures that participation in a court hearing might bring. Furthermore, the system has a significantly positive impact on the efficiency of the justice system.

In closing, I record my thanks to Members for their support for the motion. I look forward to the point at which we no longer need to table these extensions as a routine.

Question put and agreed to.

Resolved:

That the Coronavirus Act 2020 (Extension of Provisions Relating to Live Links for Courts and Tribunals) Order (Northern Ireland) 2026 be approved.

Areas with Natural Constraints (Payments) Bill: Extension of Committee Stage

Mr Butler (The Chairperson of the Committee for Agriculture, Environment and Rural Affairs): I beg to move

That, in accordance with Standing Order 33(4), the period referred to in Standing Order 33(2) be extended to 22 January 2027 in relation to the Committee Stage of the Areas with Natural Constraints (Payments) Bill.

Madam Principal Deputy Speaker: The Business Committee has agreed that there will be no time limit on the debate. I call on the Chairperson to open the debate on the motion.

Mr Butler: Thank you, Madam Principal Deputy Speaker. The date of 22 January 2027 was agreed after a discussion in Committee on 16 April 2026, and I will outline the reasons why the Committee agreed to request an extension.

The Committee was first briefed on the Bill on 16 March 2026 by the sponsoring member, Declan McAleer, the Deputy Chair of the AERA

Committee. The Bill will take considerable scrutiny, despite comprising only two clauses, as it is an enabling Bill that places a statutory duty on the Department to use powers in the Agriculture Act 2000 to permit the modification of the basic payment scheme to include a payment scheme for areas of natural constraint, otherwise known as ANCs. The 2020 Act provides the power to make regulations to provide the ANC payments, although that power has not been exercised by the Minister to date.

The Deputy Chair advised us that the aim of the Bill is to restore income from support payments that were vital to upland farmers in a range of social, economic, environmental and financial ways.

The Committee will need to undertake wide-ranging scrutiny of the intentions of the Bill, which include compensating farmers for all or part of the additional costs and income forgone due to production constraints in ANCs; easing the burden of operating in challenging farming environments; addressing the reduction in agricultural opportunities in ANCs; and promoting greater equality of opportunity for farmers in those regions.

The Committee will need to look in detail at the financial implications of and the need for the ANC Bill. The Bill states that payments should be reinstated at levels "no less" than those provided for under the Areas of Natural Constraint Regulations (Northern Ireland) 2018, which have expired. The payment rates, specified at schedule 2 to the regulations, are based on "qualifying forage area".

We will consider any unintended consequences of the Bill and consider in more detail the environmental and ecological impacts associated with ANCs. We will also consider whether the payments could maximise delivery of sustainable food production and whether they should be linked to improved environmental outcomes in ANCs. We will explore potential alternative measures and look at the impacts of the previous ANC payments.

The Committee supported the intention of the Bill, but some members have initial concerns about its viability as enabling legislation, its budgetary implications and its potential impact on other support schemes. The Committee is requesting a significant extension of Committee Stage in order to ensure full scrutiny of the range of significant issues that were raised at Second Stage by Committee members and, indeed, other Members. In addition, the Committee is completing Committee Stage of

the Dilapidation Bill and needs to build in time for an imminent Executive fisheries and water environment Bill and for other Members' Bills, including the Hunting with Dogs Bill, which has been introduced. The Committee would rather have the scope to consider the Bills in parallel than unnecessarily rush scrutiny of one, or any, of them just to get it over the line.

We have learnt from the Agriculture Bill and the Dilapidation Bill the lesson that significant evidence can come to us late in Committee Stage. Although we set a long extension period for the Committee Stage of the Dilapidation Bill, we are now down to the wire in taking new evidence from important groups while still meeting our reporting deadline.

The Committee is due to receive a briefing on the ANC Bill from the Research and Information Service (RaISe) on 21 May. No doubt RaISe will highlight further pertinent queries and issues that the Committee will want to pursue with external witnesses and the Bill sponsor.

The Committee's public call for views will open in the next week or so, and I encourage all interested individuals, stakeholders and groups to respond to that. We wish to give the focused issues and wider impact of the Bill due diligence and scrutiny while keeping on top of our extensive remit to scrutinise statutory rules and new policies as they emerge.

Having consulted the Bill Office and considered the evidence that we wish to take and our ongoing work and commitments, the Committee seeks the support of the House to extend the Committee Stage of the ANC (Payments) Bill to 22 January 2027. The Committee will, of course, work at pace to report in advance of that date if it is possible to do so.

Mr McAleer: The motion proposes to extend the Committee Stage of the ANC Bill to allow for more thorough scrutiny. Given the Bill's importance to farmers operating in challenging environments, it is essential that the Committee has adequate time to examine its provisions in detail. The Bill provides financial support to those who farm in areas where natural constraints limit productivity. The payments are vital in sustaining rural livelihoods and supporting environmental management.

Extending Committee Stage would enable deeper engagement with stakeholders, including farmers and rural organisations, and ensure that their perspectives are properly considered. Additional time would also allow the Committee to assess key elements such as eligibility, payment levels and long-term

sustainability. Careful scrutiny reduces the risk of unintended consequences and helps to ensure that legislation is both effective and practical.

In summary, extension of Committee Stage would support a more robust and inclusive legislative process, ultimately strengthening the Bill and its impact.

Madam Principal Deputy Speaker: I call the Minister for AERA to respond — or not to respond but just to speak. It is rare for a Minister to speak on a motion to extend a Committee Stage, but there you go.

5.15 pm

Mr Muir (The Minister of Agriculture, Environment and Rural Affairs): No problem. Thank you very much, Madam Principal Deputy Speaker. I beg your slight indulgence as I congratulate Diane on completing Belfast City Marathon on Sunday, just two weeks after London. That is a big achievement, and it is important that I recognise it. I am much in awe.

I will be relatively brief in my response to the request for an extension to the Committee Stage. I support the extension, but it is important that I set out some concerns. Before I do that, I recognise the importance of farming in areas classified as severely disadvantaged areas, which, as Members know, are otherwise known as "SDAs". Those areas, which make up areas of natural constraint, otherwise known as "ANCs" — lots of acronyms — form a significant and valued part of our rural landscape and remain central to livestock production, environmental stewardship and the social fabric of our rural communities. As Declan outlined at the Second Stage of the Bill, farmers who operate in ANCs face inherent structural challenges linked to geography, soil quality and climate. They continue to manage land of high environmental value — I support and recognise that — whilst producing livestock that contributes to the wider agri-food supply chain. That contribution is acknowledged and fully understood.

Recognising that challenge does not, however, remove our responsibility to legislate carefully, spend public money responsibly and ensure that any statutory scheme is effective, affordable and deliverable. During the Second Stage of the private Member's Bill, we heard arguments in support of the need for an areas of natural constraint payment and that the proposed Bill could be used to support environmental improvements. Crucially,

Members stressed the importance of clarity regarding funding arrangements for any future ANC scheme.

The motion before the Assembly today is to extend the Committee Stage of the private Member's Bill to January 2027. As I have said, I am content to agree, but it is important that I place on record the importance of effective scrutiny of the private Member's Bill and of completing that scrutiny as soon as possible, because, once the Committee has completed that, the Bill will move to Consideration Stage, Further Consideration Stage and Final Stage. The scrutiny of the Bill is therefore critical.

The Bill is being considered in the context of our sustainable agriculture programme (SAP), which we continue to roll out. That programme was carefully drafted, and stakeholders have been involved. We are aware of the affordability concerns about the statutory requirement in the Bill to introduce a new ANC payment scheme without conditions attached. We also —

Madam Principal Deputy Speaker: Minister, this is not about your concerns; it is about an extension.

Mr Muir: No problem.

Madam Principal Deputy Speaker: I appreciate that you spoke about scrutiny. The Chair and the Bill sponsor have mentioned that. This debate is not for rehearsing the debate on the Bill. I appreciate that. Thank you.

Mr Muir: Thank you, Madam Principal Deputy Speaker. I am happy to support the extension of the Committee Stage, but I emphasise the importance of that scrutiny taking place and getting the Bill back here for its Consideration Stage, ideally before January of next year.

Madam Principal Deputy Speaker: Much appreciated.

I call the Chair of the Committee to conclude and wind up on the Committee's debate.

Mr Butler: Thank you, Madam Principal Deputy Speaker. I will not take up too much time. Everything that has been said, whether by the Minister or the Bill sponsor, points to the fact that we will take our responsibilities seriously.

The first thing that I will touch on is scrutiny. I was in the Chamber for the debate on the previous motion, which was on an extension of provisions in the Coronavirus Act 2020, and it has never been more apparent that the primary

function of this place is to offer absolute scrutiny and to give the public confidence, particularly when we talk about new fiscal responsibilities coming in for any Department in 2027. However, the context in which the Bill is set is a challenging environment for farmers and the agri-food sector.

I thank Members for their contributions. I beg the indulgence of the Assembly and hope that Members will vote with us to extend the Committee Stage of the ANC Bill to January 2027.

Question put and agreed to.

Resolved:

That, in accordance with Standing Order 33(4), the period referred to in Standing Order 33(2) be extended to 22 January 2027 in relation to the Committee Stage of the Areas with Natural Constraints (Payments) Bill.

Madam Principal Deputy Speaker: Members, please take your ease for a moment.

(Mr Deputy Speaker [Mr Blair] in the Chair)

Private Members' Business

Voluntary and Community Sector Funding

Mr Durkan: I beg to move

That this Assembly recognises the social and economic value of the voluntary and community sector and the vital role it plays across Northern Ireland in supporting vulnerable people, strengthening communities and delivering essential public services; regrets that many organisations have been forced to scale back or withdraw services and lay off valued staff due to the mishandling of the local growth fund by the British Government; notes that the Northern Ireland Executive have realised savings from European Structural and Investment Fund succession without reinvestment in community and voluntary services; laments the failure to put in place timely and adequate replacement funding arrangements when it became clear that the British Government would not change the funding profile on the local growth fund; and calls on the Minister of Finance to ring-fence sufficient funding in the multi-year Budget to fully address the shortfall and provide long-term stability for the voluntary and community sector.

Mr Deputy Speaker (Mr Blair): The Business Committee has agreed to allow up to one hour and 30 minutes for the debate. The proposer of the motion will have 10 minutes to propose and 10 minutes to make a winding-up speech. Two amendments have been selected and published on the Marshallled List, so the Business Committee has agreed that 30 minutes will be added to the total time for the debate.

Mr Durkan, please open the debate on the motion.

Mr Durkan: The crisis facing the voluntary and community sector did not arrive suddenly, nor was it inevitable. It is the product of decisions taken and decisions not taken over many years. To understand how we reached this point, we need to be clear about what previously worked, why it worked and what has been lost.

For decades, European structural funds, particularly the European social fund (ESF) and the European regional development fund (ERDF), provided stable, strategic investment in Northern Ireland's communities. They worked because the Northern Ireland Executive treated them as core policy instruments, not as discretionary add-ons. Executive match funding was not a courtesy; it was a statement of intent that said, "Tackling economic inactivity, supporting people into work, addressing inequality and strengthening communities are central priorities of devolved government".

That match funding ensured three critical things. The first was scale. European funding came in at a level that was meaningful because it was matched locally. The second thing was stability. Organisations could plan across programme cycles, retain skilled staff and build trusted relationships with participants. The third thing was integration. Programmes were embedded in local strategies for employability, skills, disability inclusion and regeneration. That is why those programmes delivered results, particularly in places such as my constituency of Foyle, where economic inactivity is deeply entrenched and driven by disability, long-term ill health and caring responsibilities.

What replaced that model was something very different. Brexit resulted in the loss of EU funding, especially for the most marginalised groups in society. The parties that championed Brexit must bear some responsibility for that and for where we are today. Since then, we have seen a succession of schemes — first, the Shared Prosperity Fund (SPF) and, now, the local growth fund — that lack those three qualities: scale, stability and integration. Most critically, the Executive match funding principle

has disappeared. Savings arising from the end of European structural funds have not been reinvested in a way that protects the delivery capacity that those funds supported. Instead of being treated as foundational, voluntary and community sector programmes have been left exposed, dependent on short-term, externally designed schemes with limited local flexibility.

The failure of continuity matters, because the local growth fund, as currently structured, is not just smaller in revenue terms; it is fundamentally mis-designed for Northern Ireland. A 70:30 capital-to-resource split might suit the regions where growth challenges are infrastructure-led, but our challenge is people-led. Capital funding does not support a person with a disability into sustained employment; it does not address trauma-related barriers; it does not keep skilled employability staff in place, and yet that is the funding model now being imposed. Ministers have already acknowledged key elements of the problem. The Finance Minister has put it on the record that the Executive cannot rebalance the capital/resource split and that the resource element will be delivered directly by Westminster in 2026-27. At the same time, we are told that the responsibility for delivery later reverts to the Departments here, meaning that the Executive will inherit the consequences of a model that they did not design.

The Executive have also failed to take any responsibility for a problem that, we knew, was coming. Yes, what the UK Government have done is indefensible, but Ministers here have abandoned their responsibility to the thousands of people supported by those projects and organisations. That places an even greater responsibility on the Executive to assess and mitigate the impact now, but, as usual, when a crisis points to a collective responsibility for the Executive, the response is a collective silence.

Assurances to the sector have been paper-thin. As far back as January 2025, the then Finance Minister agreed to set up a cross-departmental group to identify the risks coming forward from the transition, but we do not know whether that group even got off the ground. If it did, it was in secret with no collaboration or consultation with the community and voluntary sector. Despite accepting that job losses and service reductions are inevitable, Departments have produced no clear or published analysis of the impact of the funding transition on the voluntary and community sector's ability to continue delivering support. That is not my interpretation; it is the clear implication of answers already given in the House and to Committees. We are effectively being told that the full impact cannot be

assessed, while organisations are already issuing redundancy notices. That is not an evidence-based approach; it is policymaking while blindfolded.

Let me bring it back to Foyle, because those decisions have a real-world impact. In my constituency, the voluntary and community sector carries much of the weight of tackling economic inactivity. Action Mental Health's north-west provision, YouthStart's delivery partners, the Bytes Project, the women-focused employability and confidence programmes and community-based support organisations from the Bogside to the Waterside are not peripheral; they are central. Those organisations work with people who do not transition neatly between mainstream programmes, such as people with learning disabilities, people who are managing long-term mental health conditions, women returning to the labour market after prolonged care responsibilities and young people whose barriers cannot be addressed by short-term interventions. Yet there is no published assessment to set out which of those services can survive the funding reduction, what staffing capacity will be lost or how the loss of the provision will affect local economic inactivity rates, not to mention the vulnerable individuals. Instead, the Executive acknowledge the problem but appear to be willing to proceed without modelling the impact. In contrast, under the ESF, the Executive understood that withdrawing match funding would collapse delivery, so they did not do that. Under the current arrangements, however, the withdrawal has happened by default: not through decision but through omission.

The motion is not asking for charity; it asks for the restoration of a principle that previously guided policy: if we rely on the voluntary and community sector to deliver core outcomes, we fund it accordingly.

Ring-fencing funding in the multi-year Budget is not a radical measure. It would achieve predictability, continuity and accountability. Let us be honest about the alternative. If we are to allow experienced staff to leave, services to close and community trust to dissipate, capacity will not be easily rebuilt. The costs will simply reappear elsewhere: in mental health services; in long-term unemployment; in poverty statistics; and in the very economic inactivity figures that the Executive say that they want to reduce. That is not fiscal responsibility but cost-shifting.

5.30 pm

The questions for the Executive are fairly straightforward. If, under European funding, we knew that match funding was essential to delivery, why is its disappearance being treated as acceptable? If Departments cannot assess the impact on service delivery here, why are they content to proceed regardless? If we accept that Westminster will not adjust the funding profile in the short term, what is the Executive's plan to prevent permanent damage to the sector on which we all depend? The motion asks the Executive to stop managing decline and to start managing risk, proactively and strategically. We know what worked and what has been lost, and we still have an opportunity to act. I urge Members to support the motion, and I urge the Executive to re-establish the principle that made European structural funds so effective here: long-term commitment matched with deliberate political choice. The voluntary and community sector here depends on the re-establishment of that principle. It deserves no less.

Ms Forsythe: I beg to move amendment No 1:

Leave out all after "local growth fund by the" and insert:

"UK Government; notes that the Northern Ireland Executive have realised savings from European structural and investment funds succession without reinvestment in community and voluntary services; notes the financial challenges facing all Departments and therefore does not believe that it would be prudent to add to those challenges by devolving the administration for those schemes to local Ministers; laments the failure of the UK Government to put in place timely and adequate replacement funding arrangements; and calls on the Minister of Finance to press the UK Government to align the aims and funding objectives of the local growth fund with the Executive's Programme for Government to provide clarity for the voluntary and community sector."

Mr Deputy Speaker (Mr Blair): The Member has 10 minutes in which to propose amendment No 1 and five minutes in which to make a winding-up speech. Please open the debate on amendment No 1.

Ms Forsythe: Thank you, Mr Deputy Speaker. I thank the SDLP for tabling the motion on funding for the voluntary and community sector. As chair of the all-party group (APG) on the voluntary and community sector, I have long called for an assessment and quantification of the extent of the public services that the

voluntary and community sector delivers in Northern Ireland. We all know that its organisations are at the heart of our communities, delivering front-line services across all Departments. The extent of their delivery has never been quantified, and the scale of it has never been fully built into our Programme for Government (PFG) assessments.

The voluntary and community sector in Northern Ireland continues to deliver front-line services to our public and to fill the gap that public services do not reach. From 2023 until 2025, the voluntary and community sector-led UK SPF programmes supported almost 24,000 beneficiaries. Members in every corner of the Chamber will no doubt testify to the impact that such organisations have in their constituencies. It is therefore vital that our voluntary and community sector feel valued for the work that it does. Ensuring stability and sustainability of services and volunteers is critical to ensuring that the support infrastructure is there for the people who need it. The unprecedented challenges facing our departmental budgets have the potential to create a much bigger problem and greater uncertainty for projects and groups in the sector, given organisations' reliance on core funding. The DUP believes that the UK Government have a responsibility to provide clarity on the future of that funding without delay. It is appalling that organisations in the voluntary and community sector, which do essential work, have been left in such an uncertain position. In particular, the 70:30 capital/revenue split has caused major concern that 11,000 people a year may lose support. Our party has raised that issue at every level, with Gavin Robinson raising it at the Northern Ireland Affairs Committee. Right across the House, we have been speaking with a united voice.

Put simply, there is not enough capacity within existing statutory services to replace the loss of the programmes, and that will undoubtedly mean that individuals will be denied access to services, resulting in negative consequences for health, well-being, economic development and skills growth across our Province. We want to see the previous spending power under the EU structural funds be replicated and enhanced. The UK always paid more into the EU than what it received back in structural funding. There therefore can be no excuse for any shortfall in funding now. The DUP does not accept that a shortfall was in some way inevitable as a result of our exit from the EU. Ultimately, previous Governments made promises that have not been honoured. Over the past years, we in the DUP repeatedly

sought clarity on when that funding would be available and how it would be administered, and it is clear, on all of those fronts, that the engagement of the previous Government was severely lacking. We want to see that remedied.

The size of the pot is extremely important, but it is also critical that the priorities of future programmes reflect the needs and circumstances of communities in Northern Ireland. The role of the voluntary and community sector has been highlighted and rightly recognised throughout our Programme for Government. We have always been clear that the aims and funding objectives of our local growth fund must align with the Executive's agreed plans for economic growth and social inclusion. We cannot be in a situation where funding coming from the UK Government duplicates aims already covered by Executive programmes or where Northern Ireland's circumstances are not reflected in the development or administration of the funding. Equally, the DUP does not believe that providing a more meaningful role for the devolved Administrations in deciding how and where that funding is targeted must be at the expense of retaining a national approach to providing greater economic and social cohesion between different parts of the United Kingdom.

That is where our amendment tries to bring in a degree of assessment of our current position. Given the tough decisions that will need to be taken by Executive Ministers in the coming weeks and months in the difficult budgetary situation, we, on balance, do not believe that devolving responsibility for the schemes solely to local Ministers would be prudent or conducive to providing greater certainty to the sector; rather, it would add to the challenges facing our Departments. Our amendment removes the suggestion to ring-fence the money, because, as we see it, if you ring-fence everything and set it aside to deliver on previous schemes when the Budget is already under pressure, it will put additional pressures on Ministers and force the question: when we do not have additional funding, where do you take the money from? Which Department do you take money from to ring-fence it for this?

As I say, the DUP has consistently raised the poor way in which the local growth fund has been progressed at every level. We believe that the UK Government need to step up, fund it properly, restore the fund's full aims and remove the capital/revenue split. We support the voluntary and community sector, and we recognise the valuable contribution that it has made for the public in Northern Ireland. That sector has been let down, and we support the

call from our Assembly, the parties that stood united, our Executive and our MPs to reinstate the local growth fund in full.

Mr Gildernew: I beg to move amendment No 2:

Leave out all after "local growth fund by the British Government;" and insert:

"notes the failure of the British Government to adequately replace lost European structural and investment funds; and calls on the British Government to properly resource the Executive to allow the Minister of Finance to ring-fence sufficient funding in the multi-year Budget to fully address the shortfall and provide long-term stability for the voluntary and community sector."

Mr Deputy Speaker (Mr Blair): The Assembly should note that the amendments are mutually exclusive, so, if amendment No 1 is made, the Question will not be put on amendment No 2. You will have 10 minutes to propose amendment No 2 and five minutes to make a winding-up speech. All other Members who speak during the debate will have five minutes. Please open the debate on amendment No 2.

Mr Gildernew: Go raibh maith agat, a Leas-Cheann Comhairle. [*Translation: Thank you, Mr Deputy Speaker.*] I start by thanking the Members for tabling the motion on the local growth fund.

At the time of the Brexit referendum in 2016, Sinn Féin warned that leaving the EU would inevitably mean the loss of EU funding, which would be catastrophic for the North. The British Government dismissed those warnings as scare tactics and promised that all lost EU funding would be replaced in full. However, the British Government never intended to keep their promise, and, as expected by anyone with an ounce of sense, they have cruelly slashed funding for essential services that had formerly been funded by the EU.

Last year, the British Government announced that they were scrapping the Shared Prosperity Fund, which was a major source of funding to organisations that supported vulnerable people to find and sustain employment, and said that it would be replaced by the local growth fund. Under EU membership, the North received, on average, £40 million a year from the European social fund to support those vital employment programmes. This year, under the local growth fund, the North will receive only £9.2 million, which represents a huge cut in funding. In addition to the cut in funding, the British

Government changed the funding model to one that focused heavily on capital funding, which is completely useless for most of our community organisations.

That disastrous decision by the British Government has plunged many community and voluntary sector organisations into crisis, with many now facing closure. As many as 650 front-line staff now face redundancy, with many thousands more vulnerable people having those vital services ripped away from them. Despite the many months of campaigning by Sinn Féin and others, the British Government refused to back down and reinstate the funding. Instead, shamefully, they choose to prioritise funding weapons of war, announcing, only this week, a £50 million support package to the defence industry, calling it, ironically, or maybe not — maybe it is just gaslighting — the "defence growth fund". Time and time again, the people of the North suffer the consequences of harmful decisions that are taken in London by a British Government who neither think about nor care one iota about any of us here.

I will turn now to the Sinn Féin amendment, which places the focus back where it should be; on the British Government. The original SDLP motion lets the British Government off the hook completely. Brexit was their disastrous policy. The people of the North voted to Remain. It was the British Government who promised to replace all lost EU funding — a promise that they had no intention of keeping — and it was they who refused to listen to the concerns of our community and voluntary sector when it warned of the consequences of the cut in funding.

I am sure that the SDLP is well aware of the financial strain that the Executive are operating under, again as a result of British austerity and underfunding, so it should know that the Executive simply do not have the funding available to plug the gap. I find it strange that the SDLP seems to have taken on the role of political mudguard, deflecting responsibility away from the British Government and on to the Executive. Whilst I might not agree with the convoluted posturing of the —.

Mr Durkan: Will the Member give way?

Mr Gildernew: No, I will not. I am almost finished, Mark.

Although I do not agree with the posturing of the SDLP, at least we can agree that more and more people are, rightly, coming to the conclusion that our interests will never be

served by politicians in Britain and that a new Ireland represents the best hope for a bright and prosperous future for all our people.

Ms Mulholland: I support the motion and the amendments and I recognise the immense social and economic value of Northern Ireland's voluntary and community sector. We need to stop talking about the voluntary and community sector as though it were somehow separate from public service delivery, because it is not; it is so intertwined. As Youth Action has described it, the sector is:

"a critical cog, backbone"

and

"lifeblood in the lives of young people",

vulnerable people and communities across Northern Ireland. In many cases, those organisations are delivering essential public services — services that people rely on every single day that should be properly and sustainably provided for with long-term funding by the Executive.

Every day, voluntary and community organisations support the people who are furthest from the labour market: people with disabilities, carers, women who face barriers to work, young people who are not in education, employment or training (NEET), people who live with long-term health conditions and those who deal with addiction, homelessness, family breakdown, isolation, domestic abuse, severe mental health challenges and debt — the list goes on. That work is skilled, relational and built on trust. It cannot simply be paused and restarted when a funding stream changes its name. That is why the UK Government's handling of the local growth fund is so utterly damaging. The new model does not reflect Northern Ireland's needs. You cannot mentor a young person with a capital budget, support someone who is going through suicidal ideation with bricks and mortar or help a disabled person into employment if the specialist worker who truly understands their situation has been made redundant.

YouthStart shows what that means in human terms. Funding for the seven YouthStart partners is being reduced from £3 million to just £1.08 million. That programme has supported over 1,500 young people a year. Youth Action has said plainly that young people's lives are changed and, in some cases, saved by that intervention. As someone who came through

the Youth Service, I can, hand on heart, attest to that work being life-changing and life-saving.

Action Mental Health has warned that more than 80 of its staff may lose their jobs and that 900 people will no longer receive support next year. Its chief executive, David Babington, said that lives will be lost here. That is the reality of that cut.

Mr O'Toole: Will the Member give way?

Ms Mulholland: Yes.

Mr O'Toole: Does the Member agree that the same person, David Babington from Action Mental Health, while robustly challenging decisions that have been made by the UK Government, also said that the Executive needed to step up, and that he was very frustrated with the Executive's response to that and their desire to simply push all the responsibility onto the UK Government? They clearly need some of the blame, but there is frustration there, too, about the Executive's responsibility.

Mr Deputy Speaker (Mr Blair): The Member has an extra minute.

Ms Mulholland: I can understand how the sector feels that frustration. We feel that frustration. You hear it in the House as well, Matthew.

However, the blame for the design and implementation of this particular fund lies squarely on the shoulders of the UK Government.

5.45 pm

Ms K Armstrong: I thank the Member very much for giving way. During the last collapse of the Assembly, many of us who were community representatives met the then permanent secretary, who spelt out, in no uncertain terms, how very hard the Assembly and the Department were pushing to get that money into Northern Ireland so that we could lead the way on what the priorities should be and how the money should be spent here. That was refused point blank by Westminster.

Ms Mulholland: Thank you very much, Kellie.

When EU structural funds ended after Brexit, the sector was promised that the UK Shared Prosperity Fund would replace that support. That transition brought instability, delays,

uncertainty and a really damaging loss of the workforce. Organisations lost staff, and programmes were paused or closed. There was a loss of institutional memory, community knowledge and hard-won expertise. Now, with the transition from the UK SPF to the local growth fund, we are repeating the same mistake. When experienced youth workers, employment advisers and community mentors leave, they do not simply wait for the next funding round. They move on, so the sector loses knowledge, relationships and know-how. There has been no proper consultation with the community and voluntary sector and no published impact assessment. Organisations were notified late in the delivery year, days before Christmas. That is absolutely no way to treat a sector that delivers essential public services that, in reality, should have been properly and sustainably funded on a statutory basis.

Northern Ireland is particularly exposed when it comes to the work that was being delivered by the sector. We have the highest economic inactivity rate in the UK. We have a very specific set of circumstances here and the lowest employment rate for disabled people. We do not have access to the same alternative programmes that are available elsewhere, like the DWP's Connect to Work. A capital-heavy model is simply not fit for purpose. We cannot keep allowing funding cliff edges to hollow out our voluntary and community sector, and we cannot keep losing the very people who know what works and how to deliver it. Then we wonder why services collapse.

This is about people; it is about dignity; and it is about prevention, opportunity and hope. I thank the SDLP, once again, for bringing the issue to the Chamber. We support the motion and the amendments.

Mr Allen: I too thank the SDLP for bringing the motion to the House. At the outset, I declare an interest as a charity trustee. That role, alongside my work as an MLA, has given me first-hand insight into the pressures facing the community and voluntary sector and the very real, often life-changing difference that it makes to people across Northern Ireland. For many people, the community and voluntary sector is the first place that they turn to when they need help. Those organisations are also to the fore in delivering support schemes and initiatives. They provide practical support, continuity, trust and understanding. They are rooted in the communities that they serve, and their local knowledge allows them to respond quickly and effectively when need arises. That is why their value goes well beyond what can easily be

measured. However, when it is measured, as is often a requirement for funding, the impact is not only clear but compelling and provides a strong evidence base to inform and shape policy. Those organisations deliver strong value for money and contribute to economic outcomes by helping people move closer to work, easing pressures on public services.

We have all, no doubt, seen how relatively small amounts of funding can make a significant difference when it is in the hands of people who understand local need and can respond quickly. That ability to act early and intervene before issues escalate is one of the sector's greatest strengths and, ultimately, saves both money and hardship in the longer term. That is why the current situation is so concerning. We are now seeing organisations having to scale back services, lose skilled staff and, in some cases, consider whether they can continue at all. That is not because the need has gone away. If anything, demand and the complexity of need has increased.

The handling of the local growth fund has contributed to that uncertainty, as others have mentioned. We have raised that at every level. For example, my colleague Robin Swann MP arranged direct engagement with relevant UK Government Ministers. The current funding model does not reflect how those services are delivered on the ground, which has left many organisations struggling to maintain provision. A capital-heavy approach simply does not align with services that rely on people, skills and sustained engagement. Alongside that, there was a failure to put in place timely replacement funding when it became clear that previous arrangements would fall away. That created a gap that the sector has been warning about for some time, and we are now seeing the consequences of that delay.

If we are serious about recognising the value of the community and voluntary sector, that recognition has to be reflected in decision-making at a local level and at Westminster. That means providing stability through multi-year funding. It also means ensuring that funding is designed around people and services, not rigid structures that fail to reflect how delivery works in practice, as we have seen with the approach taken to the local growth fund.

Providing sufficient multi-year funding is a necessary step. It is about giving organisations the certainty that they need to plan, retain staff and continue delivering the support that so many people depend on. Too often, we see decisions and notifications coming at the last

minute, creating unnecessary uncertainty, as was the case again recently with community and voluntary sector youth services.

If we allow capacity to be lost, the consequences will be far-reaching: skills and experience will be lost; relationships in communities will be damaged; and services that have taken years to build will disappear. That is not something that we can easily or quickly rebuild. The community and voluntary sector plays a vital role in supporting people, strengthening communities and delivering services that make a real difference every day. We support the motion.

Ms Ní Chuilín: If I have picked it up right, the sentiment of the debate has been about making sure that there is support for the community and voluntary sector, but, when I read the motion, I thought that it was just another SDLP motion about bailing the Brits out. It is crass, and it is cynical. It uses the plight of the community and voluntary sector to strike points against the Executive. Had the motion been about us all collectively challenging the British Government for the way that the local growth fund has been managed, there would be no amendments whatsoever. However, it is what it is, and, in my opinion, it is quite sad, and it is quite disappointing.

Sian mentioned the community and voluntary sector, which she came from. I also worked in the sector for a number of years. When I worked in it in 2007, people were put on protective notice every month, and nothing much has changed. We need to collectively go back to the British Government because their funding model is almost like death by a different type of approach. It is a one-size-fits-all model. There is no consideration of this place having the worst figures for deprivation and a legacy of deprivation and discrimination. Working-class areas in particular that were greatly impacted on by the conflict have been left high and dry yet again.

Some of the bigger organisations come up here to protest, and I support their right to do that, but I would prefer it if they went to the NIO because that is where the power lies — not with the Executive but with the British Government. As Colm Gildernew said, the SDLP is quite happy for us all to try to bail the Brits out yet again. I think that that is cynical and crass.

I understand fully why people are so annoyed about it, given that there were plenty of parties here that were cheerleading for Brexit but now cry foul about the impacts of that on some of their most vulnerable constituents. However,

despite all that, I still think that there are opportunities even after this vote. If people are completely genuine about helping the sector out, there are still opportunities for us all to go back. Pushing it on the doors of the Executive is not only short-sighted but unfair.

Andy Allen mentioned what happened to the youth sector. Again, that was last-minute. People were looking for other jobs. Other people left in anticipation that the ring-fencing would not be returned. It is the same principle. I agree with ring-fencing. The SDLP removed ring-fencing for housing figures in 2010 and again thereafter, which meant that those who experienced inequality faced even deeper inequality. Do I think that each Department should ring-fence resources for the community and voluntary sector? Yes, I do. I always have and always will, because unless you target resources at those who are most in need, those people will always continue to have less. That is a fact. For me, it is also a class issue. Most of those who are impacted on are in section 75 groups: they are the most vulnerable. Saying, "We support the community and voluntary sector but" is just not good enough and does not cut it.

I appeal to the SDLP in particular to join the rest of us. I assume that everybody else will support the call to reinstate the funding as it was, because the current configuration does not work. It is quite cruel, actually, because it holds out an opportunity, knowing that people cannot take it. Our people deserve better than that. I am disappointed by the motion, and I look forward to what happens afterwards, if there is real and genuine concern about the community and voluntary sector.

Mr Harvey: I join others across the Chamber to voice my continued dissatisfaction with the Government in relation to their handling of the local growth fund. Since the issue came to the fore, DUP representatives in every constituency have been working with local community and voluntary sector organisations to highlight the damage being caused as a result of decisions taken by the Government on the delivery of the local growth fund. I pay tribute to the deputy First Minister and other Executive colleagues who have continued to highlight that issue with the Government.

Northern Ireland's community and voluntary sector comprises some of the brightest and best that we have to offer. We see tremendous individuals who go above and beyond to support our community and those who are most in need. Those organisations plug gaps that are not filled by the public sector and deliver

invaluable front-line services across health, well-being, economic development and skills growth. As has already been stated, it is a testament to the impact that the Shared Prosperity Fund has had in recent years. Across Northern Ireland, 23,000 individuals have benefited since 2023.

Public services are unimaginably stretched. The prospect of additional need, which was previously met by voluntary and community organisations, moving to front-line public services is of major concern. There is insufficient capacity in our existing statutory services to replace the loss of those programmes. Further reduced access to support will only prove to be detrimental to the most vulnerable and allow individuals to fall through the gaps that are no longer filled by such programmes.

So many providers remain in the dark as to the practical outworkings and impacts that those changes will have on their body. If the Government fail to listen to the House and the sector more widely, then, at the very least, organisations deserve clarity on when funding will be forthcoming and on how the fund will be administered. The engagement of the previous Government was severely lacking. The present Government have continued in that vein. We want to see that remedied urgently.

The needs and priorities of future projects under the local growth fund must align with the Executive's agreed plans and priorities. If we are to see demonstrable benefit flowing from interventions, it is vital that they are joined up and evidence-led, with a clear link to the specific needs of communities across Northern Ireland. The provision of a more meaningful role for the devolved nations and the shaping of future programmes will reduce duplication and ensure that the fund continues to achieve what the UK SPF achieved in the past and plug those service delivery gaps across healthcare and other relevant sectors. That can be achieved whilst retaining a national focus and approach to the provision of greater economic and social cohesion across all four regions, with an awareness of regional need being incorporated in the delivery of the fund.

I thank all those organisations that, despite the current funding and programme ambiguity that surrounds their future, continue to support communities and individuals across Northern Ireland.

I thank the groups in my constituency that, like so many others, desperately seek clarity about their future.

6.00 pm

The focus must remain on the UK Government to follow through on their previous promises and resource the local growth fund properly. My party's priority focus will be on continuing to use all possible avenues to advocate for our exceptional community and voluntary sector.

Mr Gaston: As predictable as day turning to night, the motion seeks to blame Westminster, because that is the default position of parties in the Assembly. If in doubt, blame Westminster, in order to deflect any and all criticism away from the floundering Executive. When one probes a little deeper, however, the truth soon emerges. Take the answer to my North Antrim colleague, Mr Burrows, who, in the response to a question for written answer about funding the local growth fund, was told:

"it is unrealistic, in the context of an extremely challenging budgetary position, for Westminster to expect a devolved Government to step in and make up their shortfalls."

Why? No one in the Executive parties said that it was unrealistic in the context of an extremely challenging budgetary position to hand MLAs a mammoth pay rise costing the taxpayer an additional £1.3 million each year. No one on the Assembly Commission said that it was unrealistic to expect the public to foot the bill, running into hundreds of thousands of pounds, for refurbishing the staff canteen. The Assembly can find money whenever it wants to.

Furthermore, when people in the Assembly made those choices, they did so in the full knowledge of the issues that we are debating this evening. The pack that the Assembly Library supplied ahead of the debate reminds us that the Executive had been raising concerns with the UK Government for many months, with formal engagement stretching back to December 2025, followed by a further escalation in January and — note the date — March 2026. What was the Assembly doing with its money in March 2026? Was it squeezing every penny to ensure value for money? Was it cutting every unnecessary cost so that we could have money for the voluntary and community sector? Absolutely not. March 2026 was the month in which the Assembly's remuneration board delivered what MLAs had designed it to do: give them a 27% pay rise. Colm Gildernew chided the UK Government for creating jobs and boosting our defences, yet he had nothing to say about the MLA pay increase or the refurbishment of the staff canteen.

Politics is all about priorities. If you want to find out what people in politics consider their priorities, it is often more revealing to see what they spend money on rather than look at the non-binding motions with which they fill the Order Paper.

What will the cuts mean for service users who rely on the services that the community and voluntary sector provides? Vulnerable people depend on those services to maintain stability, dignity and some sort of normality in their daily lives. The vital services that have been cut have provided many families with essential structure, therapeutic support, social interaction and practical assistance for those whose mental health is extremely fragile. Blaming Westminster does not replace those much-needed support mechanisms. I will say it again: politics is all about priorities. MLAs will be judged on the fact that, when the services were being cut, the pay increase for MLAs was just beginning.

Mr Carroll: I thank the Opposition for tabling this important motion, and I am happy to support it.

The slow collapse of our community and voluntary sector has been nothing short of catastrophic. The local growth fund fiasco is the latest iteration in more than a decade of underfunding and cuts. It is the predictable result of political choices being made in Westminster and political choices not being made in Stormont. From 1 April, as we have heard, funding for community-based employment support programmes was slashed by 64%. That has affected over 11,000 people who have lost access to vital support, and around 400 front-line workers are predicted to lose their jobs.

As we have heard, organisations that have spent years building trusted relationships with the most marginalised in our society — people with disabilities, women returning to work and young people furthest from any prospect of work — have been stripped of essential funding. Services that took years to design and build have been dismantled overnight. Those services are not an optional nice-to-have; they are essential social infrastructure. They are what stands between thousands of people and complete isolation from the economy and public life.

When those services go, the expertise of workers goes with it. Networks disintegrate, and trust is lost. Westminster made its choice in the form of a 70:30 split between capital and revenue. That completely disregarded the

North's labour market and service needs and the fact that local charities that deliver front-line employment and inclusion support rely heavily on revenue funding.

Despite months of letters, representations and joint Executive statements, the British Government made it clear that they had no intention of changing course, so we have long known where they stand. The harder question for some is where the Executive stand and where they have stood, because, last month, the Executive found an additional £19 million for home heating oil support. I welcome that — it was the right thing to do — but it also demonstrates something really important, which is that, when there is political will, funding can be found to mitigate the disastrous decisions coming out of Westminster. The Executive proved that. The question must be asked, although some may not like it being asked, why the same political will could not be summoned when it came to vital front-line services for some of our most marginalised people. Why was it there for home heating oil but not for the 11,000 people who are losing their only route into employment?

As was touched on, there is something deeply obscene about the fact that, on the exact same day as charity workers were handed redundancy notices, a £14,000 pay increase for MLAs came into effect. The four big parties and the SDLP found £1.2 million for a 27% pay rise for themselves. I have said this many times and will repeat it: last year, the Executive handed out £76 million in rates breaks to big multinational corporations Moy Park, Caterpillar, Coca-Cola, Thales and many others. Money was found. It is always found when the right people ask for it. The £15.8 million needed to plug the gap is and was entirely within the Executive's reach and remit. The multi-year Budget is the test. Ring-fencing that funding is not complicated: it requires political will and an acceptance of responsibility. In the past, the Finance Minister has put himself out there as a defender of big capital and multinational corporations, but he could have found the money for those organisations.

The Executive cannot claim ignorance. The sector has been warning them about the cliff edge for years, through the transition from the European social fund to the UK Shared Prosperity Fund and now this. At every stage, we have seen the same pattern: late funding decisions and chaotic timelines that show contempt for the organisations that provide, on a shoestring budget, life-enhancing and life-saving services that ought to be provided by the state.

Working-class communities did not create the crisis. The young people who rely on those services, disabled people, carers and young people with nowhere else to turn did not create it. They should not be left to pay for it. I support the motion, but words in the Chamber mean nothing without the money in the Budget. I hope that the Finance Minister will confirm that that money will be allocated today. Significant damage has already been done, but the Minister and the wider Executive could step in now and save what is left of those jobs and services.

Ms Sugden: I appreciate the opportunity to speak on the motion, which is ultimately about the organisations that people turn to when everything else has failed them. Across Northern Ireland, the community and voluntary sector is not an add-on or complementary to public services; it often is the service. It is the organisation that answers the phone, opens the door and steps in when statutory provision cannot or does not. We all know that. We see it in our constituency offices. People are supported with problems to do with mental health, addiction, poverty, isolation and employability, often long before the state even recognises that there is a problem. Despite that, however, the sector finds itself once again in a position of uncertainty, instability and, in some cases, collapse.

The impact of the local growth fund and the failure to properly replace previous European funding is real. The reduced funding and the way in which it has been structured, particularly the heavy focus on capital rather than revenue, do not reflect how the sector operates. The organisations in the sector are people-based. They require staff, continuity and relationships. The services cannot be delivered through capital spend alone. There is a clear responsibility on the UK Government. Decisions that have been taken do not reflect the needs of Northern Ireland. That has a direct and damaging impact on organisations that are delivering front-line support. That cannot be ignored and should be challenged more robustly. However, the Executive have known for some time that changes to funding were coming. The sector has been raising concerns consistently, yet here we are, in a position in which organisations are scaling back services, laying off staff and, in some cases, facing closure. The Member for North Belfast said that, in the 10 years in which we have been in the Chamber, nothing has changed. That does not begin and end with the local growth fund; it begins with the responsibility that the Executive have shirked.

The issue speaks to a lack of foresight and planning. It also speaks to a broader issue about how the sector is valued in government decision-making. If we are honest, when budgets are tight, the sector is often treated as expendable. It is seen as the easiest place in which to reduce funding. That makes no sense, because the community and voluntary sector is propping up government in areas in which it fails. The Government will feel it when the sector fails, because it delivers some of the best value for money in our entire system. It prevents problems from escalating, supports people before they reach crisis and reduces pressure on our health service, justice system and social services. It is not perfect, but it is not government; it is voluntary. It cannot afford to be perfect. When the sector is not there, those pressures will not disappear; they will move elsewhere at greater cost to the Executive and the UK Government. I find it difficult to accept that, in the face of all that, the community and voluntary sector does not appear to be front and centre in our Programme for Government. Ironically, it talks about how it will support other priorities in the Programme for Government, but it is not a priority on its own. The Government's plans for the future are at risk because they will not be able to rely on the community and voluntary sector, which is going to fail.

I appreciate that the Executive does not have the required resources. I expect the Finance Minister to reiterate that, as the Executive have done throughout the mandate, but the Executive must make the strongest possible case for the sector. I appreciate that others have said that that is what the Executive have been doing, but they need to advocate clearly, consistently and urgently for funding that reflects the level of need here. If the remit sits with the UK Government, the Executive, as representatives of Northern Ireland, need to make that case. We are not seeing the strength or urgency required. It is fortunate that we are having the debate today, but, as other Members have mentioned, the motion is non-binding and has come not from the Executive but from the Opposition.

What is at stake is real: services, jobs and people. We know from evidence that, without continued funding, organisations will close, staff will be lost and the people most affected will be those already facing the greatest challenges. The section 75 groups will feel it the most. That is the consequence of getting it wrong. It is about recognising that there are failures at multiple levels. The UK Government have questions to answer, but let us not forget that the Executive do as well, because they have been responsible for the issue for many years,

not just in recent years, when the funding was cut.

The UK Government must revisit their approach to funding, but the Executive need to show greater leadership, foresight and prioritisation because, if we continue on this current path, we will not just see a funding gap but a support gap. That is something that many of our constituents cannot afford, and it is something that the Executive cannot afford, as we hear regularly.

6.15 pm

Mr Deputy Speaker (Mr Blair): I call the Minister of Finance to respond to the debate. Minister, you have 15 minutes.

Mr O'Dowd: Go raibh maith agat, a Leas-Cheann Comhairle. *[Translation: Thank you, Mr Deputy Speaker.]* I welcome the opportunity to respond to the debate.

I fully recognise the social and economic value of the community and voluntary sector and the vital role that it plays across our society in supporting and strengthening communities and delivering essential public services. As Finance Minister and as an MLA, I can clearly see the sector's contribution to the provision of services, particularly for the most vulnerable in our communities. The Health, Education, Justice and Communities Departments in particular benefit from the support of that sector in delivering public services. While I welcome the motion's recognition of the value of the community and voluntary sector and the impact that it has across our communities, I strongly disagree with the proposed solution. It simply cannot fall to the Executive to fill the gaps that have been created by the British Government, especially when the proposers of the motion are aware that it is British Government policy that has reduced the Executive's spending power. The amendment in the names of my colleagues Colm Gildernew, Declan Kearney and Sinéad Ennis reflects the real reason for the issues being experienced by the sector, and, for that reason, I fully support that amendment.

Before Brexit, the European structural and investment funds, in particular the European social fund, played an important role in the delivery of services to our communities. EU funds were delivered through local Departments, working with stakeholders, and had an agreed matched funding obligation in place. Those funds were replaced by the Shared Prosperity Fund, which was controlled and directly delivered by Whitehall. That fund

was smaller than the EU funds that it was supposed to replace. As has been said, we went from an average of £65 million a year from the multi-year European funding programme to an average of £35 million a year from the Shared Prosperity Fund. The local growth fund in turn replaced the Shared Prosperity Fund and was designed by the British Government, despite commitments in the Labour Party manifesto that Labour would devolve those funds and their programmes to devolved institutions.

In March 2025, the Executive were proactive and agreed a position for the new local growth fund in anticipation of partnership and local control. That set out six clear and reasonable principles for the fund. First, funding must be long-term and sufficient in value. Secondly, there must be co-design with partners. Thirdly, structures must be efficient and accessible. Fourthly, interventions must be in line with the Programme for Government. Fifthly, lessons, both positive and negative, must be learnt from what went before. Sixthly, time is critical, and we needed to be able to move quickly to prevent another funding cliff edge. Those principles were designed to avoid exactly the type of cliff edge that the community and voluntary sector has now experienced. The Executive's position and principles were provided to the British Government but were largely ignored. Very late last year, there was, finally, recognition by Westminster that Executive involvement was needed. That, in turn, led to some detail shared with us in October. The local growth fund was to be delivered by the Executive and the NIO with a wholly unsuitable capital and resource split. No flexibility was allowed across the years. Delays in its development caused unrealistic timescales, including a capital in-year allocation that had to be expedited and spent by the end of March 2026. The fund actually started in April 2026. That illustrates the poor approach taken on this.

None of this was ideal, none of this was what the Executive wanted and none of this was what the sector needed. That led to a focused and determined action from the Executive in the very short time frame available. We put forward a mitigation plan that, unfortunately, by necessity, saw the Ministry of Housing, Communities and Local Government continue to deliver the resource funding for 2026-27 to ensure that money continued to flow. We sought proposals from Departments for the use of the 2025-26 capital allocation, making recommendations to the NIO that led to the funding of the recently announced North City Business Centre project in Belfast. We

instructed officials to commence work with the NIO to help it deliver its investment plan for the local growth fund to ensure that, once agreed, it will form a strong basis for the delivery of the fund.

As a result of the Executive's mitigation plan, organisations previously funded through the Shared Prosperity Fund will receive continued, albeit reduced, funding. That provided some level of reassurance for the sector amidst uncertainty. My officials have been advised that it is to be paid to the sector this month. I recognise that it is much less than the sector received previously, but it is as a result of the British Government's decision to massively reduce the resource portion of the local growth fund. I and the Executive have made 19 separate representations in just 12 months to various British Government Ministers, up to and including the Prime Minister, about the local growth fund, calling for a more sensible split, but Westminster has refused to do so.

The motion calls for ring-fenced funding in the Budget to address the British Government shortfall and provide stability. My proposals for the draft Budget for 2026 to 2030 have been developed against the backdrop of an exceptionally constrained financial position. In that context, it has not been possible to provide any Department with the funding as requested. It is the responsibility of each Minister to determine how to best incorporate funding for the community and voluntary sector into their departmental decision-making process. I have written to my Executive colleagues asking them to consider what opportunities there are in Departments to support the sector. Continued underinvestment in public services by the Westminster Government means that the available resource and capital funding is very constrained over the Budget period.

It is worth noting that, despite me publishing my draft Budget on 6 January, no other party has published a budget, a draft budget or budget proposals, including the Opposition. The Opposition have had ample opportunity to publish an alternative budget within which they could have shown the community and voluntary sector the other areas of public funding that they would have cut in order to bring forward the ring-fencing that is called for in the motion. There is no point in the Opposition — or any party — coming to the Chamber at this late stage, saying, "Ring-fencing should take place", and not outlining in detail where that funding should come from and what services would be cut as a result of their decision to step away from the unified front that the Executive have had thus far, doing their solo run, being

spokespersons for the NIO and the British Government, and raising expectations in a sector that has been let down by too many too often. If you have proposals for where the funding should be ring-fenced from and which services should be cut, I assure you that I will listen to them.

The current situation with the local growth fund is the result of a succession of poor decisions by the British Government. As I have stated before, and as has been said in the Chamber, it is not realistic for the British Government or the Opposition to expect the Executive, with an already extremely constrained Budget, to fill gaps that have been created by others. That is especially the case when a technical change to the capital/resource split by the Government would have improved the situation at no overall cost.

The NIO is shortly due to launch a consultation on its local growth fund investment plan. I encourage anyone with an interest to contribute to that consultation. Until the conclusion of the NIO consultation, and until decisions are made on how it will be delivered, the local growth fund remains very much a British Government-delivered fund. I expect that, following the NIO consultation, that delivery responsibility will transfer to the Executive. We must not repeat the mistakes made elsewhere. Therefore, it is vital for us to work with and support stakeholders on how we can put that funding to best use. We must maximise impact and focus on opportunities in order to secure positive and deliverable results despite the limitations imposed by others. However, that is the work of the weeks and months ahead. Today, we are faced with a motion that correctly identifies the issue — support for the community and voluntary sector — that prescribes a poor solution and that misses the crucial point of British Government responsibility. The amendment in the names of Colm Gildernew, Declan Kearney and Sinéad Ennis reflects the reality of our current Budget situation.

It is unfair to the community and voluntary sector to table motions such as this, calling for the ring-fencing of funding and solutions without saying where that ring-fenced funding should come from and what services the Opposition or whoever else supports the motion are prepared to curtail or cut.

Mr Durkan: Will the Minister give way?

Mr O'Dowd: I will in a moment.

Cuts to public services will have real impacts. They will also impact on the community and

voluntary sector and they will have a detrimental impact on service users.

Mr Durkan: I thank the Minister for giving way. He must have missed the bit in the motion where we established that the situation had arisen due to the mishandling by the British Government. The Minister speaks about unfairness in the community and voluntary sector. Does he think that it is fair to promise the community and voluntary sector — it was not this Minister of Finance that did it — that a working group would be established to look at how these cuts could be mitigated? That was in January 2025, and the sector has heard nothing about it since nor has it heard anything from any Department since 31 March when the axe fell.

Mr O'Dowd: "Mishandling" is a somewhat polite term for what the British Government have been involved in here. During my different terms and phases of being a Minister, I have dealt with successive British Ministers and I have never dealt with a more disrespectful approach than to the local growth fund. It was disrespectful not only to me as an individual Minister but to the Executive collectively. Correspondence was ignored for months by the respective Department, and it showed me complete disregard and disrespect, not only to us as elected representatives but to the community and voluntary sector and to the users of the sector. There was a complete lack of respect for or understanding of our situation. I am not sure exactly to what the Member refers in relation to a working group, but a cross-departmental working group that was established at official level has met on a regular basis and has engaged. My officials have regularly met the community and voluntary sector. I also met the sector and had discussions with its representatives. I know their frustrations and anger about the matter.

A strange triumvirate of Gerry Carroll, Timothy Gaston and Matthew O'Toole has come here to defend the British Government. Keir Starmer has more friends in this Chamber than he has in his own Chamber, when it comes to certain stages. The responsibility lies elsewhere. I am open to ideas and solutions as to how we can continue to support the community and voluntary sector, but tabling motions such as this one, which does not contain any solutions, is unfair to the sector and unfair to the users of its services.

Mr Deputy Speaker (Mr Blair): I call Declan Kearney to make a winding-up speech on amendment No 2. You have up to five minutes.

Mr Kearney: Go raibh maith agat, a Leas-Cheann Comhairle. [*Translation: Thank you, Mr Deputy Speaker.*] Repeated warnings about what Brexit would mean to us here in the North were scoffed at by the DUP and their fellow Brexiteers. It is not for the first or the last time that we are debating one of the consequences of that disastrous decision.

Predictably the British Government have now reneged on their promise to replace that lost EU funding. As a result, as other Members have said, the community and voluntary sector, on which so many rely in our society for services and employment, including in some of our most disadvantaged areas, has been left to carry the brunt. As colleagues have said this evening, the local growth fund reduced day-to-day funding from £25 million to £9.2 million per annum from April this year. The British Government have designed a scheme, which is based on a 70:30 capital/resource split. I agree with those who pointed out that that is an ill-conceived model, which again demonstrates that the British Government neither understand nor care about the uniqueness of this place.

As he outlined, the Minister has addressed the need for a bespoke arrangement in the North. However, that has simply been dismissed. Decisions taken in Westminster will rarely be taken in the interests of our region and that is underlined by the institutionalised resistance to developing the sustainable public funding model that we require for the region. The current Labour Government have instead continued with the same negative economic and political policy approach that they inherited from the Tories. There is no getting away from the reality that although the British Government can choose to increase by £13.4 billion between now and 2028 military spending on weapons of mass destruction and a war economy, they claim that they have nothing more to invest in community resilience and locally-led services here.

At the same time, as fuel and energy prices soar for ordinary consumers, British Government policy allows big oil conglomerates to continue to generate unprecedented profits.

6.30 pm

The loss of funding that we are debating will have the most — the worst — impact on our most vulnerable communities. It will impact on the youth employment services that provide vital support for people seeking education, training and employment. It will disenfranchise disabled people who rely on specialist

employment supports at a time when we have a skills shortage in our economy. It will impact on community-based mental health and well-being services that provide some mitigations for an already stretched and underfunded health service.

As others have commented, our third sector has become integral to the delivery of public services when those services break down here. Action Mental Health estimates that it will no longer be able to help 900 people who have accessed its services. The proposed cut in funding will also result in well over 400 front-line job losses across various services and groups.

While it is essential that we highlight those disastrous consequences, the SDLP motion plumbs the depths of political cynicism by trying to attribute to the Executive responsibility for the crisis in our community and voluntary sector. Perhaps deflection from the British Government's neglect of and contempt for this place and people here is the SDLP's new big idea, or maybe it is just another disguise for its failure to influence the British Government's decisions while it sits on the British Labour Party Benches at Westminster, where the decisions are being made. Whatever the truth, the SDLP has, characteristically and once again, got the wrong end of the stick. That is unfortunate, because, if it had not done so, we might have avoided the amendments to the motion and removed some of the edge from the discussion. Our immediate collective focus must be on pressing for a change in British Government policy on that priority funding.

Once again, the challenge that has been presented to us brings centre stage the failure of existing constitutional arrangements. It underlines why Irish unity and rejoining the European Union provide the only realistic prospect of sustainably meeting the needs of all our citizens.

Mr Deputy Speaker (Mr Blair): I call Brian Kingston to make a winding-up speech on amendment No 1. The Member has up to five minutes.

Mr Kingston: Thank you, Mr Deputy Speaker. On behalf of the DUP, I will make a winding-up speech on our amendment to the SDLP motion.

There has been a great deal of agreement across the Chamber in opposition to the conditions imposed by Westminster on the local growth fund, particularly the 70:30 capital/revenue split, which has substantially reduced the revenue element provided through the Shared Prosperity Fund and, before that,

the European social fund. We are all aware of the difficulties that that restriction has caused, particularly to groups in the community and voluntary sector that deliver employability support for people deemed to be economically inactive. Given the relatively low number of people who are officially unemployed and seeking work in Northern Ireland, it is vital that government seek to address the relatively high number of our people who are categorised as economically inactive and are not seeking work, be that down to early retirement, disability, health issues or caring responsibilities.

Voluntary sector groups across Northern Ireland, including the Belfast Works Connect consortium, have a strong track record of reaching and engaging with such people, assisting them into employment training programmes and into work. Between 2023 and 2025, such projects supported almost 24,000 people across Northern Ireland. That is money well spent for the benefit of the individuals and their families and of employers and the Northern Ireland economy as a whole.

The restriction on the local growth fund has greatly reduced the number of beneficiaries and has caused projects to withdraw totally from some of their centres of operation. It has been suggested that the 70:30 funding split is being imposed because it is the overall split required of the sponsoring Westminster Department, the Ministry of Housing, Communities and Local Government. We in the DUP want to see the previous spending power under the EU structural funds replicated and enhanced. Under structural funding, the UK always paid more into the EU than it received back, so there can be no excuse for any shortfall in funding now. Previous Governments made promises that they ultimately did not honour.

Some Members lamented the democratic decision of the people of the United Kingdom in the 2016 referendum to leave the European Union and the need to live up to our national security and defence requirements, but they offered no solution, only a distraction in the debate. EU structural funds were always additional to our Northern Ireland block grant, so any replacement funding should be additional. We are all aware of the severe demands across all nine Departments. If responsibility for the local growth fund were to be devolved to our Executive rather than being part of a national approach to supporting local economic growth, there would be a greater risk of Westminster evading its responsibility and reducing the funding over time. Our amendment therefore calls on the Finance Minister to:

"press the UK Government to align the aims and funding objectives of the local growth fund with the Executive's Programme for Government".

We also maintain that the focus must remain on the UK Government funding the scheme properly, at the same level as before.

I commend our amendment to the House.

Mr Deputy Speaker (Mr Blair): Thank you. I call Matthew O'Toole to conclude and wind up the debate on the motion. Matthew, you have up to 10 minutes.

Mr O'Toole: Thank you, Mr Deputy Speaker. Before I get into the meat of my remarks or cover comments made by Members, I will say that, despite some of the fairly lurid and pretty pathetic allegations that have been thrown at us from across the Chamber, particularly from the Minister's party, the reason that we tabled the motion and that is at the very front of our thoughts is the fact that we care about the community and voluntary sector and the people whom it serves. We have engaged with its representatives, including in the Building today. Brian Kingston mentioned Belfast Works Connect: I have engaged with that consortium, with community and voluntary groups and with NICVA, the umbrella organisation. I know the seriousness of the situation that they not only face into but face now. They have had to make their colleagues redundant and are having to turn service users away: people who are vulnerable; people whom the community and voluntary sector has helped to get into work but whose employment is, perhaps, fragile and contingent; and people who have issues in their lives that require employment support, such as additional needs or vulnerabilities. Those people are literally being turned away. That is why we tabled the motion.

For clarity, Members, including those in Executive parties, we make no apology for doing our job as an Opposition. Carál Ní Chuilín had a rant at me earlier — I say this with the greatest respect; she has left the Chamber — because of the idea of the official Opposition bringing before the Executive a matter of vital public importance. Indeed, an aspersion was cast that the community and voluntary sector was somehow wrong to bring a protest to Stormont, and it was suggested that they should have, if not spoken to the hand, brought that protest to the NIO instead. Let me be clear: in spite of what was said, our motion is clear in calling out and challenging the British Government's unacceptable and indefensible distortion of the funding split. They have acted

heedlessly and recklessly. I do not know how many times I will have to say that before Sinn Féin Members stop their pathetic, desperate attempts to reject any form of legitimate scrutiny from the official Opposition as somehow taking the Brits' side. That is pathetic. The people whom we serve deserve better.

I come to other parties, including the DUP, which supported not just Brexit but a hard Brexit that removed critical European funding. We cannot pretend that Brexit had nothing to do with that. We cannot pretend that the reason that we are here is nothing to do with Brexit — the decision to leave the EU. It was warned of in advance, and it was clear afterwards that the funds would be placed at risk. For people to say, "Oh, this is nothing to do with Brexit," is an absurdity that insults people's intelligence. That has to be challenged.

There is also the question of what happened to some of the successor funding and moneys that were returned to the Executive. I am happy to take an intervention if someone wants to explain that to me. When the European social fund came to an end and was replaced by the deeply flawed Shared Prosperity Fund — I went to meetings, as, I am sure, Members across the Chamber did, with consortia and community and voluntary groups that were deeply concerned and frustrated that that previous cliff edge has now been replaced by another inadequate fund, the local growth fund — one of the things that happened at the last minute with that successor fund was that there was no obligation for match funding, so, in a sense, there was a saving for the Executive. There would have been other pressures, but we have never been told what happened to that money. I presume that we were not told partly because there was no Executive here at the time. Again, that goes back to certain parties choosing not to take responsibility. We have heard again in the Chamber parties not taking responsibility. When the Opposition challenge them, they say, "Oh, you are taking the Brits' side" and "The community and voluntary sector should not have even protested here". There has been a shameful refusal to take responsibility for the people whom we serve.

To go back to the point, when the Shared Prosperity Fund came in, the Executive realised a saving of about £30 million. I do not know where that money went. I presume that it went to meet other pressures in other parts of the Executive Budget, which is fair enough, but we should have at least been told. In the same way, we should be told what happened to the working group that was apparently going to be

set up in January last year. However, we have heard no detail of any specific outcome.

We did not table the motion today to score points against the Executive; we brought the motion today to stand up for people in the community and voluntary sector and those whom they serve and to try to get answers for them. It is important to say, as Gerry Carroll did, that money has been found for other priorities in the Executive. I am told that there are conversations about a bid to the transformation fund for use in relation to economic inactivity. If that is the case, why could money not have been found to help plug the gap that the British Government created?

It is not enough to say that the British Government caused the problem. To be clear, our motion states that the British Government caused the problem. Does it not say that? I am happy to give way to the Minister.

I will read out our motion, because it has been distorted and, frankly, lied about in the Chamber today. I really do not like that, so I will be absolutely clear and do my job here. The motion states that we regret:

"that many organisations have been forced to scale back or withdraw services ... due to the mishandling of the local growth fund by the British Government".

That is who is primarily responsible for this. There is no contradiction in saying that the British Government are responsible for mishandling it and that the Executive will have to deal with the consequences. That is not taking the Brits' side, and it is not misleading the community and voluntary sector; it is holding people accountable. If you do not want to be held accountable, do not take the salary, and do not take the ministerial Pledge of Office.

Mr Carroll: I thank the Member for giving way. If I heard the Minister of Finance correctly, he said that he had raised this with the British Government on 18 occasions. Is the Member concerned to find out that, in that period, the Executive had no contingency plan to set aside money for those people in order to stand behind them, given that they knew how bad the British Government were and are. They did nothing to set aside money to protect people.

Mr O'Toole: That is why our motion says that we knew that that was what was happening.

Let us be clear: of course I agree with Sinn Féin Members that this is another example of why

our interests are not best served at Westminster. We agree with that, and we agree that we want to build a new future in a new Ireland back inside the European Union, where we can access all sorts of funds, including, hopefully, the European Investment Bank and other things, to rebuild our communities. It cannot be an answer simply to say, "It's their responsibility. They've created this problem, but we are just going to wash our hands of it". If we agree that they have created the problem, it is incumbent on us to do our best to mitigate it. It is not just me asking that question.

I noticed that the Member for Foyle Ciara Ferguson has submitted a question to the Minister for Communities asking what plans he has to mitigate the loss of local growth funding. I do not know whether it is illegitimate for Ciara to have asked that question of a Minister —

Mr O'Dowd: Will the Member give way?

Mr O'Toole: — or whether it is legitimate simply because it is a DUP Minister. Is her asking that question taking the Brits' side? I am genuinely confused. I am happy to give way.

Mr O'Dowd: The Member will note — I have said this on several occasions, including in my address today — that I have asked all Ministers to examine their budgets and programmes to see how they can assist the community and voluntary sector. It is perfectly legitimate for any Member to ask any Minister about such matters. I have no difficulty with being scrutinised, I assure you, but I have no difficulty with challenging that when I believe that the scrutiny is misplaced.

Mr O'Toole: I am glad that you said that, Minister, because then we are making progress. The progress is that, if you take ministerial office in this place, you are responsible.

I will come on to a point that is important to me. I am in politics here to build a new Ireland back inside the European Union. I used to work in the British system — people carp — and I know how little they care about this place. I am here now trying to make change in Ireland. Those of us who want a new and united Ireland are engaged in a big act of taking responsibility back onto this island. That is what I want.

I want us to be run from this island; I do not want us to be run from London. We are not going to get there by not taking responsibility. We are literally asking the public on this island to take collective responsibility; we are not

going to get there by not taking responsibility. There are limits to what the Finance Minister and the Executive can do. The UK Government should not have imposed this wrong and reckless split, but we will not make progress in this society, serve the community and voluntary sector or build a united Ireland, as I and others in the Chamber want — others do not, obviously — by simply not taking responsibility. Our job is to take responsibility collectively, despite all the difficulties and divisions

6.45 pm

The public has contempt for us because we continually refuse to take responsibility. Small and irritating as we are, the official Opposition's job is to constantly try to force responsibility to be taken in this place. If others do not like it, fine. Slurs will be cast at us, and our motivations will be questioned, but we will keep doing it, and that is what we are doing today.

I hope that Members will support our motion. There is some sense in both amendments, but I am pleased that we have been able to discuss this today.

Mr Deputy Speaker (Mr Blair): Before I put the Question on amendment No 1, I remind Members that if it is made, I will not put the Question on amendment No 2.

Question, That amendment No 1 be made, put and agreed to.

Main Question, as amended, accordingly agreed to.

Resolved:

That this Assembly recognises the social and economic value of the voluntary and community sector and the vital role it plays across Northern Ireland in supporting vulnerable people, strengthening communities and delivering essential public services; regrets that many organisations have been forced to scale back or withdraw services and lay off valued staff due to the mishandling of the local growth fund by the UK Government; notes that the Northern Ireland Executive have realised savings from European structural and investment funds succession without reinvestment in community and voluntary services; notes the financial challenges facing all Departments and therefore does not believe that it would be prudent to add to those challenges by devolving the administration for those schemes to local Ministers; laments the failure of the UK Government to put in place timely and

adequate replacement funding arrangements; and calls on the Minister of Finance to press the UK Government to align the aims and funding objectives of the local growth fund with the Executive's Programme for Government to provide clarity for the voluntary and community sector.

Mr Deputy Speaker (Mr Blair): I ask Members to take their ease before we move to the next item on the Order Paper.

(Mr Deputy Speaker [Dr Aiken] in the Chair)

Mr Deputy Speaker (Dr Aiken): Ladies and gentlemen, before we move to the next motion, I advise you that the Speaker has been notified that Sian Mulholland will not be speaking to her Adjournment topic on access to early intervention and family support services in North Antrim this evening. She will seek to have it rescheduled for a later date, which will be a matter for the Business Committee.

Protecting Victims of Coercive Control

Ms Finnegan: I beg to move

That this Assembly recognises the deep and lasting trauma that coercive control has on its victims; notes that perpetrators can exploit court proceedings through coercive behaviours, particularly in family courts, in an effort to retraumatise their victims; acknowledges that coercive control falls within the definition of abusive behaviour as defined by the Domestic Abuse and Civil Proceedings Act (Northern Ireland) 2021; further acknowledges the legal safeguards in the Act, including protecting victims from direct cross-examination, access to civil legal aid and special measures in court; expresses concern that many of these provisions remain only partially implemented and that victims continue to face barriers to justice due to restrictive eligibility criteria and complex evidential requirements; and calls on the Minister of Justice to urgently commence all outstanding protections under the 2021 Act, to simplify and extend access to legal aid for victims, and to ensure that family court proceedings cannot be exploited by perpetrators to exert coercive control.

Mr Deputy Speaker (Dr Aiken): The Business Committee has agreed to allow up to one hour and 30 minutes for the debate. The proposer of the motion will have 10 minutes to propose and 10 minutes to make a winding-up speech. As an amendment has been selected and is

published on the Marshalled List, the Business Committee has agreed that 15 minutes will be added to the total time for the debate.

Ms Finnegan: Go raibh maith agat, a Leas-Cheann Comhairle. [*Translation: Thank you, Mr Deputy Speaker.*] A growing body of evidence, including the 2025 Research and Information Service (RaISe) briefing, lays bare the reality of how victims of domestic abuse are experiencing our family courts. It makes for deeply uncomfortable reading, because, while our courts are there to protect, or so we believe, the lived experience of many women and children is very different. We see consistent findings from RaISe, the 'Totally Invisible' report and the recent Criminal Justice Inspection (CJINI) work all pointing in the same direction and showing that, for far too many victims, abuse does not end; it evolves and, too often, continues through the systems that are meant to protect them.

We have a system in which social services are often working to a threshold of what is considered to be "good enough": a child is fed; a child is clothed; there is a roof over their head. However, when it comes to the courts, particularly in private family court proceedings, anything less than perfect can be scrutinised, challenged and used against a protective parent. At the same time, a perpetrator can continue to bring forward allegation after allegation, even when those allegations have been found to be unfounded. There can be repeated allegations, repeated challenges and relentless pressure. That imbalance cannot be ignored.

We also know, and the evidence now confirms it, that coercive control does not end when a relationship ends. Too often, it finds a new platform through the courts, and litigation becomes a tool of abuse, not in the interest of the child but as a means of maintaining control. We need to talk about what that looks like in practice. Women have come forward to say that, on a Monday, they are granted a 12-month non-molestation order protecting them from direct and indirect contact from their abuser, but, by the Wednesday, they are sitting just feet away from the same abuser, in a courtroom, and are expected to engage, respond and remain composed. They are then ordered to communicate through a court-mandated parenting app, which creates yet another channel of communication and control. That contradiction is stark, and it is happening.

I will bring it back to what it feels like for a parent. We can talk about legislation, systems and processes, but this is about people. It is

about a mother who is sitting in a courtroom in a state of absolute stress. Her heart is racing, her mind is trying to keep up and her body is reacting to trauma, because she is sitting just feet away from the person of whom she is deeply afraid, and she is expected to answer questions, stay composed and present perfectly. When she struggles and her voice quivers — when she becomes overwhelmed — it is not recognised as trauma. It is judged, questioned and sometimes even used against her, as if it is simply a way of her behaving, when, in reality, it is deep, deep fear. All the while, her child is everything to her — the most important thing in the world — but, from the moment that child was born, she knew that there was a risk that, through abuse, manipulation, lies and fear, that child could be used against her, because litigation can be misused. Even when the misuse is so clear and the pattern of behaviour so obvious, it is not treated as a crime, because, in the eyes of the law, the correct avenue — the court process — is being taken. She is left in a position where, technically, she is protected, but only by a court order, which can be broken and relies on the behaviour of someone who has already demonstrated that they do not recognise boundaries or respect authority. They never have, and they never will. She sits there completely alone, because the patterns of behaviour are not recognised, since the systems do not join up. There are still gaps in training, in understanding and in how coercive control is recognised across the system. What is happening? The fight for her life — the fight to protect herself and her child — is playing out in a courtroom while the person who caused the harm gets to sit and watch and take serious satisfaction from it. That cannot be what justice looks like.

We also need to recognise that abuse does not stop at the adult victim. Manipulative behaviours are often directed at children, too — psychological abuse, emotional harm — and, even when a child court officer has identified that abuse, it is not always treated with the same weight or urgency as it would be in the social work system. Under the Children (NI) Order 1995, we are clear: where a child is suffering, or is likely to suffer, significant harm, there must be intervention. Emotional abuse is recognised as a primary category of harm, yet the reality of that threshold is not always being applied consistently in the family courts.

We already have legislation in place. The Domestic Abuse and Civil Proceedings Act 2021 was a significant step forward, but legislation, on its own, is not enough, because we are now seeing the gaps between what was

agreed in this Assembly and what the victims are experiencing on the ground. Protections are not being fully implemented and are not always accessible. Protection that cannot be accessed is not protection at all.

The RaISe paper also highlights clear systemic issues, such as low uptake of legal aid waivers, complex application processes, barriers to access and a system that risks retraumatising those whom it is meant to protect. Therefore, we need to be honest with ourselves and accept that reform is required. That means better recognition of litigation abuse, stronger protections for victims in court settings, a more consistent trauma-informed approach across the system and a renewed focus on the voice, safety and well-being of the child. It also means ensuring that court processes cannot be used as a tool of coercive control. Finally, we need to ask ourselves this question: if victims are leaving our courts feeling retraumatised, children are not being adequately heard and perpetrators are able to continue patterns of control through legal processes, are we truly delivering justice or are we allowing harm to continue in a different form?

Mr Gaston: I beg to move the following amendment:

Leave out all after "evidential requirements;" and insert:

"further recognises that the failures exposed by the Máiría Cahill case demonstrate the consequences of systems that do not adequately protect victims of abuse and coercion; calls on the Minister of Justice to ensure that the lessons learned from that case are fully reflected across all relevant proceedings, including family courts, so that victims are not retraumatised or placed at a disadvantage; and further calls on the Minister to urgently commence all outstanding protections under the 2021 Act, to simplify and extend access to legal aid for victims and to ensure that family court proceedings cannot be exploited by perpetrators to exert coercive control."

Mr Deputy Speaker (Dr Aiken): You will have 10 minutes to propose and five minutes to make a winding-up speech. All other Members will have five minutes. Please open the debate on the amendment, Timothy.

Mr Gaston: Thank you very much, Deputy Speaker.

The motion asks the House to recognise the deep and lasting trauma caused by coercive control and to ensure that victims are protected in our justice system. Those are aims that every Member should be able to support in any normal society, but, when I look at the names attached to the motion and see three Members of Sinn Féin, it exposes and lays bare their hypocrisy and underscores the need for the amendment to be tabled and supported. There is no more of a sobering example of that reality in Northern Ireland than the case of Máiría Cahill. In that case, a young girl was subject to serious sexual abuse, including rape. Instead of being directed immediately to the police, she was drawn into an IRA kangaroo court. Shamefully, she was required to confront her alleged abuser. We heard Ms Finnegan take aim at a situation in which a victim is in the same court as their abuser, but what about Máiría Cahill, who was subject to an off-the-books IRA kangaroo court? I agree that no victim should ever be placed in the position of having to confront their abuser.

When the matter finally reached the formal justice system, Máiría Cahill's case collapsed, not because the truth had been tested and rejected but because the victim withdrew. Why did that happen? This is not a matter of speculation. We have the findings of an independent review that was conducted by our now Prime Minister, Sir Keir Starmer.

He found that the three complainants were badly let down by the Public Prosecution Service (PPS) and by counsel, that the time taken to reach decisions was too long and that delays were unacceptable. Most damning of all, he concluded that it was almost inevitable that the complainants would lose confidence in the process. It was the predictable outcome from a system that failed to act with urgency, clarity and care. It did not end there. The Police Ombudsman also found there to be serious failings.

7.00 pm

We cannot, however, discuss that case honestly without looking at what happened in Sinn Féin. Not only were senior republicans, including Martin McGuinness and Gerry "I do not remember" Adams, aware of the allegations long before they were reported to the police but IRA men were conducting elements of a quasi-judicial process in Sinn Féin offices. In her book, Máiría recounts how, while in the office of Gerry Adams, she was asked whether she wanted a man shot. When she made it clear that that was unacceptable and that she instead

wanted to go through the justice system, a litany of barriers was erected in her path. Rather than being supported, she was undermined at every turn. That issue should concern the House.

The research pack that was produced in advance of the debate makes it clear that victims often do not come forward out of fear of not being believed. It goes further. It tells us that cases that involve sexual offences take longest to conclude, with a median completion time of 630 days. It states plainly that delays of that nature can lead to a high attrition rate of victims withdrawing from their case. Let me be clear about what that means. It means that victims come forward and are then worn down. They wait, relive, endure and eventually walk away, because the delay in the delivery of justice has become unbearable.

The motion rightly recognises that coercive control can be exercised through the courts and that perpetrators may exploit proceedings in order to re-traumatise victims. Although that is true, it is not the whole truth. The Máiría Cahill case reveals something more troubling still, which is that the problem does not always begin in the courtroom but can begin long before then. It can begin with the processes that a victim is drawn into, with the structures that surround them, with the failures of institutions and with the responses of those in positions of authority.

The amendment matters, because the motion focuses heavily on family court proceedings. The Máiría Cahill case — her lived experience, if you like — tells us that the problem is wider than that. It spans policing, prosecution and the entire justice pathway. It spans those who are in politics and the nexus that there is between them and an illegal terrorist organisation, which, by the Government's most recent assessment, still retains weapons, still retains departments and still provides oversight for Sinn Féin.

If we are to protect victims, we must do so not in part but in full. Victims do not deserve to have people in high political office, such as the First Minister, questioning their truthfulness. One of the barriers that victims face is the fear that they will not be believed. Michelle O'Neill was asked directly whether she believed Máiría Cahill, and declined, repeatedly, to give a clear answer before conceding that she does believe her now. It is a scandal that the House has a strategy on violence against women and girls that is headed by someone with such a record on the issue.

The amendment gives Sinn Féin a chance to right a wrong and state clearly and unequivocally that they believe Máiría. I commend my amendment to the House and trust that everyone in the House will support it tonight.

Mr Frew: I support the motion and the amendment. There is absolutely no doubt that there will be many victims of coercive control and sexual and domestic violence. Máiría Cahill is only one of them, but the case is clear as to what she went through and how she was coerced after the fact and after the offence took place.

The motion presents a real opportunity for Sinn Féin Members if they are serious about protecting victims of coercive control. Many of you are. I have worked with many of you in Committees, not only in Justice but in Finance, and we have worked through other legislation, including the Domestic Abuse and Civil Proceedings (Northern Ireland) Act 2021. Sinn Féin Members were just as committed as I was to introducing legislation on coercive control. So, this is a real opportunity for Sinn Féin here to acknowledge that past, to demonstrate a genuine commitment to doing things differently and to ensure that all victims out there are protected. It could happen to any one of us, even some of us in the Chamber, so it is really important that we get to grips with that. My party and I will support the motion and the amendment because it is a really serious issue.

I was all over the Domestic Abuse and Civil Proceedings (Northern Ireland) Act 2021. I helped to shape and amend it, which I am always proud to do, to try to get legislation that was cutting edge. We had not, at that point, legislated for coercive control, so there was a real challenge in the Department to bring in law that could do that. Did we get it right? Probably not, but that Bill represented the best chance possible for all victims who were caught up in coercive control and domestic and sexual violence. I commend the Department for the work that it did at that time.

We realise now that we did not put in commencement clauses, but there was real angst at that time from all the other parties involved in the Bill, including the judiciary, as to how they would handle it. However, I have absolutely no doubt about it: if you are a perpetrator of coercive control, you will use every weapon at your disposal, and that includes the courts — the family court and the criminal court. Those people have a brass neck for anything and everything. They will use all at their disposal to hurt, intimidate, humiliate,

degrade, punish and frighten their victims, so it is really important that we get this right.

I call on the Minister to put down clear timelines to commence all aspects of that Act and to make sure that everyone involved, including the judiciary, is fully informed and fully educated on what that law actually means. That should be a no-brainer. I should not even have to say that in the Chamber as a legislator, but we do see that disconnect. I suppose that we all feared that that would happen, so a piece of work must be done — a real, concentrated effort made — to ensure that all the cogs in the justice system work appropriately to safeguard victims. If we do not do that, what will happen is that no victim will want to come forward if they know that their perpetrator will use as a weapon the very vehicle that they, as a victim, are meant to use to seek justice.

That is why it is really important that we get the law right.

It is also very important that we progress law around coercive control. That is why I am tabling two amendments to the Justice Bill to bring in elements with regard to animals. I have just talked about the perpetrator using any weapon that they can use, and I was able to bring forward the offence of child aggravator in the Domestic Abuse and Civil Proceedings Act if the child was threatened or intimidated or if a threat to a child or victim would make them do whatever the perpetrator wanted. It would be the same with an animal. Therefore, I propose to table amendments to the Justice Bill, and I hope that the House will be able to support those amendments.

Ms Egan: Coercive control in personal relationships, whether they are romantic or not, is an incredibly serious matter, and I welcome the opportunity to speak about it in the Chamber this evening. Our society simply does not focus enough education and attention on that element of domestic violence. There is still so much to do to raise the profile of what coercive control actually is, as, often, victims can still be unaware of what they have experienced; they just know that something is wrong.

For that reason, I welcomed Minister Long making coercive control a legally recognised term in primary legislation during the previous mandate. That was long overdue. She noted it as a pattern or course of behaviour, with the intention of creating psychological and/or physical harm that gaslights and intimidates, creating long-lasting, traumatising impacts that are deeply felt by all victims involved, including any vulnerable children who, we hear, are

disgustingly used as leverage in custody disputes.

For us to make any progress for victims of coercive control, our legislation, courts and support services must be fully equipped. The original motion brings in a particularly important point on coercive control, which is the use of it by perpetrators in court proceedings to re-traumatise their victims. In any context, it is extremely traumatic for victims to have to face the perpetrators.

Through my work in my constituency office and more general work in family courts, I have spoken to many people who have suffered post-separation abuse, where the court is used as a vehicle for mental and financial torment. That key theme was identified in the 'Totally Invisible' report, which was published by the Commissioner Designate for Victims of Crime in December 2025. It examined the connection between domestic abuse and private family law proceedings.

The Domestic Abuse and Civil Proceedings Act was long needed. It looks specifically at special measures and support for victims of abuse during their justice journey. It has been incredibly worthwhile engaging in post-legislative scrutiny of the Act through the Justice Committee. Just last week, the Criminal Justice Inspection published its third review of the Act. That attention is vital for keeping its progress on the agenda of key justice agencies, including the PSNI and the PPS.

In June 2025, the Lady Chief Justice released formal guidance on domestic abuse in family proceedings. It specifically references establishing when coercive control has happened in cases that are being seen in family courts. Whether there have been improvements for victims in the first year of its use will be very important to establish and, again, emphasises the need for cross-justice partner collaboration.

That being said, there can be what is felt like double standards between our criminal and civil courts. The Domestic Abuse and Civil Proceedings Act introduced a series of protections and interventions for victims of coercive control, including special measures that allow witnesses to give evidence through live links or from behind a screen. However, on the ground, it is clear that special measures have been much more normalised in criminal courts rather than civil, despite being available in family proceedings settings. The difference is not just in access and uptake alone but knowledge that it is an option in civil courts is much more minimal. More needs to be done to

improve the victim's experience in court, including stopping cases from being prolonged for little reason and progressing regulations relating to the prohibition of cross-examination.

Children are very much at the heart of these issues, and I have spoken to victims of abuse where, astonishingly, their fact-finding has established the perpetrator as a terrible and abusive partner, with minimal consequences, but a great and wonderful parent. How does that even make sense?

7.15 pm

The Domestic Abuse and Civil Proceedings Act is incredibly important legislation, and it is positive to see so much focus on it. It is vital that we move forward and remain victim-led in order to tackle the barriers that they encounter. I look forward to working with Minister Long and her officials through the Justice Committee to ensure that all the provisions are enacted as quickly as possible in the most diligent manner.

Mr Beattie: I often ponder the term "ending violence against women and girls", because the reality is that you do not need violence to create harm to women and girls. Coercive control is a prison sentence without bars. It does not leave bruises that are visible to the eye, yet it destroys lives just as surely as any physical assault. While Northern Ireland took the historic step of criminalising that behaviour in the Domestic Abuse and Civil Proceedings Act 2021, the legislative framework at Stormont still contains critical failings that leave victims dangerously exposed.

I am conscious of the Justice Minister's statement today on the Katie Simpson affair. In many ways, that case goes to the heart of coercive control, because it is far more insidious and widespread than many people fully realise. It can take the form of economic abuse. It is not just about withholding money; it is the systematic destruction of a victim's financial independence: taking every penny spent, running up debt in their name or preventing them from holding a job. Victims are left financially marooned, unable to afford to live, travel or have any form of independence.

We think of coercive control as it relates to family members and loved ones, but older people also suffer it as their grandson, granddaughter or other family member continually tries to get money from them or takes control of their pension. It is really widespread. There is also technological surveillance. In the 21st century, abusers have

powerful new weapons. They install spyware on telephones and GPS trackers on cars. That may sound a bit James Bond, but we are talking about everyday items that are purchased online, such as AirTags. They cost virtually nothing, and you can literally follow somebody's movement by attaching it to their car. Hacking into social media accounts or emails to monitor every conversation — the abuser does not need to be in the room any more to control every movement.

We do not really talk about reproductive coercion: a hidden offence where a partner sabotages contraception, forces a pregnancy or coerces an abortion. It is a complete hijacking of a woman's autonomy over her body. Coercive control also involves isolation and cutting victims off from family, friends and support networks until the abuser becomes their entire world, and they do not even realise it. That can also involve moving the victim away from where they live. Humiliation can be part of that as well, as Paul Frew mentioned. It is important to remember that we have young abusers. Young men of 14, 13 or 12 have girlfriends and can be involved in that type of activity but probably do not even realise it. Of course, I have to say that men can be coerced as well, but it is important to say that it predominantly happens to women.

The Domestic Abuse and Civil Proceedings Act 2021 was landmark legislation, but, as I said, it remains flawed in some areas. There is an implementation gap. A recent Criminal Justice Inspection report found that, while the law exists, there is limited awareness of the statutory guidance. For example, child aggravators are being underused, which means that we are failing to protect the youngest and most vulnerable witnesses to crime. It certainly has not been embedded in our Police Service, the Public Prosecution Service or our courts. There is a training gap in the quality and consistency of training in our criminal justice system.

Mr Frew: Will the Member give way?

Mr Beattie: Yes.

Mr Frew: You mentioned child aggravators: that is really important in this setting and this legislation. When the perpetrator runs out of tools to control the person, the obvious place for them to look to is the bedroom where the child is playing a computer game. The child does not even know that they are being threatened, and the victim will do what the

perpetrator wants them to do because they know that they will take it out on the child.

Mr Deputy Speaker (Dr Aiken): The Member has an extra minute.

Mr Beattie: The Member is absolutely right. It is important that the criminal justice system identifies that and knows about it and that the front-facing people who are involved are fully trained. Our Police Service personnel need to be fully trained to understand what they see when they come across it. Likewise — I have said this time and time again — the Public Prosecution Service and the courts need training.

There is a support gap. Stormont promised safe leave in the form of paid time off for victims of up to 10 days a year in order to deal with domestic abuse. That was two years ago, but it has still not been delivered. We ask victims to navigate the family courts and flee abusive homes, while potentially losing their job, and that is a legislative failure. The family courts crisis has been mentioned before, and there is no point in going over that. There is a huge backlog, which results in the victim facing the abuser far more often than they should do, even when it comes to entering the court at the same time or coming across each other.

There are lots of issues, but we are on the right track, and it is important to say that. Now, however, we need to close those gaps.

Ms McLaughlin: I support the motion. I speak to an issue that is all too often hidden from view but never absent from our society. Coercive control does not always leave bruises that can be seen, nor does it always present in ways that are easily recognised or even understood. It happens quietly behind closed doors and shut windows. It happens in private spaces, where fear can take hold and control is exercised in ways that are deliberate, sustained and deeply damaging. This is not just about physical violence; it is about the pattern of behaviour, and it is about intimidation, isolation, monitoring, threats and manipulation. It is about one person exerting power over another day after day, until that person begins to feel that they have no control over their own life. Often, it is women who are living through that.

We know that around two thirds of victims of domestic abuse in Northern Ireland are female. Behind those figures are real lives shaped by fear, control and isolation. They are the lives of women who feel unable to leave, feel trapped or fear what might happen if they try to leave.

Coercive control is rarely straightforward and is often bound up in relationships where there are children, where the home is shared or where finances are intertwined and lives are deeply connected. That makes it harder to walk away and harder to seek help, and it makes it easier for perpetrators to maintain control. We also know that leaving is often the most dangerous point for the victim. The risks of serious harm can increase when someone attempts to leave their abuser.

We have taken important steps to recognise those forms of abuse in law. As others have said, the Domestic Abuse and Civil Proceedings Act (Northern Ireland) 2021 was a really significant moment. It acknowledged that abusive behaviour is not limited to physical harm and that coercive control must be taken seriously. Recognition on paper alone, however, is not enough, and the motion is clear that many of the protections that were intended to support victims have been only partially implemented. The safeguards that should be there in our courts are not consistently in place, and victims still face barriers when they try to access justice. We cannot ignore that, nor can we accept a situation where a victim can still be directly cross-examined by the person who has abused them. We cannot accept a system where access to legal aid is so complex or restrictive that it deters people from seeking protection. We cannot allow court proceedings, particularly in family courts, to become another arena where coercive control is continued and, in fact, reinforced.

For many victims, leaving the relationship is not the end of the abuse; it can be the point at which it escalates. Perpetrators can use legal processes to maintain contact, exert pressure, intimidate and re-traumatise. That is not justice; it is a continuation of harm through the very systems that are meant to provide protection. When we talk about giving people the courage to leave, we have to be honest about what that means and what it requires. It requires more than words and more than awareness. It requires a system that works for victims, not against them; the full commencement of the protections that the Assembly has already agreed; simpler and more accessible legal aid; and practical safeguards in our courts to see that victims are not placed back in harm's way. It also requires a broader cultural understanding of what coercive control looks like, because, too often, it goes unrecognised. Too often, it is minimised. Too often, victims are asked why they stayed rather than why the abuse was allowed to continue. We need to change that. We need to send clear messages that coercive control is abuse, that it is serious and that those

experiencing it will be supported, protected and believed, because behind every statistic is a person — a woman, mostly — who is living in fear —

Mr Deputy Speaker (Dr Aiken): Will the Member draw her remarks to a close, please?

Ms McLaughlin: — and weighing up the risks of staying against the risks of leaving. We will support the motion and the amendment.

Ms Ferguson: Violence against women and girls is one of the most defining challenges of this generation. It is a socially constructed stain on our society that is devastating and inhumane and that, sadly, operates on a continuum. Ending violence against women and girls and ending it for good means identifying the many patterns of behaviour that enable the control, isolation and abuse of women. While some aspects are easier to recognise, such as socially sanctioned misogyny, entitlement, objectification and aggression, others are less visible but require a serious focus. Structures and systems, including our justice system, although not consciously designed to be that way, can uphold and perpetuate gender-based inequality. Sinn Féin's motion recognises the continuum of violence. It emphasises how deeply and terrifyingly normalised the harm and heartbreak has become in our society and asks us to tackle the lived reality of how coercive control plays out in the courtroom for so many.

To me, as an MLA and, prior to that, a family support coordinator, this is nothing new. It has continued for years. I am so proud of the individual women who have come into my office over the past four years and expressed the experiences that they have gone through. They are such strong women, and they want to see improvements. They wanted to meet the Minister, and the Minister met them on a number of occasions. They wanted to meet the Victims of Crime Commissioner, because they do not want what happened to them to happen to any other woman.

Mrs Long (The Minister of Justice): Will the Member give way?

Ms Ferguson: Yes.

Mrs Long: Does the Member agree that it is somewhat shocking that, after those women met me and mentioned that, I was served with a solicitor's letter that stated that family proceedings cases are entirely private and that I and, indeed, those women may have been somewhat in breach of the law for even

discussing their experience in court, despite the fact that they did not disclose any of the details of their cases? That shows the degree to which some people will go in order to silence those women's voices.

Mr Deputy Speaker (Dr Aiken): The Member has an extra minute.

Ms Ferguson: Thank you for that. It is an absolute disgrace that that took place.

The ladies whom I have spoken to have raised a range of issues, including the impact of prolonged and repeated litigation, the traumatic effect of direct cross-examination and the feeling of minimisation of the impact of coercive control and financial dependency. The lived reality of survivors is this: the continuum of violence does not and cannot end where justice begins in our current system.

I welcome the role of specialist domestic violence court sitting days, the establishment of sexual offences legal advisers (SOLAs) and the recommendations in the 'Totally Invisible' report by the Commissioner Designate for Victims of Crime.

Each and every one of us should thank the individuals, male and female, who contributed to that report and had the bravery to share their story.

7.30 pm

We urgently need to see the commencement of all outstanding protections under the Domestic Abuse and Civil Proceedings Act 2021, as outlined in the recent Criminal Justice Inspection year 3 review paper. Additionally, we must strengthen the specialist training that is available to professionals; enhance the financial supports available to survivors, including through legal aid; and improve information sharing between civil and criminal courts, while keeping a constant eye on the dynamics and patterns of abuse.

We must act collectively and with urgency to challenge absolutely anything that constrains a survivor's capacity for action. We must champion their ability to protect themselves, and often their children, in the toughest circumstances imaginable.

Ms Hunter: I thank the Members to my left for tabling what is a really important motion. It has been really interesting to hear from different MLAs, many of whom have been in the job a lot longer than me. There are times in this job

when I think that I have seen it all. A couple of months ago, I was with a victim of coercive control whose ex-partner was extremely intimidating in a number of ways. In one of the most horrific examples of intimidation that I have ever heard, he impersonated her by creating a profile with her likeness and photos and began to catfish men whom they both knew by offering them sex. That is a level of harm that I did not think was even possible. It speaks to the wider issue of how technology is being weaponised by abusers to exert coercive control.

A number of comments that have been made here today really resonate with me. There may not be any cuts, bruises or scars, but the impact, harm and helplessness that those victims feel is like nothing that I have ever encountered. Learning about what happened to that woman was one of the most shocking moments that I have had with a constituent. I have also learnt about the weaponisation of children by perpetrators and abusers who use coercive control. That is heartbreaking. In addition, I have learnt about the use of trackers and about perpetrators stalking people outside their home and place of work.

The justice system should be a place of refuge for victims in Northern Ireland. Trust should be inherent, and, at its best, justice should be able to help victims heal. Regrettably, however, our justice system too often does not help victims heal. Rather, it reopens old wounds and creates new ones. Unfortunately, the history of justice in the North means that many people do not trust it. Trust has not been inherent, and justice has been delayed and, sadly, too often denied. Many Members have spoken today about the institutional re-traumatisation caused by a court system that is not fit for purpose and that must be modernised. Although we cannot expect to rid the justice system of all its flaws, we can, and must, do better. It is worth thinking about the words of Sandra Day O'Connor, the late US Supreme Court justice, who said that a system of justice is never perfect but only as good as the people who administer it. I am sure that everyone in the Chamber agrees that the justice system can, and must, be better administered.

This morning, when we remembered Katie Simpson, whose life was tragically taken too soon at the hands of her partner, the Minister rightly expressed a desire for protocols to reflect trauma-informed and gender-sensitive practices. She noted that there is a clear need to develop the mandatory use of trauma-informed, victim-centred investigative models. I really welcome her comments. It really is time

for victims of coercive control to be adequately supported in our courts.

As is stated in the Commissioner Designate for Victims of Crime's report 'Totally Invisible' from just last December:

"some family law processes can both mirror and extend patterns of abuse experienced by victims/survivors. For adults, the minimisation of DVA, post-separation continuation of DVA, and gendered assumptions all contribute to their experiences of disbelief, victim-blaming and re-traumatisation within legal proceedings."

I see that time and time again in my constituency office when supporting victims and survivors.

To quote further:

"Litigation abuse is one of the most pervasive forms of post-separation abuse. It functions as a subtle, yet powerful, tool to initiate, prolong, or resurrect coercive control – commonly through repeatedly delaying proceedings, threatening further litigation, or advancing vexatious claims."

Many victims who had been through that experience noted the level of distress that they had experienced. One of them said:

"I lay on my friend's floor and cried desperate tears ... Since then, I have spent a lot of time in therapy sessions. Trying to make sense of what happened and process my re-traumatisation as a survivor of domestic abuse."

To finish:

"It is abusive within a relationship, and it is abusive within the legal system."

As we as a society are becoming more trauma-informed, it is time to listen to victims in all their experiences and to do all that we can as elected representatives to improve the court system.

Mr Carroll: I thank the Members who tabled the motion. I want to begin by acknowledging a letter that I received from a constituent of mine, a mother from West Belfast. She wrote to me about her daughter Michelle Downey. I knew Michelle, having come across her in the Occupy Belfast campaign many years ago. Michelle died by suicide in September 2017 after years of sustained coercive control and domestic

abuse, and I want to remember her today. An inquest that concluded in 2024 found that the cumulative weight of Michelle's experiences — the abuse and control that she went through — rendered her a particularly vulnerable woman and contributed directly to her death. She did not want to die; she wanted to live free from abuse, and the Assembly and the Executive owe it to Michelle and to every other woman in a position like hers to act.

Nearly 31,000 domestic abuse incidents were recorded by the police in the North last year. We know that that figure vastly understates the reality. Most domestic abuse is never reported at all. That is for many reasons, including that a growing number of people have no faith in the PSNI, never mind the justice system more generally. Coercive control is at the heart of so many of those cases. It is a slow, calculated campaign to strip a person of their autonomy and their sense of self. The 2021 Act was a step forward by the Minister, but it does not go far enough. Years on, key protections remain only partially implemented. Victims are still facing complex evidential requirements and restrictive legal aid eligibility that effectively prices them out of justice. I think that just 14 legal aid eligibility waivers were issued under that legislation in the first year.

The courtroom itself can become another arena of abuse, as Members have said. Campaigners against gender-based violence rightly say that the "shame must change sides". Victims should never face cross-examination from their abuser. They should never be interrogated about their sexual history, and I am quite shocked that that still happens. Defence teams should not have access to private counselling notes, and perpetrators should not be allowed to submit character references while their victims are dragged through re-traumatisation. That amounts to a continuation of abuse, this time in the courtroom instead of the home. We also need to urgently implement the Domestic Abuse (Safe Leave) Act 2022 so that women who are experiencing abuse can take time away from work without fear of losing their livelihood or being financially penalised. As Members have said, leaving an abuser is not simple. It takes time, resources and support, and it usually is the most dangerous time for women.

That brings me to funding. Organisations such as Women's Aid are chronically and shamefully underfunded. They are holding the line every day for women in crisis, and they are doing it all on a shoestring. The Executive must urgently provide reliable, long-term investment in women's shelters and community-based

support services, not short-term pots of money that disappear mid-year and force people to fight or fundraise for it. Those life-saving services need sustained investment that reflects the scale of what those organisations are dealing with, which is a growth in violence against women. Michelle Downey deserved better, and the tens of thousands of women navigating coercive control in the North as we speak deserve better. The Minister must commence all outstanding protections under the 2021 Act without further delay, and the Executive must match every piece of legislation with the funding and cultural change needed to make it meaningful.

On the amendment, with no equivocation, Máiría Cahill absolutely deserves justice and was totally failed by the cover-up after the abuse that happened to her. For the most part, though, recent unionist leadership does not have a great track record when it comes to coercive control or familial abuse.

Ms Sugden: I support the motion and the amendment. Coercive control is one of the most damaging forms of abuse because it is not always visible. It is not one incident; it is a pattern. It is persistent, and it strips a person of their independence, confidence and, over time, their sense of reality. That is why the Domestic Abuse and Civil Proceedings Act (Northern Ireland) 2021 mattered so much. It recognised that abuse is not just physical; it can be psychological, emotional, financial and controlling. That was a significant and important shift in how we understand domestic abuse in Northern Ireland. However, legislation on its own does not protect people from abuse in its entirety. Socially, we need to see it, understand it and protect against it.

The motion is right to highlight that many of the protections in the Act are still only partially implemented and that victims continue to face real barriers when trying to access justice, and we do see that —.

Mrs Long: Will the Member give way?

Ms Sugden: Yes, please go ahead.

Mrs Long: On those protections that are partially implemented, the context of what that means needs to be understood. Many are being fully implemented at this time. The reason that they are referred to as "partially implemented" is because they cannot be mainstreamed until the funding is there, so they are there on a year-by-year basis, depending on annual funding. It is not that they are not available to

people to access. It is simply that we cannot provide continuity and certainty about the future.

Mr Deputy Speaker (Dr Aiken): The Member has an extra minute.

Ms Sugden: Thank you. I appreciate the Minister's point, but that is what we are seeing in practice, and I suppose that it is due to the funding reality. We have to be mindful of the budgets and how we use them so that those things can be more consistent and made accessible to victims in particular. The Government need to be a victim-centred Government, and part of what the Minister highlights is critical to that.

One of the most concerning areas is the family court. It is an issue that comes up regularly in my constituency office. Even I am shocked at how often it is raised with me. For many victims, abuse does not end when a relationship ends — it changes form. Court proceedings can become another tool: repeated application delays, attempts to undermine credibility, using contact proceedings to maintain control. What should be a process to resolve issues becomes a continuation of the abuse itself, and that cannot be allowed to happen. If we recognise coercive control in law, we have to recognise it wherever it happens, including in our courts. We cannot have one part of the justice system acknowledging coercive control while another part inadvertently enables it.

Access to legal aid is central to that because a victim without representation, facing someone who has already controlled and intimidated them, is not on an equal footing, and we cannot pretend that they are. Also, we need to acknowledge the abuse of legal aid, and how it is used to coercively control people through the courts. If we want victims to come forward and to leave abusive relationships, the system that they enter has to be one that protects them not exhausts them, and the system is exhausting, with the delays and the challenges that they face in those rooms. The system should be there for victims to get justice, but, in many cases, it just discourages them.

Coercive control is not just a justice issue. It is a societal issue; a trauma issue. What happens in the home does not stay in the home. Children who grow up in environments where coercive control or violence is present do not leave that experience behind. It becomes part of their development and shapes how they see relationships, respond to conflict and how they cope. Although we talk a lot about mental health, addiction and offending behaviour, we

do not always join those dots. A significant proportion of those issues can be traced back to adverse childhood experiences, and domestic abuse is one of the most significant of those experiences.

We see the consequences across the health service, social services and justice system, and, very often, in our prisons. I used to describe — I still do — the Justice Department as the failure Department. That is no disrespect to the current Minister and how she is conducting it. It is a recognition that if every other Department is failing people, those people often end up in the justice system.

If we are serious about tackling those issues, we have to be serious about tackling the root cause of domestic abuse, and that requires a more strategic approach than we currently take.

Too often we are responding to the consequences rather than preventing the cause. We are managing the crisis, rather than reducing it. We are, in effect, trying to keep a lid on a problem, rather than dealing with what is driving it. It is not sustainable. Breaking the cycle of trauma requires early intervention, proper support for victims and systems that understand the impact of abuse, rather than simply processing cases. That is where a trauma-informed approach matters, not as a buzzword, but as a way of shaping how our services respond to people when they have experienced abuse.

7.45 pm

I recognise the points that are made in the amendment: there are lessons in past failures, and we should always be willing to learn from them. However, the core issue before us is straightforward. We have recognised coercive control in law. We now need to ensure that that recognition is reflected in practice. That means commencing the outstanding protections, putting forward the funding so that we can share how consistent it is and ensuring that no part of our justice system can be used to continue that abuse. If we get this right, we are not just supporting victims in that moment; we are breaking a cycle that, left unchecked, will continue for generations.

Mr Deputy Speaker (Dr Aiken): Minister, you have 15 minutes.

Mrs Long: I thank the Members who tabled the motion as well as all those who participated in the debate.

The motion draws attention to how perpetrators may seek to use the family courts, in particular, as a way of continuing such abuse. I was speaking to the former Justice Minister in Québec, where they refer to it as "judicial abuse", wherein the judicial processes are used to inflict additional abuse, so this is not unique to Northern Ireland or to our system. As Justice Minister, I am frequently contacted by people about their personal experience of the family courts. Many find it traumatic, challenging and frustrating. All too often we see a clear intersection between domestic abuse and family court proceedings. That has been a recurring theme in recent research, as has the way proceedings in family courts can be weaponised by controlling individuals seeking to continue to abuse their former partner following separation.

I should note, though, that responsibility for family justice is shared across several Departments. My Department is responsible for matters relating to court procedure, provision of administrative support to the courts and legal aid. Policy responsibility for substantive private and public family law sits elsewhere, mainly within the Departments of Health and Finance. While, in reality, my Department has few levers to effect substantive change to family law, I am committed to bringing forward improvements to the family justice system in relation to the matters that come within my Department's responsibilities. I also stand ready to work collaboratively with my ministerial counterparts in Finance and Health and others, where opportunities arise to improve the family justice system on a cross-cutting basis. That is why I have welcomed the establishment by the Commissioner Designate for Victims of Crime of a multi-agency family court pilot task and finish working group. That group is bringing together a range of organisations, including some of our partners in the voluntary and community sector, to scope the feasibility of piloting an alternative private family law model for Northern Ireland.

The motion highlights the fact that coercive control falls within the definition of abusive behaviour in the Domestic Abuse and Civil Proceedings Act (Northern Ireland) 2021. That Act, which came into operation in February 2022, gave effect to a major reform of how domestic abuse is understood and responded to in the justice system. The 2021 Act made provision for a new domestic abuse offence that has allowed the law to move beyond viewing domestic abuse as isolated incidents to recognising patterns of coercive and controlling behaviour and, importantly, placing much clearer emphasis on the impact of domestic

abuse on children in the wider family context. There is evidence that the domestic abuse offence is being used more frequently and that the domestic abuse aggravator is now more routinely applied in prosecutions. That is important because it shows that the legislation is beginning to achieve its core purpose of ensuring that domestic abuse is properly recognised and reflected in and addressed by the justice response.

In addition to introducing domestic abuse as an offence and including provision for psychological abuse and coercive control within that offence, the Act brought about further improvements across the system that are making a tangible difference to victims. The Act established a statutory basis for the sharing of information between the PSNI and schools through Operation Encompass in circumstances where a child has been impacted by domestic abuse the evening before. That assists school personnel to respond quickly and appropriately to that child's needs. My Department is also progressing the introduction of domestic abuse protection notices and orders, which will provide, hopefully, additional protections for victims of domestic abuse. That work has taken some time to ensure that the model is fit for purpose and is tailored to meet the needs of Northern Ireland. However, work with justice partners is well progressed towards the development of a police-led pilot model informed by learning from other jurisdictions. The measures will provide a range of protections. Crucially, they will remove the onus on the victim to make an application, and they will provide powers to direct positive interventions in suitable cases that are aimed at addressing abusive behaviours. As with existing civil protection orders, it is intended that a breach of a domestic abuse protection order (DAPO) will be a criminal offence. The Department continues to develop the detailed policy and operational model for that in partnership with the PSNI and other justice partners and to develop the necessary regulations to enable the introduction of the measures in this jurisdiction. The Department is working towards the commencement of a two-year pilot in the latter half of the 2026-27 financial year.

In relation to procedural safeguards for parties in family cases, the Domestic Abuse and Civil Proceedings Act enhances protections for victims of abuse giving evidence in family proceedings by making provision for the prohibition of cross-examination in person and for the use of special measures. Court rules in operation since the end of 2022 enable the court to direct the use of special measures for

victims of domestic abuse to allow them, for example, to give evidence from behind a screen or by live link from a location outside the courtroom. Indeed, the domestic abuse contest cases trial that has been run in the remote evidence centre has shown significant improvements in rates of conviction, which now consistently sit at 92% of those cases.

The implementation of the provision for the prohibition of cross-examination in person in family proceedings requires the preparation of guidance and the making of a number of pieces of secondary legislation. I assure Members that, while the pace of that work has been impacted on by competing priorities and lack of resources, a good deal of the preparatory work has been completed. Subject to emerging priorities and securing the necessary funding for the court-appointed legal representatives who are required to enable implementation, the Department is working towards commencing the provisions later this year.

The implementation of the 2021 Act, together with other developments under the domestic and sexual abuse strategy, reflects the fact that domestic abuse is now rightly prioritised across the criminal justice system as a significant issue. It has huge impact, given the harm encountered by victims, and accounts for about a fifth of PSNI-recorded crime: 19.2% of crimes recorded by the police in 2024-25.

With regard to the amendment, I support calls for a trauma-informed response in the justice system. I have said on many occasions that legislation alone is not enough to tackle the scourge of domestic abuse and that that cannot be achieved by one Department. It must be done in collaboration across government in conjunction with delivery partners and with the support of wider society. Forcing any victim of domestic or sexual violence or abuse into contact with the perpetrator is unacceptable and not trauma-informed.

We have taken lessons from best practice and multiple reviews, such as the Gillen review, to develop a better, more trauma-informed response. Under the Gillen programme, the Department has introduced two new remote evidence centres that allow vulnerable victims and witnesses to provide evidence to the court from a remote location where they will not encounter the defendant or their supporters. We are also working towards replacing existing multi-agency risk assessment conference (MARAC) structures with the new domestic violence and abuse risk response (DVARR) structure, which will strengthen the response in

high-risk cases of domestic abuse and, hopefully, keep people safer.

The lessons learned from domestic homicide reviews and, indeed, other independent reports such as the one that I launched today are being embedded not just within Justice but across agencies to improve safeguarding and to prevent future harm. The Department has contracted ASSIST NI to deliver specialist advocacy services for high-risk and high-harm victims of domestic and sexual abuse in Northern Ireland. Alongside the Department of Health and the Department for Communities, the Department funds Nexus to provide and manage the 24-hour domestic and sexual abuse helpline.

My Department also funds the sexual offences legal adviser scheme, which includes the child sexual offences legal adviser scheme, to provide legal advice and support to adult and child victims of serious sexual offences, as well as a registered intermediary scheme that provides support for those with communication difficulties.

There has been discussion in the Chamber today about support for voluntary organisations. My Department will continue to work collaboratively with the Department of Health to deliver, via the strategic oversight board, outcomes under the domestic and sexual abuse strategy, including in response to priority issues. However, the provision of core grant funding to Women's Aid, for example, is ultimately a matter for the Minister of Health, and responsibility for provision of refuges falls to the Department for Communities. To date, however, I have taken action to ensure that the money that I invest in the community and voluntary sector to provide services has been ring-fenced and protected, despite the pressures on my budget.

Legal aid is available without regard to income for anyone who needs to apply for the protection of a non-molestation order or to defend an application for contact with children from their former abusive partner. Despite that, many people continue to pay privately for representation in such cases, and few make use of the waiver to apply for the support to which they are entitled. I am determined to fix that issue, and so, as part of the current engagement exercise on legal aid means testing, I am asking for views on a potential new form of legal aid certificate for victims of domestic abuse to provide access to a comprehensive package of legal support that would be accessible through a fast and simple application process.

Ms Finnegan: Will the Minister give way?

Mrs Long: I will, yes.

Ms Finnegan: I understand, Minister, that you are taking measures to make access to legal aid less complicated. Do you agree that, as I have heard, solicitors have come back to say that there is little uptake of that legal aid because it is not being offered because the application process, as it stands, is so complex? They say that they reckon that the paperwork is the same as an accountant would need.

Mrs Long: Means testing is necessary for legal aid in order to ensure the protection of public funds. Given that the waiver exists, however, it seems to me that there is no need to do the means testing before granting the waiver; it is simply to establish that there has been domestic abuse, so I think that it could be simplified. It is in response to such comments that I decided to take it forward and take further action in that space.

I am keen to take in the views of as many stakeholders as possible during the engagement period, and I encourage people to contact us before 20 May, which is when the consultation ends, about how the new certificates can be as effective as possible.

I have heard concerns expressed repeatedly by victims of domestic abuse whose former partners have sought to use the legal system as a means of perpetuating financial, economic and emotional abuse. In particular, there is an issue with repeated applications for contact being made to the courts, often by a partner and often funded through legal aid, when the partner who has been abused is working. I find that abuse of the legal aid system to be particularly offensive, so, in a parallel engagement process on legal aid merit testing, I am seeking views on new ways to constrain the use of legal aid for repeated and vexatious applications of that kind. I encourage engagement with that process so that the proposed changes are made in a way that offers effective protection to victims, while maintaining access to justice, where needed.

I want to mention the case of Michelle Downey in particular and the issue of suicide in the context of domestic abuse, which was raised by Gerry Carroll. I know Michelle's mum and am aware of the tragic circumstances in which Michelle passed away. The devastating impact of domestic abuse-related suicide is significant. I recognise the impact that it has on everyone

who is affected. At this point, there is no specific offence in any part of the UK for causing or encouraging suicide through domestic abuse or coercive control. However, sections 13 and 13A of the Criminal Justice Act (Northern Ireland) 1966 make it an offence to encourage or assist the suicide or attempted suicide of another person or to intend to do so. Section 13A also makes it clear that that includes situations in which a person has encouraged or assisted another by threatening them or otherwise pressuring them to take their own life. We need to reflect on that when it comes to cases of that nature. My priority, obviously, is the delivery of the existing commitments to tackle domestic violence and sexual abuse. We have not been able to progress the kind of substantive preliminary work, analysis and consultation that we would need to do to look at a specific domestic abuse-related suicide offence. However, I believe that the Department will want to do that in future mandates, as it is something on which we could lead the way.

Finally, I will move on to the issue of private counselling records —

Mr Carroll: Will the Minister give way?

Mrs Long: — for legal defence teams. I am almost out of time, unfortunately.

That issue can be a factor in many victims of such crimes deciding not to pursue a case or avail themselves of pre-trial therapy to help their recovery. Unfortunately, having looked closely at the case, it is not possible to simply ban the practice of private counselling records being made available to legal defence teams, as that would have an adverse impact on the article 6 rights of the accused. However, in the coming weeks, I will introduce a victims and witnesses of crime Bill that will contain provisions that would make significant improvements to third-party material disclosure processes, which are often used by the defence to seek access to records that contain personal information on the complainant, including counselling records. The Bill will also introduce the right of a complainant to make representations at pre-trial hearings for any applications for third party material and the right to be independently legally represented when doing so, rather than simply being reliant on objections raised by the Public Prosecution Service.

That is an important step towards balancing the rights of the defendant to a fair trial and the rights of the victim to some measure of privacy.

8.00 pm

In closing, I acknowledge the active and consistent interest of those who tabled the motion and those who spoke in the debate in tackling domestic abuse in all its forms. I thank all the Members who participated for raising the issues and for doing so in a sensitive way. I recognise that we are far from the destination at which we wish to be. I would prefer it if we were dealing not with the victims of domestic abuse, coercive control and sexual assault but with the underlying causes of that abuse so that we can protect people from harm. In the interim, however, my focus as Justice Minister is on ensuring that, where those harms occur, they are properly pursued through the courts and not exacerbated by them.

Mr Deputy Speaker (Dr Aiken): I call Mr Gaston to make a winding-up speech on the amendment. Timothy, you have five minutes.

Mr Gaston: Thank you very much, Mr Deputy Speaker. I start by stating that coercive control is one of the most dangerous forms of abuse. Why do I say that? I say it because it usually happens in the shadows, out of sight and behind closed doors. The motion rightly looks at coercive control and at how it can be exploited in the courts, particularly in family courts. Today, we have heard example after example of how that is being allowed to happen. It happens in the shadows in our society, and the House called it out today, and quite strongly.

Sinéad said that coercive control does not always leave bruises. Claire said that coercive control does not end when a relationship ends. Those are striking examples of what is a scourge on our society. Doug Beattie, in a very powerful contribution, said that coercive control is a prison sentence without bars. He referred to people as young as 12, 13 and 14 being involved in such practices.

My amendment shifts the dial and the focus slightly. It keeps the focus on coercive control but shows that it is not just happening in our courts but in our constituencies. We heard a number of examples. Cara Hunter talked about a case in which the victim was catfished. The most striking case of all was mentioned by Gerry Carroll. He referred to a letter from the mum of Michelle Downey, who died by suicide in 2017 owing to the ill effects and problems associated with coercive control.

Time after time today, MLA after MLA got to their feet to expose the failings that exist out there. Mr Frew said that it was essential that all

the cogs work together and that victims come forward. That is so important. We saw what happened in the Máiría Cahill case. When victims have to wait, they relive, endure and, sadly, owing to the obstacles that are put in their way, eventually walk away, because the delay is unbearable.

Mrs Long: I thank the Member for giving way and for raising that issue. I am sure that he is aware of the report by Dr Aisling Swaine that looked at the intersection between paramilitary coercive control in our communities and domestic violence and abuse and at the significant overlap that exists, with community surveillance and pressure being applied to victims and witnesses not to come forward to make complaints. I am sure that he agrees that that is completely unacceptable.

Mr Gaston: Absolutely. A report — it may not be the same one — by Foyle Women's Aid on what takes place made for harrowing reading.

On that point, I will refer to Máiría Cahill's book, 'Rough Beast: My Story and the Reality of Sinn Féin'. Chapter 17 states:

"We were in Gerry Adams's office, Breige and I. Siobhán O'Hanlon had let us in while Gerry was out. She pushed a yellow Post-it note across the circular meeting table to me. It read 'What do you want to happen to him?' I knew she was asking me whether I wanted Morris killed."

There is a prime example of the grip that paramilitaries have had in Northern Ireland and the way that it plays out today. The Máiría Cahill case exposes many failings, and I trust that the justice system and all the other Departments, which are pivotal, work together to get it right and ensure that the failings that Máiría experienced do not happen to anybody else in society.

I agree with Connie, who raised the point that we need to do more to promote awareness of what coercive control is, because when many people get into a relationship, they think that it is normal. That type of behaviour is not normal, and the pattern of behaviour shown by some men is not normal. We need to do all that we can in our power to encourage victims to come forward and ensure that they will be listened to and that action will be taken.

Mr Deputy Speaker (Dr Aiken): I call Emma Sheerin to make a winding-up speech on the motion. Emma, you will have up to 10 minutes.

Ms Sheerin: Go raibh maith agat, a Leas-Cheann Comhairle. *[Translation: Thank you, Mr Deputy Speaker.]* I thank everyone who contributed to the debate, particularly my colleagues who spoke so movingly and who were working on the issue before I became a member of the Committee.

Coercive control is something that is pervasive throughout society, and we know that we need to see action on it. The unanimous support for the motion across the Chamber today is to be welcomed. We often talk in this place about how the North of Ireland is one of the most dangerous places in Europe to be a woman. We know that 30 women have been murdered in the North since 2020. We also know that the most dangerous time for a woman who is in danger is when she tries to leave an abusive relationship. We know that most of victims of femicide — to whom we need to pay tribute far too frequently in this place — are killed at the hands of a man they know and oftentimes were in relationship with.

To deal with that, we must deal properly with the systems and forums that facilitate abuse and fail to protect the victims of abuse. I welcome the commitments given by the Minister, and the way in which she has received the motion. As outlined in our motion, we know that a lot of it has been legislated for already, but the research tells us that there are gaps. We want to see those gaps being addressed, and we all have to work collaboratively to achieve that.

The testimony of the victims of abuse tells us that the court procedures, particularly their experiences in the family courts, are driving women away from reporting their abuse because, instead of the perpetrator being on trial, the victims are on trial and are being judged. All too often in this country and across the world, victims of sustained domestic abuse are judged for staying in relationships and bringing harm on themselves or for letting their children live in dangerous scenarios, when the reality is that when they try to leave the situation, they are also judged for putting themselves and/or their children at risk.

I will highlight the contribution from my colleagues to my left, particularly Aoife. She talked about the reality of victims' experiences in courtrooms, when they cannot think clearly and have to face their perpetrators. That should give us all cause for concern. There is a lack of awareness of the systems that should be there to protect the victims, and we must ensure that everyone who has the right to access those systems — the barriers, the screens or the

waiver on legal aid — can do so, and that is key.

In conclusion, I welcome the approach shown across the House today. I hope that we see action on this issue, so that no other victims turn into statistics.

Question, That the amendment be made, put and agreed to.

Main Question, as amended, put and agreed to.

Resolved:

That this Assembly recognises the deep and lasting trauma that coercive control has on its victims; notes that perpetrators can exploit court proceedings through coercive behaviours, particularly in family courts, in an effort to retraumatise their victims; acknowledges that coercive control falls within the definition of abusive behaviour as defined by the Domestic Abuse and Civil Proceedings Act (Northern Ireland) 2021; further acknowledges the legal safeguards in the Act, including protecting victims from direct cross-examination, access to civil legal aid and special measures in court; expresses concern that many of these provisions remain only partially implemented and that victims continue to face barriers to justice due to restrictive eligibility criteria and complex evidential requirements; further recognises that the failures exposed by the Máiría Cahill case demonstrate the consequences of systems that do not adequately protect victims of abuse and coercion; calls on the Minister of Justice to ensure that the lessons learned from that case are fully reflected across all relevant proceedings, including family courts, so that victims are not retraumatised or placed at a disadvantage; and further calls on the Minister to urgently commence all outstanding protections under the 2021 Act, to simplify and extend access to legal aid for victims and to ensure that family court proceedings cannot be exploited by perpetrators to exert coercive control.

Adjournment

Mr Deputy Speaker (Dr Aiken): The next item of business in the Order Paper is the Adjournment. As Members were informed earlier, Sian Mulholland will not be speaking to her Adjournment topic, which was on access to early intervention and family support services in North Antrim.

Adjourned at 8.10 pm.